Proprietary and Confidential

AMENDED AND RESTATED EXEMPTED LIMITED PARTNERSHIP AGREEMENT

OF

VIOLA CREDIT ALF III (1), L.P.

(A Cayman Islands Exempted Limited Partnership)

Dated January [●] 2024

THE LIMITED PARTNERSHIP INTERESTS REFERRED TO IN THIS AMENDED AND RESTATED EXEMPTED LIMITED PARTNERSHIP AGREEMENT ARE SUBJECT TO RESTRICTIONS ON TRANSFERABILITY AND RESALE AND MAY NOT BE TRANSFERRED OR RESOLD EXCEPT AS PERMITTED UNDER THE UNITED STATES SECURITIES ACT OF 1933, AS AMENDED, THE ISRAELI SECURITIES LAW OF 1968 AND THE APPLICABLE NATIONAL, PROVINCIAL, STATE AND LOCAL SECURITIES LAWS, PURSUANT TO REGISTRATION OR EXEMPTION THEREFROM. LIMITED PARTNERS SHOULD BE AWARE THAT THEY MAY BE REQUIRED TO BEAR THE RISKS OF THIS INVESTMENT FOR AN INDEFINITE PERIOD OF TIME.

EXCEPT AS OTHERWISE PROVIDED IN THIS AMENDED AND RESTATED EXEMPTED LIMITED PARTNERSHIP AGREEMENT, A LIMITED PARTNER MAY NOT SELL, ASSIGN, TRANSFER, PLEDGE OR OTHERWISE DISPOSE OF ALL OR ANY PART OF SUCH LIMITED PARTNER'S INTEREST IN THE PARTNERSHIP UNLESS THE GENERAL PARTNER (AS DEFINED HEREIN) HAS CONSENTED THERETO.

THE PARTNERSHIP FALLS WITHIN THE DEFINITION OF A "PRIVATE FUND" UNDER THE PRIVATE FUNDS ACT (AS REVISED) OF THE CAYMAN ISLANDS ("PFA") AND, ACCORDINGLY, WILL BE REGISTERED IN ACCORDANCE WITH THE PROVISIONS OF SUCH LAW. REGISTRATION UNDER THE PFA ENTAILS THE FILING OF PRESCRIBED DETAILS AND AUDITED ACCOUNTS ANNUALLY WITH THE CAYMAN ISLANDS MONETARY AUTHORITY ("CIMA"). HOWEVER, THE PARTNERSHIP WILL NOT BE SUBJECT TO SUPERVISION IN RESPECT OF ITS INVESTMENT ACTIVITIES OR THE CONSTITUTION OF THE PARTNERSHIP'S PORTFOLIO BY CIMA OR ANY OTHER GOVERNMENTAL AUTHORITY IN THE CAYMAN ISLANDS, ALTHOUGH CIMA DOES HAVE POWER TO INVESTIGATE THE ACTIVITIES OF THE PARTNERSHIP IN CERTAIN CIRCUMSTANCES. NEITHER CIMA NOR ANY OTHER GOVERNMENTAL AUTHORITY IN THE CAYMAN ISLANDS HAS PASSED UPON OR APPROVED THE CONTENTS OF THIS AGREEMENT OR ANY OTHER MARKETING

MATERIALS OF THE PARTNERSHIP OR ASSESSED THE MERITS OF AN INVESTMENT IN THE PARTNERSHIP. THERE IS NO INVESTMENT COMPENSATION SCHEME AVAILABLE TO LIMITED PARTNERS IN THE CAYMAN ISLANDS.

THE REGISTRATION OF THE PARTNERSHIP BY CIMA DOES NOT CONSTITUTE ANY GUARANTEE OR ASSURANCE BY CIMA TO ANY LIMITED PARTNER AS TO THE PERFORMANCE OR CREDITWORTHINESS OF THE PARTNERSHIP. FURTHERMORE, IN REGISTERING THE PARTNERSHIP, CIMA SHALL NOT BE LIABLE FOR ANY LOSSES OR DEFAULT OF THE PARTNERSHIP OR FOR THE CORRECTNESS OF ANY OPINIONS OR STATEMENTS EXPRESSED IN ANY MATERIAL USED TO SOLICIT THE PURCHASE OF INVESTMENT INTERESTS IN THE PARTNERSHIP.

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VIOLA CREDIT ALF III (1), L.P.
AMENDED AND RESTATED EXEMPTED LIMITED PARTNERSHIP AGREEMENT

AMENDED AND RESTATED EXEMPTED LIMITED PARTNERSHIP AGREEMENT, dated this [□] day of [□], 2024 (this "**Agreement**"), by and among Viola Credit ALF III GP, L.P., a Cayman Islands exempted limited partnership, as the sole general partner (the "**General Partner**"), the Initial Limited Partner, and those Persons listed on the List of Partners as limited partners who execute a counterpart of this Agreement, together with any additional limited partners admitted to the Partnership after the date hereof pursuant to the terms of this Agreement (the "**Limited Partners**"). The General Partner and the Limited Partners are sometimes referred to herein collectively as the "**Partners**."

WHEREAS, by an initial exempted limited partnership agreement dated [□], 2024, by and between the General Partner and the Initial Limited Partner (the "**Initial Agreement**"), the General Partner and the Initial Limited Partner formed Viola Credit ALF III (1), L.P. as a Cayman Islands exempted limited partnership (the "**Partnership**") upon registration of the Partnership with the Registrar of Exempted Limited Partnerships.

NOW, THEREFORE, for good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the parties hereto wish to amend and restate the Initial Agreement as hereinafter set forth:

ARTICLE 1 - DEFINITIONS

1.1 DEFINITIONS.

Capitalized terms used herein and not otherwise defined have the meanings assigned to them in Appendix I hereto.

ARTICLE 2 - ORGANIZATION; POWERS

2.1 CONTINUATION OF EXEMPTED LIMITED PARTNERSHIP.

The Partners agree to continue the Partnership subject to the terms of this Agreement and pursuant to and in accordance with the Exempted Limited Partnership Act (As Revised) of the Cayman Islands, as it may be amended or revised from time to time (the "**ELP Act**") and the Initial Agreement is hereby amended and restated in its entirety by its deletion and replacement by this Agreement. The Initial Limited Partner hereby confirms receipt of the return of any capital contribution made by it to the Partnership and withdraws from the Partnership simultaneously with the admission of the first additional Limited Partner, and none of the Partners shall have any claim against the Initial Limited Partner as such.

2.2 NAME; OFFICES.

The name of the Partnership is "Viola Credit ALF III (1), L.P." The Partnership shall have the non-exclusive right to use such name as long as the Partnership continues. The name of the Partnership may be changed at any time by the General Partner without the consent or approval of the Limited Partners, provided that the General Partner shall give prompt notice to the Limited Partners of any such change. The principal office of the Partnership shall be located initially at 12 Abba Eban Avenue, Ackerstein Towers Bldg. D, Herzliya 4672530 Israel. The address of the Partnership's registered office in the Cayman Islands is at the offices of Maples Corporate Services Limited, PO Box 309, Ugland House, Grand Cayman, KY1-1104, Cayman Islands. The General Partner may change the location of the principal office and/or the registered office of the Partnership to such other addresses or locations as the General Partner may specify from time to time in a written notice to the other Partners, provided that the registered office shall be located at all

times in the Cayman Islands or, in the event of a Domestication under 13.1.7, the State of Delaware. The General Partner, in its discretion, may cause the Partnership to open additional offices in such locations as the General Partner may determine from time to time.

2.3 PURPOSE; POWERS.

The principal purpose of the Partnership is to locate, analyze and invest in the specialty lending market, primarily by providing asset-backed, senior-secured debt facilities to finance assets originated by technology companies operating in the specialty finance market globally, primarily in western territories including North America, Western Europe, Australia, and New Zealand. Such investments will be primarily senior-secured, but they may also be subordinated in nature, including second lien and mezzanine loans. The Partnership may also invest in, and purchase assets originated by, Originating Platforms either directly or indirectly through companies formed by the General Partner or by other funding partners. Subject to the provisions of this Agreement, the Partnership may engage in any activity that is lawful for, and shall have all of the powers available to, an exempted limited partnership organized under the ELP Act.

2.4 REGISTRATION.

The General Partner has caused to be filed with the Cayman Islands Registrar of Exempted Limited Partnerships a registration statement pursuant to Section 9 of the ELP Act (the "**Registration Statement**") and shall cause to be filed any amendments to the Registration Statement required pursuant to Section 10 of the ELP Act.

ARTICLE 3 - PARTNERS

3.1 NAMES, ADDRESSES AND SUBSCRIPTIONS.

The name, address, electronic mail address and Subscription of each Partner are set forth in the List of Partners. The General Partner shall cause the List of Partners to be revised, without the necessity of obtaining the consent of any other Partner, to reflect any changes in the identity, addresses, electronic mail addresses or Subscriptions of the Partners occurring pursuant to the terms of this Agreement. Each Partner shall promptly provide the Partnership with the information required to be set forth for such Partner on the List of Partners and shall thereafter promptly notify the Partnership of any change to such information.

3.2 STATUS OF LIMITED PARTNERS.

3.2.1 **Limited Liability.**

No Limited Partner, in its capacity as such, shall be liable for the debts and obligations of the Partnership so long as such Limited Partner does not take part in the conduct of the business of the Partnership; provided, however, that each Limited Partner shall be required to pay to the Partnership: (a) any unpaid capital contributions that such Limited Partner has agreed to make to the Partnership pursuant to Article 6; (b) the amount of any distribution that such Limited Partner may be required to return to the Partnership pursuant to Section 34 of the ELP Act (except that the rate of interest chargeable under such Section 34 shall be zero); and (c) the unpaid balance of any other payments that such Limited Partner expressly is required to make to the Partnership pursuant to this Agreement, including, without limitation, 6.2.4 and 12.4, or pursuant to such Limited Partner's subscription agreement, deed of adherence, accession agreement, transfer agreement, or other agreement pursuant to which such Limited Partner agreed to acquire a limited partner interest in the Partnership and to become a party to this Agreement (any such agreement, a "**Subscription Agreement**").

3.2.2 **Effect of Death, Dissolution or Bankruptcy.**

Upon the death, incompetence, bankruptcy, insolvency, liquidation or dissolution of a Limited Partner, the rights and obligations of such Limited Partner under this Agreement shall inure to the benefit of, and shall be binding upon, such Limited Partner's successor(s), estate or legal representative, and each such Person shall be treated as an assignee of such Limited Partner's interest for purposes of Article 11 until such time as such Person may be admitted as a substituted Limited Partner pursuant to that Article.

3.2.3 **No Control of Partnership.**

Except as otherwise provided herein or by virtue of the ELP Act and to the maximum extent permitted by law, no Limited Partner shall have the right or power to: (a) withdraw or reduce its contribution to the capital of the Partnership; (b) cause the winding up and dissolution of the Partnership; or (c) demand or receive property in return for its capital contributions. No Limited Partner, in its capacity as such, shall take any part in the control or conduct of the business of the Partnership, undertake any transactions on behalf of the Partnership, or have any power to sign for or otherwise to bind the Partnership.

3.3 **ADDITIONAL LIMITED PARTNERS.**

3.3.1 **Additional Subscriptions before Final Closing Date.**

Subject to the provisions of this Agreement, during the period from the date on which Limited Partners (other than the Initial Limited Partner) are first admitted to the Partnership (the "**Initial Closing Date**") through the date that is eighteen (18) months after the Initial Closing Date (the "**Final Closing Date**"), unless extended further with the approval of the Advisory Committee, the General Partner is authorized, but not obligated, to admit to the Partnership one or more additional Limited Partners (each, an "**Additional Limited Partner**") and to accept additional Subscriptions from existing Limited Partners, who shall be deemed to be Additional Limited Partners to the extent of such additional Subscriptions. Additional Subscriptions shall be accepted and Additional Limited Partners shall be admitted to the Partnership pursuant to this 3.3.1 only if:

(a) Each such Additional Limited Partner shall contribute, on or after the date of its admission or the acceptance of its additional Subscription, an amount that results (after giving effect to the distributions in 6.2.2(a)) in (i) the Additional Limited Partner's Contribution (not including for this purpose any contribution with respect to the Management Fee and Partnership Expenses (excluding Organizational Expenses) that are not attributable to a specific Portfolio Investment as the General Partner determines in its reasonable discretion) bearing the same ratio to its Subscription as the Contributions (not including for this purpose any contributions with respect to the Management Fee and Partnership Expenses (excluding Organizational Expenses) that are not attributable to a specific Portfolio Investment as the General Partner determines in its reasonable discretion) of the other non-defaulting Limited Partners bear to their Subscriptions and (ii) the Additional Limited Partner having contributed an amount with respect to the Management Fee as if its Subscription (or with respect to an additional Subscription by an existing Limited Partner, the additional Subscription) had been in effect on the Initial Closing Date; and

(b) Each such Additional Limited Partner (other than an existing Limited Partner with an additional Subscription due to automatic increases in its Subscription based on a percentage of the aggregate Subscriptions) shall not be entitled to receive distributions of Current Income until the first day of the fiscal quarter following the date of such Additional Limited Partner's admission to the Partnership as the General Partner determines in its reasonable discretion.

3.3.2 **Additional Subscriptions after Final Closing Date.**

After the Final Closing Date, the General Partner, with the approval of the Advisory Committee, is authorized to admit one or more Persons to the Partnership as Additional Limited Partners or accept additional Subscriptions from the Partners. The terms of any such admission or additional Subscription shall be fixed by the General Partner at the time of such admission or additional Subscription, with the approval of the Advisory Committee.

3.3.3 **Accession to Agreement.**

Each Person who is to be admitted as an Additional Limited Partner or substituted Limited Partner pursuant to this Agreement shall accede to this Agreement by executing (through a power of attorney or otherwise), together with the General Partner (for itself and as attorney for the other Partners), a Subscription Agreement by which it agrees to be bound by the terms of this Agreement as a Limited Partner. Such admission shall not require the consent or approval of any other Limited Partner.

3.3.4 **Anti-Money Laundering Provisions.**

The Limited Partners acknowledge that the Partnership, the General Partner and its Affiliates may be subject to certain anti-money laundering laws and related pronouncements and may otherwise be prohibited from engaging in transactions with, or providing services to, certain foreign countries, territories, entities and individuals, including without limitation, specially designated nationals, specially designated narcotics traffickers and other parties subject to government sanctions and embargo programs. In furtherance of the foregoing:

(a) Each Limited Partner hereby agrees to use its best efforts to ensure that:

(1) None of the monies that such Limited Partner will contribute to the Partnership shall be derived from, or related to, any activity that is deemed criminal under Cayman Islands law, Israeli law, United States law or the law of any other applicable jurisdiction; and

(2) No contribution or payment by such Limited Partner to the Partnership, to the extent that such contribution or payment is within such Limited Partner's control, and no distribution to such Limited Partner (assuming such distribution is made in accordance with instructions provided to the General Partner by such Limited Partner) shall cause the Partnership, the Management Company, the General Partner or any of the direct or indirect partners, members, stockholders, officers or directors of the General Partner to be in violation of the Proceeds of Crime

Act (As Revised), the Terrorism Act (As Revised), the Anti-Money Laundering Regulations (As Revised) (as interpreted in accordance with the accompanying Guidance Notes on the Prevention and Detection of Money Laundering and Terrorist Financing in the Cayman Islands published by the Cayman Islands Monetary Authority) or the Misuse of Drugs Act (As Revised) of the Cayman Islands, the United States Bank Secrecy Act, the United States Money Laundering Control Act of 1986, the United States International Money Laundering Abatement and Anti-Terrorist Financing Act of 2001, the Uniting and Strengthening America by Providing Appropriate Tools Required to Intercept and Obstruct Terrorism Act of 2001, the Israeli Money Laundering Prohibition Law of 2000, the Israeli Combat with Criminal Organizations Law of 2003, the Israeli Terror Financing Prohibition Law of 2005, the Bank of Israel Law of 2010 or any other anti-money laundering, bank secrecy or other similar laws or regulations of the Cayman Islands, the United States, Israel or of any other applicable jurisdiction, in each case as amended and any successor statute thereto and including all regulations promulgated thereunder (collectively, the "**Anti-Money Laundering Laws**").

(b) Each Limited Partner: (1) shall promptly notify the General Partner if, to the knowledge of such Limited Partner, there has been any violation of 3.3.4(a); (2) shall provide the General Partner, promptly upon receipt of the General Partner's written request therefor, with any additional information regarding such Limited Partner or its beneficial owner(s) that the General Partner deems necessary or advisable in order to ensure compliance with the Anti-Money Laundering Laws or all applicable laws, regulations and administrative pronouncements concerning money laundering and other criminal activities; and (3) understands and agrees that if, at any time, the requirements of 3.3.4(a) are not satisfied, or if otherwise required by the Anti-Money Laundering Laws or any applicable law or regulation related to other criminal activities, the General Partner may take appropriate actions to ensure that the Partnership and the General Partner are in compliance with all such applicable laws, regulations and pronouncements.

(c) Each Limited Partner acknowledges and agrees that (1) the Partnership or General Partner may release confidential information regarding such Limited Partner and, if applicable, any of its beneficial owners, to governmental authorities if the General Partner is legally obligated to or, in its sole discretion, determines that releasing such information is in the best interest of the Partnership in light of any regulations or administrative pronouncements promulgated under the laws referred to in 3.3.4(a), and (2) the General Partner, without the consent of any Limited Partner and notwithstanding any other provision of this Agreement, may amend any provision of this Agreement in order to effectuate the intent of this 3.3.4.

3.4 **MANAGEMENT AND CONTROL OF PARTNERSHIP.**

3.4.1 **Management by General Partner.**

The management, policies, control and conduct of the business of the Partnership shall be vested exclusively in the General Partner.

3.4.2 **Powers of General Partner.**

Except as otherwise explicitly provided herein, the General Partner shall have the power on behalf and in the name of the Partnership to implement the objectives of the Partnership and to exercise any rights and powers the Partnership may possess, including, without limitation, the power to cause the Partnership to take any actions and make any elections available to the Partnership under applicable tax or other laws (other than elections specifically reserved to the Partnership Representative or prohibited by 14.7.1). No Person, in dealing with the General Partner, shall be required to determine the General Partner's authority to make any commitment or engage in any undertaking on behalf of the Partnership, or to determine any fact or circumstance bearing upon the existence of the authority of the General Partner.

3.4.3 **Transactions between General Partner, Principals and Partnership.**

(a) The General Partner and the Principals shall not knowingly enter into any transaction which, at the time of such transaction, would violate in any material way their respective obligations to the Partnership.

(b) Without the approval of the Advisory Committee, the Partnership shall not engage in any lending or other financial transaction with the General Partner, the Management Company, any Principal or any Affiliate of any of the foregoing, other than transactions expressly contemplated by this Agreement, or transactions entered into in the ordinary course of the Partnership's activities on terms no less favorable to the Partnership than are generally afforded to unrelated third parties in comparable transactions.

3.4.4 **Co-investment Opportunities.**

(a) Each Limited Partner hereby acknowledges and agrees that the General Partner may offer, to other private investors, groups, partnerships, or corporations (including one or more Viola Credit III Investors who have expressed an interest in such opportunities), the right to participate in co-investment opportunities with the Partnership, whether or not the Partnership is participating in such co-investment opportunity, whenever the General Partner, in its discretion, so determines. The General Partner (or the Principals in lieu thereof) shall be entitled to participate in any such co-investment opportunities that are offered to all Partners (including Viola Credit III Investors) pro rata in proportion to Subscriptions (including subscriptions to the other Viola Credit III Funds).

(b) Each Limited Partner hereby acknowledges and agrees that in connection with any co-investment opportunity described in 3.4.4(a), the General Partner (1) shall be entitled to receive management fees, carried interest or other compensation, and (2) may organize one or more limited partnerships or other investment vehicles (including so-called

"opportunity funds") to facilitate such transaction, which vehicles may participate in more than one investment opportunity described in 3.4.4(a).

(c) Each Limited Partner hereby acknowledges and agrees that the General Partner may implement such other rules, conditions and/or policies that it deems reasonably necessary in connection with the operation of this 3.4.4 to the extent that such rules, conditions and/or policies are not inconsistent with the terms of this 3.4.4.

3.4.5 **Certain Actions of General Partner.**

(a) The Limited Partners hereby acknowledge that the General Partner may be prohibited from taking action for the benefit of the Partnership: (i) due to confidential information acquired or obligations incurred in connection with an outside activity permitted to the General Partner, its Affiliates, equity holders or other related Persons; (ii) in consequence of an equity holder, Affiliate or other related Person of the General Partner serving as an officer or director of an Originating Platform; or (iii) in connection with activities undertaken by an equity holder, Affiliate or other related Person of the General Partner prior to the date of this Agreement. No Person shall be liable to the Partnership or any Partner for any failure to act for the benefit of the Partnership in consequence of a prohibition described in the preceding sentence.

(b) The Partners recognize that the differing financial, regulatory, income tax and other status and circumstances of the Partners may give rise to conflicts of interest among the Partners with regard to the timing of capital calls, selection of investments, disposition of assets, making of tax elections, or other Partnership matters. Except as otherwise specifically provided in this Agreement, the General Partner, when making decisions or taking action with respect to the Partnership or its business, shall not be required to take into consideration the separate status or circumstances of any Partner or group of Partners.

3.5 **TIME COMMITMENT OF GENERAL PARTNER AND PRINCIPALS; OTHER ACTIVITIES.**

3.5.1 **Obligation to Devote Business Time to the Partnership.**

Except as otherwise provided in this Article 3 or as otherwise agreed to by the Advisory Committee, the General Partner and each of the Principals shall devote the vast majority of their business time to the affairs and activities of the Partnership and Related Entities until the earliest to occur of:

(a) The date on which at least seventy-five percent (75%) of the aggregate Subscriptions of all Partners has been invested, expended, committed, or reserved for future investments in existing Portfolio Investments and for reasonably anticipated Partnership Expenses (including the Management Fee);

(b) The permanent expiration of the Investment Period; or

(c) The date of the Partnership's dissolution.

Thereafter, the General Partner and the Principals shall devote such business time to the Partnership as may be reasonably necessary to manage its affairs and activities. A "**Related Entity**" shall mean:

(1) any Originating Platform; (2) the Management Company and any other entity engaged in performing services for the Partnership or, at the Partnership's request, for any Originating Platform; (3) any limited partnership or other investment vehicle organized by or associated with the General Partner for the purpose of facilitating co-investments with the Partnership by one or more Viola Credit III Investors or other Persons pursuant to 3.4.4; (4) any limited partnership or other investment vehicle managed by the Management Company or its Affiliates with an investment strategy that is not substantially the same as that of the Partnership; (5) any Successor Fund, and any of its originating platforms and management entities; (6) any other Viola Credit III Fund; (7) any Alternative Investment Vehicle; and (8) any Existing Fund, and any of its originating platforms and management entities.

3.5.2 **Other Activities of Partners.**

Subject to 3.5.1 and the other provisions of this Agreement, any Partner and its respective direct or indirect partners, members, stockholders, officers, directors, managers, trustees, employees, agents and any Affiliates of any of the foregoing may invest, participate, or engage in (for their own accounts or for the accounts of others), or may possess an interest in, other financial ventures, and investment, professional, civic and political activities of every kind, nature and description, independently or with others, including but not limited to: management of other investment partnerships; providing debt financing to companies, investment in, financing, acquisition or disposition of securities; investment and management counseling; providing brokerage and investment banking services; or serving as officers, directors, managers, consultants, advisers or agents of other companies, members of any investment committees, or partners of any partnership, members or managers of any limited liability company or trustees of any trust (and may receive fees, commissions, remuneration or reimbursement of expenses in connection with these activities), whether or not such activities may conflict with any interest of the Partnership or any of the Partners. Neither the Partnership nor any Partner shall have any rights, solely by virtue of this Agreement, in or to any activities permitted by this 3.5.2 or to any fees, income, profits or goodwill derived from such activities.

3.6 **SUCCESSOR FUND; OTHER INVESTMENT ENTITIES.**

3.6.1 **Successor Fund.**

Without the approval of the Advisory Committee, neither the General Partner, the Principals, nor the Management Company shall begin investing on behalf of a limited partnership or other investment vehicle with an investment strategy substantially the same as that of the Partnership (a "**Successor Fund**") prior to the expiration of the period during which the General Partner and the Principals are required to devote substantially all of their business time to the Partnership and Related Entities, as determined pursuant to 3.5.1; provided, however, that this limitation shall not apply to any other Viola Credit III Fund, any Alternative Investment Vehicle, an investment vehicle organized to invest primarily in the originating platforms of an Existing Fund or any investment vehicle organized by the General Partner for the purpose of facilitating co-investments with the Partnership pursuant to 3.4.4. Neither the Partnership nor any Partner shall, solely by reason of this Agreement, have any right, title or interest in or to any Successor Fund.

3.6.2 **Parallel Fund.**

3.6.2.1 **General**.

Notwithstanding anything in this Agreement to the contrary, the General Partner or any of its affiliates may form one or more limited partnerships or other investment vehicles or investment advisory programs to invest in parallel with the Partnership (each, a "**Parallel Fund**") in order to comply with securities laws or to address legal, tax, regulatory, accounting or other considerations (including leverage limitations or investment or borrowing restrictions) of investors in such entity or program. The Partnership and any Parallel Fund, if organized, are sometimes collectively referred to herein as the "**Viola Credit III Funds**." The Limited Partners of the Partnership and the limited partners or equivalent non-manager participants in any other Viola Credit III Fund are sometimes collectively referred to herein as the "**Viola Credit III Investors**."

3.6.2.2 **Co-Investment**.

Except (a) where restricted or prohibited by law, rule, regulation or other applicable restriction, or (b) where the potential returns to investors in the Partnership or a Parallel Fund would be unattractive due to legal, tax, regulatory, accounting or other considerations (including leverage limitations or investment or borrowing restrictions), such Parallel Fund(s) and the Partnership will operate in parallel and will participate in a portion of all investment opportunities (other than Temporary Investments) at the same time and on substantially the same terms as the Partnership in such proportion and pursuant to such allocation methodology as determined by the General Partner in its sole discretion (taking into consideration, inter-alia, leverage limitations or investment or borrowing restrictions), to the extent practicable. The Partnership and any Parallel Funds shall dispose of their investments at the same time, on substantially the same terms, and in the same relative amounts, to the extent practicable. The Partnership and any Parallel Fund shall share common Partnership Expenses related to Portfolio Investments in proportion to the capital invested by each entity in such Portfolio Investments and all other Partnership Expenses (other than the Management Fee) in proportion to their relative subscriptions, in each case, to the extent practicable.

3.6.2.3 **Investment Company Act Compliance**.

If the General Partner forms a Parallel Fund for purposes of compliance with the United States Investment Company Act of 1940, as amended (the "**Investment Company Act**"), or any Viola Credit III Investor shall cease to be eligible to participate in the Viola Credit III Fund in which it is invested for any reason, the General Partner may, in its sole discretion, require such Viola Credit III Investor to withdraw from the Viola Credit III Fund in which it is invested and become a limited partner of another Viola Credit III Fund for which such Viola Credit III Investor is eligible as provided in this 3.6.2, provided that the admission of such Viola Credit III Investor does not result in any of the adverse legal consequences for such new Viola Credit III Fund as described in 11.2.3 or 11.2.4 hereof. Any Viola Credit III Investor that is required by the General Partner to withdraw from a Viola Credit III Fund and become a limited partner of another Viola Credit III Fund (a "**Withdrawing Limited Partner**") shall be notified by the General Partner that its interest in the applicable Viola Credit III Fund will be exchanged for a limited partnership interest in another Viola Credit III Fund as of the date of such notice (the "**Withdrawal Date**"). As of the Withdrawal Date, the Withdrawing Limited Partner shall cease to be a partner of the prior Viola Credit III Fund for all purposes, except for its right to receive an interest in the new Viola Credit III Fund as hereinafter provided. As promptly as practicable following the Withdrawal Date, the General Partner shall amend the list of partners referred to in the limited partnership agreements of the applicable Viola Credit III Funds to reflect such withdrawal and admission. The prior Viola Credit III Fund shall transfer a portion of its assets, pro rata among all Portfolio Investments of the prior

Viola Credit III Fund based on such Withdrawing Limited Partner's relative Sharing Percentages with respect to such Portfolio Investments in such prior fund, representing the Withdrawing Limited Partner's interest in such Viola Credit III Fund to the new Viola Credit III Fund in exchange for a limited partnership interest in such Viola Credit III Fund and thereafter distribute to the Withdrawing Limited Partner, in full satisfaction of its interest in the applicable Viola Credit III Fund, an interest in the new Viola Credit III Fund. The Withdrawing Limited Partner's interest in the new Viola Credit III Fund, including such Withdrawing Limited Partner's capital account in the new Viola Credit III Fund, shall be established as if the new Viola Credit III Fund had made all investments in the assets transferred to the new Viola Credit III Fund by the prior Viola Credit III Fund on account of the Withdrawing Limited Partner's limited partnership interest as of the date such investments were made by the prior Viola Credit III Fund and all contributions from and all distributions and allocations of income and loss to the Withdrawing Limited Partner with respect to the prior Viola Credit III Fund had been made with respect to the new Viola Credit III Fund. A corresponding portion of the General Partner's interest in the applicable Viola Credit III Funds may be similarly exchanged.

3.6.3 **Allocation of Investments and Expenses Among Funds.**

If, upon subsequent closings of the Viola Credit III Funds, there is a change in the ratios of the aggregate subscriptions made to each such fund to the aggregate subscriptions made to all such funds, then the General Partner shall use commercially reasonable efforts to adjust (a) the allocation of existing Portfolio Investments between and among such funds, including by transferring a portion of investments from one fund to another, and (b) the relative amounts paid by such funds in respect of expenses, to reflect as nearly as practicable the situation that would have existed if the respective aggregate subscriptions made to each fund had always been in the same relative proportions as those in effect after the change in the ratio of subscriptions.

3.6.4 **Alternative Investment Vehicles; Investment Subsidiaries.**

(a) Notwithstanding anything in this Agreement to the contrary, and in addition to the General Partner's authority to form a Parallel Fund, if the General Partner determines in good faith that for legal, tax, regulatory, accounting or other similar reasons it is desirable that an investment be made utilizing an alternative investment structure, the General Partner shall be permitted to structure the making of all or any portion of such investment outside of the Partnership, by requiring any Partner or Partners to, and such Partner or Partners shall, subject to 6.4, make such investment either directly or indirectly in, and become a limited partner, member, stockholder or other equity owner of, one or more partnerships, limited liability companies, corporations or other vehicles (other than the Partnership) (each, an "**Alternative Investment Vehicle**") (i) of which the General Partner, an Affiliate of the General Partner or one or more of their respective direct or indirect partners, members, managers, directors or officers shall serve as general partner, manager or in a similar capacity and (ii) which shall invest on a parallel basis with, or in lieu of, the Partnership, as the case may be. Additionally, the General Partner shall be permitted to form more than one Alternative Investment Vehicle for a single investment (including an existing Portfolio Investment) and may require that different Partners invest in different Alternative Investment Vehicles as the General Partner determines to be necessary or advisable for legal, tax, regulatory, accounting or other similar reasons. The General Partner's

obligations under 4.6 will apply to any Alternative Investment Vehicle in which an ERISA Partner invests, and the governing documents of each Alternative Investment Vehicle in which an ERISA Partner invests shall contain ERISA provisions, taken as a whole, substantially no less favorable to the ERISA Partners than those contained in this Agreement. Nothing in this 3.6.4 shall restrict or apply to the formation of, or restrict the operation of, any Parallel Fund.

(b) In connection with a Limited Partner first being admitted as a limited partner, member, stockholder, or similar equity owner of (other than a holder of a beneficial interest in such entity that is not permitted under the applicable law governing such entity to be admitted as a limited partner, member, stockholder or similar equity owner of) an Alternative Investment Vehicle, the General Partner shall provide such Limited Partner promptly thereafter with a copy of the partnership or similar agreement governing such Alternative Investment Vehicle. The organizational documents of any such Alternative Investment Vehicle may be executed on behalf of Limited Partners investing therein by the General Partner pursuant to 14.8.1.

(c) The Limited Partners and the General Partner (or its Affiliate), to the extent of their investment participation in an Alternative Investment Vehicle, may be required to make capital contributions directly to such Alternative Investment Vehicle to the same extent, for the same purposes and on substantially the same terms and conditions as Partners are required to make capital contributions to the Partnership, and such capital contributions shall reduce the unpaid Subscription of each Partner to the same extent that it would be reduced if made to the Partnership.

(d) The provisions of this 3.6.4 may be effected by initially forming an Alternative Investment Vehicle, in whole or in part, as an investment of the Partnership, and then distributing the interests in such investment as a special distribution not otherwise subject to the terms of this Agreement to such Partners, and in such amounts, as is necessary or desirable in order to effectuate the purposes of this 3.6.4, as determined by the General Partner.

(e) It is the intention of the Partners that the Partnership and each Alternative Investment Vehicle be treated as a separate entity (and not in partnership with one another) for United States federal and other income tax purposes. The Partnership and each Alternative Investment Vehicle shall each maintain separate books of account and the Partnership shall not commingle its assets and liabilities with those of any Alternative Investment Vehicle. All items of income, gain, loss and deduction of the Partnership shall be allocated to the Partners, all distributions by the Partnership shall be made to the Partners and all returns of distributions by the Partners shall be made to the Partnership. All items of income, gain, loss and deduction of any Alternative Investment Vehicle shall be allocated solely to the partners or members of such Alternative Investment Vehicle, all distributions by any Alternative Investment Vehicle shall be made solely to the partners or other members of such Alternative

Investment Vehicle and all returns of distributions by the partners or members of any Alternative Investment Vehicle shall be made solely to such Alternative Investment Vehicle. Subject to the foregoing, but notwithstanding any other provision in this Agreement to the contrary, the economic provisions of this Agreement and the partnership or similar agreement or instrument governing such Alternative Investment Vehicle are intended to be, and hereby shall be, construed in all material respects and effected in such a manner as to cause each Limited Partner individually, and the General Partner and its Affiliated entities that may be utilized to effectuate this 3.6.4 collectively, to receive the same aggregate allocations and distributions, at substantially the same times, from the Partnership and the Alternative Investment Vehicles as they would have been entitled to receive if (i) all capital contributions to the Alternative Investment Vehicle were made to, and all distributions from the Alternative Investment Vehicle were made by, the Partnership, (ii) all Alternative Investment Vehicle investments were initially acquired by, and were at all times held by, the Partnership,(iii) all Alternative Investment Vehicle expenses (including management fees incurred or paid by any Alternative Investment Vehicle) were incurred and paid solely by the Partnership, and (iv) all Alternative Investment Vehicle management fee offsets were with respect to the Partnership; provided, however, that the allocations and distributions may differ as a result of taxes and other expenses paid or payable, directly or indirectly, by the Alternative Investment Vehicle (or any entity included in such vehicle or through which such vehicle invests), and, to the extent practicable, such taxes and other expenses shall be borne by the Limited Partners for whose benefit the Alternative Investment Vehicle was established and shall not reduce the Carried Interest Distributions to the General Partner. Without limiting the foregoing, there shall be no duplication of management fees, management fee offsets, recalls of distributions or general partner return obligations among the Partnership and the Alternative Investment Vehicles. In the event that a Limited Partner Transfers any portion of its interest hereunder in the absence of a corresponding Transfer of a proportionately equivalent interest of such Limited Partner in each Alternative Investment Vehicle in which it is a limited partner or similar investor, or if any limited partner or similar investor in any Alternative Investment Vehicle Transfers any portion of its interest in any such entity without a corresponding Transfer of a proportionately equivalent interest hereunder, such corresponding transferred and retained interest shall continue to be subject to the provisions of this 3.6.4, unless otherwise determined by the General Partner in its sole discretion. Except as otherwise determined by the General Partner on or about the time of formation of the Alternative Investment Vehicle, any issue regarding the interpretation of how the Partnership and the Alternative Investment Vehicle interact shall be governed by the laws of the Cayman Islands.

(f) The General Partner's return obligations pursuant to 10.5.3 and the corresponding return obligations of the general partners or similar participants in the Alternative Investment Vehicles, shall be, in the aggregate, computed taking into account the provisions of 3.6.4(e) and shall be allocated among such Persons pro rata based on the aggregate

unreturned Carried Interest Distributions received by each of them or on such other basis as determined by the General Partner.

(g) Any Limited Partner that defaults on its obligations to any Alternative Investment Vehicle in which it invests and becomes a "defaulting partner," "defaulting member" or similar defaulting Person under an agreement or instrument governing such Alternative Investment Vehicle (after giving effect to any applicable cure periods thereunder) shall also be a Defaulting Partner hereunder and any Limited Partner that becomes a Defaulting Partner of the Partnership shall also be a "defaulting partner," "defaulting member" or similar defaulting Person under an agreement or instrument governing such Alternative Investment Vehicle.

(h) Investments made by Alternative Investment Vehicles alongside (rather than in lieu of) the Partnership shall be made and disposed of at substantially the same time and on substantially similar terms as the Partnership, subject in each case to any legal, tax, regulatory, accounting or other similar considerations that may limit the timing, amount or type of such investment or disposition.

(i) If the General Partner determines in good faith that for legal, tax, regulatory, accounting or other similar reasons, or to otherwise facilitate a borrowing, or to facilitate the acquisition of, management of or lending to Portfolio Investments, it is desirable that all or a portion of an investment be made by the Partnership through one or more partnerships, corporations, trusts or other entities all or substantially all of the beneficial interests in which are held directly or indirectly by the Partnership (an "**Investment Subsidiary**"), the General Partner shall be authorized to establish such Investment Subsidiary and cause the Partnership to utilize it for purposes of making one or more Portfolio Investments. In connection with such use of an Investment Subsidiary, the General Partner shall also be authorized, but not required, to adjust in good faith the provisions of this Agreement relating to (i) the allocation of Net Gain, Net Loss, Partnership Expenses and other similar items and (ii) distributions, to minimize the tax and other costs associated with the use of the Investment Subsidiary and to cause such tax and other costs to be borne directly or indirectly by the Limited Partner(s) for whose benefit the Investment Subsidiary was established (and, for the avoidance of doubt, shall not reduce Carried Interest Distributions to the General Partner).

(j) To the extent permitted by and consistent with applicable law, any letter agreement or side letter entered into in connection with this Agreement pursuant to 14.8.11 shall give rise to substantially the same rights, *mutatis mutandis*, with respect to any Alternative Investment Vehicle to the extent such rights are applicable to such Alternative Investment Vehicle.

3.6.5 **Feeder Entities.**

(a) The General Partner may organize and operate one or more investment vehicles (the "**Feeder Entities**") to be admitted as Limited Partners for the purpose of permitting certain investors to invest, through such Feeder

Entities, in the Partnership (or, in the case of existing Limited Partners, so that they may hold their existing interest in the Partnership through such Feeder Entities). The General Partner may determine that any other Limited Partner shall be treated as a Feeder Entity for the purposes of this Agreement. Each Feeder Entity shall be designated as such by the General Partner in the books and records of the Partnership. To the greatest extent possible, each holder of an interest in a Feeder Entity (an "**Equity Holder**") shall generally have the same rights and obligations with respect to the Partnership as such Equity Holder would have had if its interest in the Partnership was held as a Limited Partner of the Partnership rather than as an Equity Holder, and the provisions of this Agreement shall be interpreted and enforced by the General Partner, in good faith and to the extent feasible, in a manner to give effect thereto. For example:

(1) The Partnership shall maintain a separate Capital Account for each Feeder Entity and shall maintain, for each Feeder Entity that is organized and operated by the General Partner, separate sub-Capital Accounts for each Equity Holder, each such sub-Capital Account representing the separate Capital Accounts that each Equity Holder would have if its interest in the Partnership was held as a Limited Partner of the Partnership rather than as an Equity Holder.

(2) Upon the failure of any Equity Holder to make a required capital contribution to a Feeder Entity and a corresponding failure of such Feeder Entity to make its required capital contribution to the Partnership, 6.3 shall be interpreted and applied as necessary and to the extent feasible to ensure that only the defaulting Equity Holder, and no other Equity Holder of such Feeder Entity, is adversely affected as a result of the Feeder Entity's failure to make its capital contribution.

(3) The Management Fee may be calculated with respect to each Equity Holder (and not the Feeder Entity itself), and, to the extent feasible, the Carried Interest Distributions attributable to the Feeder Entity's interest in the Partnership shall be determined as if each Equity Holder held a direct interest in the Partnership as a Limited Partner (not taking into account any tax considerations or other expenses incurred by the Feeder Entity).

(4) In counting votes of the Limited Partners (or groups of Limited Partners) for any purpose under this Agreement, the vote of a Feeder Entity shall be divided into separate votes for, against and not voting with respect to any matter based on the numbers of affirmative and negative responses received (or lack of responses) of the Equity Holders of such Feeder Entity, appropriately adjusted where the vote or consent is by a group of Limited Partners and some, but not all, of such Equity Holders are members of such group.

(5) Equity Holders may serve as members of the Advisory Committee subject to the terms, conditions and limitations set forth in 3.7.

(6) Any notices or reports required to be given to the Limited Partners shall be sent concurrently to the Equity Holders of each Feeder Entity that is organized and operated by the General Partner.

(b) Expenses of or relating to the organization or operation of a Feeder Entity that is organized by the General Partner shall be borne by the Partnership and shall be treated as a Partnership Expense or Organizational Expense, as applicable, for the purposes of 5.1 and 5.2.1.

3.7 ADVISORY COMMITTEE.

3.7.1 Appointment; Removal.

Not later than the Final Closing Date, the Partnership shall form a committee comprised of at least three members (the "**Advisory Committee**"), which shall consist exclusively of Viola Credit III Investors (or designated representatives thereof), who shall be appointed by the General Partner and who may be removed or replaced by the General Partner. If one or more Parallel Funds have been formed, then the same Advisory Committee shall serve as the Advisory Committee for the Partnership and such Parallel Fund(s) and, to the extent feasible and appropriate, shall make decisions with respect to all such entities on a joint and consistent basis.

3.7.2 Duties.

The duties of the Advisory Committee (or its sub committees) shall be to:

(a) Be available to confer with the General Partner regarding the progress of the Viola Credit III Funds' investments;

(b) Review and advise the General Partner regarding potential conflicts of interest submitted to them by the General Partner; and

(c) Undertake such other duties as are required by this Agreement or reasonably requested by the General Partner.

Neither the Advisory Committee nor any member thereof (acting in such capacity) shall undertake any action on behalf of the Partnership with any third party or have the power to bind any Viola Credit III Fund or any authority to act for any Viola Credit III Fund or on its behalf. The Advisory Committee shall also be authorized to approve certain matters on behalf of the Limited Partners that otherwise would require approval by the Limited Partners under the Advisers Act. Each Limited Partner hereby appoints the Advisory Committee as its representative to approve any "assignment" of any investment advisory contract between the General Partner, the Management Company and/or the Partnership in accordance with Section 205 of the Advisers Act and any other transaction that requires "client" consent pursuant to Section 206 of the Advisers Act.

3.7.3 Voting; Adoption of Rules and Procedures.

Except as otherwise provided in this Agreement, all approvals, disapprovals and other actions taken by the Advisory Committee shall be authorized by a majority in number of the Advisory

Committee; *provided that* any approval, disapproval or other action to be taken by the Advisory Committee under this Agreement may instead, at the option of the General Partner, be taken by a majority-in-interest of the Viola Credit III Investors. Any approval, disapproval or other action required or permitted to be taken by the Advisory Committee may be taken by written consent (which may include affirmation by e-mail) signed by not less than the percentage of members of the Advisory Committee which is required to take such approval, disapproval or other action. The General Partner may adopt other rules and procedures, not inconsistent with this Agreement, relating to the conduct of the Advisory Committee's affairs, provided that such rules and procedures shall be subject to the approval of the Advisory Committee.

ARTICLE 4 - INVESTMENTS AND ACTIVITIES

4.1 AMOUNT OF INVESTMENTS.

Except as limited by Article 6, the Partnership may continue to make Portfolio Investments throughout the Investment Period, and thereafter as contemplated by 6.1.4.1.

4.2 OTHER INVESTMENT LIMITATIONS.

4.2.1 **Proscribed Investments.**

The Partnership shall not participate in:

(a) An initial investment in a company whose principal business is the development and subsequent sale (and/or exploitation through long-term leasing) of real estate.

(b) Investments in any uncovered options or any other derivative securities, or any transaction in which securities are sold short by the Partnership in an uncovered transaction; provided, however, that nothing in this 4.2.1(b) shall prevent the Partnership from (1) acquiring options or warrants exercisable for, or other securities convertible into, equity securities or assets at a pre-determined or pre-negotiated exercise price or conversion ratio;

(2) acquiring options, warrants or convertible securities directly from the issuer (or any Affiliate of the issuer) of the securities for which such options, warrants or convertible securities are exercisable or convertible;

(3) investing in or purchasing options or other derivative securities for the purpose of reducing the Partnership's risk in holding publicly traded securities of any Portfolio Investment; or (4) engaging in hedging transactions designed to protect the Partnership against fluctuations in currency exchange rates.

4.2.2 **Investments Permitted with Advisory Committee Approval.**

Without the approval of the Advisory Committee:

(a) The aggregate principal amount outstanding of Portfolio Investments in any single unsecured loan shall not exceed one half of a percent (0.5%) of the Target Portfolio Amount;

(b) The aggregate principal amount outstanding of Portfolio Investments in any single secured loan shall not exceed point two percent (2.0%) of the Target Portfolio Amount;

(c) The aggregate principal amount of Portfolio Investments in loans provided to a single Originating Platform plus any amount invested in Equity Kickers in such Originating Platform, will not exceed 20% of the Target Portfolio Amount; and

(d) The aggregate amount of Portfolio Investments in Equity Kickers (by the exercise of warrants, convertible notes or through a direct investment for capital stock) shall not exceed ten percent (10%) of the aggregate Subscriptions of all Partners.

The "**Target Portfolio Amount**" shall mean, as of any point in time, the greatest of (a)$1 billion, (b) the aggregate Subscriptions of the Partners as of such time, and (c) the aggregate amount of commitments made by the Partnership in or to Originating Platforms since the inception of the Partnership (regardless of whether such commitments have been fully funded).

4.2.3 **Conflicts of Interest.**

(a) Without the approval of the Advisory Committee, the Partnership shall not invest in the securities of or make any Portfolio Investment in (or provide financing to) any entity in which any Existing Fund, account, or similar investment vehicle managed by the Management Company, the General Partner, any Principal or any Affiliate of any of the foregoing has a pre-existing direct ownership interest; provided, however, that the foregoing restriction shall not apply to follow-on investments in any company in which an Existing Fund, account or similar investment vehicle managed by the Management Company, the General Partner, any Principal or their respective Affiliates, with an investment strategy and objective substantially the same as the Partnership, has a pre-existing investment.

(b) From and after the Initial Drawdown Date until the date the General Partner may begin investing on behalf of a Successor Fund, the General Partner shall make available to the Partnership a portion of all investment opportunities which come to the attention of the General Partner or any of the Principals, according to such allocation methodology as may be determined by the General Partner in its sole discretion, except for such investment opportunities which: (1) the General Partner or such Principal, as the case may be, reasonably believes are not within the purposes of, or appropriate for, the Partnership; or (2) are in entities in which an Existing Fund, the General Partner, or a Principal has a pre-existing ownership interest (including an interest in outstanding indebtedness).

(c) Without the approval of the Advisory Committee, the General Partner and the Principals may not invest for their own accounts in the securities of

any Portfolio Investments; provided, however, that the foregoing restriction shall not apply to (1) purchases of securities in any Portfolio Investment that is traded on a Public Securities Market, (2) purchases of securities pursuant to the exercise of options or warrants received in connection with the performance of services, or (3) co-investments with the Partnership pursuant to 3.4.4(a).

4.3 **BORROWING.**

The General Partner, on behalf of and in the name of the Partnership, either directly or through its ownership of any Investment Subsidiary, may borrow money (including, but not limited to, amounts borrowed in respect of any Subscription or capital commitment secured credit facility) and enter into guarantees of debt of Parallel Funds, any Feeder Entity or Investment Subsidiaries. Such borrowings may be employed at the level of the Partnership and at the level of any Alternative Investment Vehicle or Investment Subsidiary. The Partnership may establish Investment Subsidiaries in connection with the borrowing against any of its assets or in connection with the securitization of its loans. The aggregate borrowing by the Partnership and any Alternative Investment Vehicle or Investment Subsidiary (on a look-through basis), shall not exceed one (1) times the aggregate capital commitments of the Partners; provided, however, that such limitation (a) shall not apply to amounts borrowed in respect of any short-term credit facility to bridge capital calls that is secured by, among other collateral, Subscription or capital commitments, (b) shall not apply to any hedging line of credit and (c) shall not include amounts borrowed but not drawn or otherwise deployed in a Portfolio Investment. The amount of any borrowing for purposes of the foregoing restriction shall be measured at the time the Partnership first makes a Portfolio Investment utilizing the proceeds from such borrowing.

In connection with any borrowing or guarantee permitted hereunder, the General Partner, on behalf of itself and the Partnership, maintains the right to pledge, mortgage, assign, cross-collateralize, transfer and grant a security interest on any assets of the Partnership and general intangible rights of the General Partner in and under this Agreement, including, without limitation, a right to pledge the right to call unpaid Subscriptions obligated to be made by the Partners, the right to initiate capital calls and collect the unfunded capital commitments of the Partners, any cash or non-cash proceeds of the foregoing and provide access to any books and records related thereto, as security for such borrowings or guarantees. The Partnership, Parallel Funds, Feeder Entity or Investment Subsidiaries may be jointly and severally liable for any such indebtedness, the Partnership may guarantee any such indebtedness of Parallel Funds, a Feeder Entity or Investment Subsidiaries, and the security granted by the Partnership or any such Parallel Fund, Feeder Entity or Investment Subsidiary may secure such obligations. The Partners may therefore be required to confirm, from time to time, the terms of the capital commitments to the lender, to honor capital calls made by the lender, to provide relevant information, representations or diligence materials to the lender and to execute other documents as may reasonably be requested by any lender. To the extent that the Partnership has outstanding liabilities under any credit facility or other borrowing or guarantee obligations, each Partner agrees that it shall be unconditionally obligated to fund any remaining unfunded portion of its Subscription in accordance with the terms of this Agreement and such Partner's Subscription Agreement (including with respect to a drawdown issued by a lender), without defense, counterclaim or offset of any kind, including, without limitation, any defense arising under Section 365(c) of the U.S. Bankruptcy Code, if applicable, and any defense based upon the performance (or failure thereof) of the General Partner or any other Person hereunder; provided, however, that the foregoing shall not limit any Partner from asserting any claim in a separate action against the General Partner or the Partnership (which claims shall be subordinate to any claim that the lenders (or any of them) have against the Partnership or the General Partner or such Partner relating to such credit facility or other obligations). For the avoidance of doubt, the lenders to the Partnership may rely upon, and are express third party beneficiaries of, the provisions of this Section 4.3.

The General Partner may also cause the Partnership to provide such lender with customary indemnity obligations under the related loan documents.

4.4 [RESERVED].

4.5 UNITED STATES TRADE OR BUSINESS.

The Partnership intends to conduct its United States activities indirectly through a limited liability company that elects to be taxed as a corporation for U.S. federal income tax purposes, which should reduce the possibility that the Partnership could be treated for U.S. federal income tax purposes as being engaged in the conduct of a "trade or business within the United States," within the meaning of Section 864(b) of the Code.

4.6 ERISA COMPLIANCE.

To the extent "benefit plan investors" hold twenty-five percent (25%) or more of the aggregate Subscriptions of all Partners (such determination to be made in accordance with the Plan Assets Regulation), the General Partner shall use commercially reasonable efforts to cause the Partnership to conduct its activities so that the Partnership shall qualify as a "venture capital operating company" as defined in the Plan Assets Regulation. For purposes of determining that the Partnership so qualifies, the annual valuation period of the Partnership for purposes of the Plan Assets Regulation shall be the ninety (90)-day period commencing on each anniversary of the date on which the Partnership makes its first investment (other than short-term investments pending long-term commitment), unless otherwise determined by the General Partner. Notwithstanding the foregoing, the General Partner shall have the authority to take any action necessary or advisable in the General Partner's sole discretion to cause the Partnership not to hold "plan assets" of any ERISA Partners under the Plan Assets Regulation (including, without limitation, by requiring the withdrawal or transfer of all or a portion of the interests in the Partnership held by one or more ERISA Partners) and may mandatorily redeem interests in the Partnership of all the ERISA Partners to the extent necessary for the Partnership to avoid "plan assets" status.

4.7 WAREHOUSED INVESTMENTS.

The Partnership, the Management Company, the Principals or their Affiliates, or such other entities affiliated with Principals may, prior to the Initial Drawdown Date, enter into one or more investments suitable for the Partnership (each such investment, a "**Warehoused Investment**") listed on Appendix III. Notwithstanding anything to the contrary in this Agreement, the General Partner is hereby authorized within six (6) months following the Initial Drawdown Date to cause the Partnership to purchase each Warehoused Investment from the General Partner, the Management Company or any of their Affiliates (as applicable), for a cash amount equal to the sum of the acquisition cost of such Warehoused Investment, less any principal repayments in respect of such Warehoused Investment, plus any out-of-pocket costs associated with acquiring, holding and transferring such Warehoused Investment.

ARTICLE 5 - FEES AND EXPENSES

5.1 ORGANIZATIONAL EXPENSES

The Partnership shall reimburse the General Partner and its Affiliates for all Organizational Expenses incurred by any of them; provided, however, that any Organizational Expenses in excess of the greater of one million dollars ($1,000,000) or one half of a percent (.5%) of the aggregate Subscriptions of all Partners shall be borne by the General Partner through a reduction in the Management Fee otherwise payable by the Partnership pursuant to 5.3.2.

5.2 PARTNERSHIP EXPENSES AND MANAGEMENT FEE.

5.2.1 **Payment of Expenses.**

5.2.1.1 General.

Subject to 5.2.1.2, the Partnership agrees to assume and pay all operating expenses attributable to the Partnership's activities (collectively, "**Partnership Expenses**") on the terms and conditions herein set forth.

5.2.1.2 General Partner Expenses.

The General Partner or its Affiliates shall bear only the following expenses: compensation and expenses of the employees of the General Partner or the Management Company (as applicable), including salaries of the members of the General Partner in their capacity as employees of, or service providers to, the Management Company; fees and expenses for administrative, clerical and related support services, office space and facilities, utilities and telephone, insofar as such fees and expenses relate to the investment activities of the Viola Credit III Funds; and Placement Fees (if applicable).

5.2.1.3 Partnership Expenses.

Partnership Expenses borne by the Partnership shall include, without limitation: the Management Fee; Organizational Expenses (subject to 5.3.2); liquidation expenses of the Partnership; any sales or other taxes (other than taxes treated as amounts distributed by the Partnership, such as a Tax Liability), including, without limitation, any value added tax assessed against the Partnership, the General Partner or any Affiliate of the General Partner on account of payments or distributions made pursuant to this Agreement, fees or government charges which may be assessed against the Partnership; commissions or brokerage fees or similar charges incurred in connection with the purchase or sale of securities (including any merger fees payable to third parties, reverse termination fees, forfeited deposits or other similar payments incurred in connection therewith and whether or not any such purchase or sale is consummated); expenses attributable to normal and extraordinary investment banking services which are at arm's length and consistent with common market practices, commercial banking, auditing and accounting expenses associated with the Partnership's financial statements, tax returns, appraisal, legal, custodial and registration services (including travel expenses and advisors); expenses of members of the Advisory Committee (including reasonable travel related costs and expenses); the costs and expenses (including travel-related expenses) of hosting annual and special meetings for the Partnership, or otherwise holding meetings or conferences with Limited Partners, whether individually or in a group; the costs and expenses associated with attending industry conferences and marketing expenses for trade associations; costs and expenses related to any activities with respect to protecting the confidential or non-public nature of any information or data; all fees and expenses related to establishing any credit facility and all fees and expenses relating to any borrowings under any credit facility or other borrowings by the Partnership, including without limitation any interest expense for borrowed money financing fees, margin calls, up-front fees, pre-payment fees, maintenance fees, unused facility fees and other costs and expenses (including legal costs and expenses); all fees, costs, expenses, liabilities and obligations incurred in identifying, investigating, evaluating, diligencing, negotiating, organizing, structuring, studying sourcing, trading, valuing, appraising, rating, holding or selling and disposing of actual or potential Portfolio Investments; developing costs and expenses for software, subscriptions and other databases for purposes of sourcing, monitoring and valuing investments; all expenses relating to any investigation, administrative or other proceedings,

litigation and threatened litigation involving the Partnership, including indemnification expenses and any judgment, other award or settlement entered into in connection therewith; expenses attributable to normal and extraordinary investment banking, commercial banking, accounting, auditing, appraisal, legal, finder's, custodial, administrative, transfer and registration services provided to the Partnership and any expenses attributable to consulting services, including in each case services with respect to the proposed purchase or sale of securities by the Partnership that are not reimbursed by the issuer of such securities or others (whether or not any such purchase or sale is consummated); all fees, costs and expenses associated with the organization, operation and maintenance of any subsidiaries (including any Investment Subsidiaries), holding companies or special purpose vehicles relating to the Partnership; travel expenses in connection with the investment activities of the Partnership; expenses associated with outsourcing certain financial reporting and accounting services (including the costs of licensing, implementing and maintaining any web portal, extranet tools or other reporting tools) provided to the Partnership; costs of financial statements and other reports (including Schedule K-1s) to and other communications with the Partners, as well as costs of all governmental returns, reports and filings; costs of preparing and distributing side letter and most favored nation elections; costs and expenses related to any proposed or enacted amendments to, and any waivers, consents or approvals pursuant to, the constituent documents of the Partnership, the General Partner and the Management Company; governmental registration, filing and licensing costs and fees relating to the Partnership, the General Partner and the Management Company (including any filings, registrations or reports pursuant to laws in jurisdictions in which the Partnership invests, has Partners domiciled, or otherwise located in, or otherwise does business and any legal fees and expenses of outside counsel and other service providers with respect thereto); premiums for liability or other insurance permitted under 12.2.4; and all other expenses properly chargeable to the activities of the Partnership.

5.2.1.4 Management Company.

The General Partner, at its own cost and expense, may delegate to the Management Company, an Affiliate of the General Partner, any of the management or administrative responsibilities of the General Partner under this Agreement; provided, however, that the General Partner shall not delegate to the Management Company the authority to select investment opportunities or to make investment-related decisions on behalf of the Partnership, and the Management Company shall not have the authority to act in the name of or bind the Partnership. Any such delegation shall not relieve the General Partner of its own duties and obligations to the Partnership as set forth in this Agreement.

5.2.2 **Management Fee.**

5.2.2.1 Amount.

Subject to the limitations set forth below and except as provided in this Agreement, the Partnership shall pay the General Partner, or a designated Affiliate thereof, a management fee (the "**Management Fee**") for the investment advice and other services to be provided hereunder. Commencing upon the Initial Closing Date for each fiscal quarter thereafter until the last day of the fiscal quarter of the term of the Partnership (subject to extension in accordance with 9.1), the Management Fee shall be an aggregate amount (plus value added taxes thereon) calculated with respect to each Limited Partner (other than a Designated Person) equal to the product of 0.375% (i.e., 1.5% per annum) multiplied by the Invested Capital of such Limited Partner. "**Invested Capital**" in respect of each Limited Partner shall mean such Limited Partner's Contributions attributable to Portfolio Investments, less (i) amounts distributed to the Partnership attributable to Dispositions (but no Disposition of a Portfolio Investment shall reduce a Limited Partner's Invested

Capital in respect of such Portfolio Investment below zero), and in the case of partial Disposition, each Limited Partner's Invested Capital shall be reduced proportionately with the amount of such Portfolio Investment sold, and (ii) the Cost of any Portfolio Investment that has been permanently written off. The Management Fee payable for any period of less than a full fiscal quarter shall be proportionately adjusted based upon the ratio the number of days in such period bears to ninety (90).

5.2.2.2 Timing of Payments.

Payments of the Management Fee shall be calculated and made quarterly in advance on the first day of each fiscal quarter of the Partnership. The first payment shall be due upon the Initial Drawdown Date. The Partnership's first payment shall include the pro rata amount due from the Initial Closing Date to the beginning of the first succeeding fiscal quarter of the Partnership following the Initial Drawdown Date.

5.3 **MANAGEMENT FEE ADJUSTMENTS.**

5.3.1 **Adjustment for Fees and Commissions from Originating Platforms.**

The General Partner, the Management Company and the Principals shall be permitted to receive fees, commissions and other compensation from entities other than the Partnership; provided, however, that:

(a) Advisory fees, break-up fees, director's fees, collateral management fees, consulting fees, commitment fees, monitoring fees, and success fees or other remuneration (including any options, warrants or other equity securities, but excluding reimbursement of expenses) paid during such year to the General Partner, the Management Company or any Principal by Originating Platforms for services rendered in respect of the Partnership's allocable portion of a Portfolio Investment by such Persons ("**Originating Platform Remuneration**") shall be used to reduce the Management Fee (but not below zero) by one hundred percent (100%) of such amount, subject to 5.3.1(b) and (c).

(b) The amount of any Originating Platform Remuneration to be so applied shall be applied first against the quarterly payment next following the date of the determination of such net remuneration and then against each successive quarterly payment until such net remuneration has been fully utilized.

(c) For purposes of 5.3.1(b), a fee reduction shall be deemed to have occurred when Originating Platform Remuneration is actually received by the remunerated Person and the amount of the net remuneration (and related reduction) has been determined in good faith by the General Partner. In the case of any fees paid in: (1) cash, such fees shall be deemed to be in an amount equal to the gross amount of those fees reduced by all applicable taxes; and (2) consideration other than cash, such fees shall be deemed to have been received by the remunerated Person when such consideration has been disposed of for cash and shall be deemed to be in an amount equal to the proceeds of such disposition net of acquisition and

other transaction expenses (including any taxes thereon or attributable thereto).

(d) If any Originating Platform Remuneration is paid by an Originating Platform in which Parallel Funds, Existing Funds, Successor Funds and/or investment vehicles organized by the General Partner for the purpose of facilitating co-investments with the Partnership pursuant to 3.4.4 hold an investment, the General Partner shall determine that portion of such amounts to be applied pursuant to 5.3.1(a) and (b) based on the relative amounts invested in such Originating Platform by the Parallel Funds, Existing Funds, Successor Funds and/or investment vehicles organized by the General Partner for the purpose of facilitating co-investments with the Partnership pursuant to 3.4.4.

(e) Notwithstanding the other provisions of this 5.3.1, Originating Platform Remuneration shall not include any one-time transaction and/or structure fees charged by the General Partner in connection with a Portfolio Investment (including with respect to any co-investment opportunity) ("**Transaction Fees**"); provided, however, that, to the extent any Transaction Fee attributable to a single Portfolio Investment exceeds one half of a percent (0.5%) of the total commitments of the Partnership and any Parallel Funds to the Portfolio Investment, such excess shall be used to reduce the Management Fee as set forth in 5.3.1(a).

5.3.2 **Adjustment for Excess Organizational Expenses.**

The Management Fee otherwise payable for each of the first four years after the Initial Drawdown Date shall be reduced (but not below zero), following the application of 5.3.1, by an amount equal to one-fourth of any Organizational Expenses paid by the Partnership in excess of the greater of one million dollars ($1,000,000) or one half of a percent (.5%) of the aggregate Subscriptions of all Partners (plus any applicable value added taxes thereon); provided, that if the full amount of excess Organizational Expenses is not offset in such four-year period due to the application of 5.3.1, then the Management Fee otherwise payable thereafter shall be reduced (but not below zero), following the application of 5.3.1, by the remaining amount of such excess Organizational Expenses.

5.3.3 **Allocation of Management Fee Reduction.**

Any reduction in the Management Fee pursuant to 5.3.1 and 5.3.2 shall be allocated among the Limited Partners in the ratio of the quarterly payments of the Management Fee payable by or determined with respect to such Limited Partners which are to be so reduced.

5.4 **DIRECT ERISA PARTNER PAYMENTS.**

If capital contributions by ERISA Partners are deferred pursuant to 6.1.2, each ERISA Partner may, in the General Partner's sole and absolute discretion, nevertheless be required to pay its pro rata share of each payment of Partnership Expenses (including Organizational Expenses and the Management Fee) directly to the General Partner or its designated Affiliate, as applicable, prior to the date on which the Partnership first qualifies as a "venture capital operating company" as defined in the Plan Assets Regulation. For purposes of calculating the extent to which each ERISA Partner has satisfied its Subscription, and for purposes of calculating gains, losses, distributions, capital contributions and sharing ratios, all amounts so

paid shall be treated as having been paid into the Partnership as a capital contribution by each ERISA Partner and as then having been paid by the Partnership to the General Partner as Partnership Expenses.

ARTICLE 6 - CAPITAL OF THE PARTNERSHIP

6.1 OBLIGATION TO CONTRIBUTE.

6.1.1 **In General.**

(a) Each Partner shall make capital contributions to the Partnership, in accordance with and subject to the terms of this Agreement, in an aggregate amount equal to such Partner's Subscription. All capital contributions shall be made to the Partnership by wire transfer or other transfer of federal or other immediately available U.S. dollar funds on the relevant due date to the account designated for such purpose. Except as provided in 6.4, each Partner shall be obligated to make payment in full of each required capital contribution together with any interest or other amounts due thereon, and no Partner shall make (nor shall the General Partner or the Partnership be obligated to accept) less than the full amount of any such required capital contribution.

(b) Each Partner shall pay the capital contributions determined in accordance with the provisions of this 6.1.1 and specified in the relevant drawdown notice, as the same may be revised pursuant to 6.1.1(c). The required capital contribution of each Partner shall be made no later than the drawdown date specified in such drawdown notice and shall equal the following, in each case up to an amount not to exceed such Partner's unpaid Subscription:

(1) in the case of a drawdown to be used to make a Portfolio Investment other than a follow-on investment in an existing Portfolio Investment, with respect to each Partner, such Partner's *pro rata* share (based on the relative Subscriptions of all Partners) of the amount required to make such Portfolio Investment;

(2) in the case of a drawdown to be used to make a follow-on investment in an existing Portfolio Investment or to pay Partnership Expenses determined by the General Partner to be attributable to a particular Portfolio Investment (for the avoidance of doubt, excluding any amount attributable to the Management Fee), with respect to each Partner, such Partner's *pro rata* share (based on the Partners' Sharing Percentages for such Portfolio Investment) of the aggregate amount required to make such follow-on investment or to pay such Partnership Expenses;

(3) in the case of a drawdown to be used to pay Organizational Expenses or Partnership Expenses (other than the Management Fee or a Partnership Expense described in clause (2) above), such Partner's *pro rata* share (based on the relative Subscriptions of all the Partners) of the amount required to pay such Organizational Expenses or Partnership Expenses, as the case may be; and

(4) in the case of a drawdown to be used to pay the Management Fee, with respect to each Limited Partner, the amount calculated with respect to such Limited Partner as provided in 5.2.2.1.

(c) Notwithstanding 6.1.1(b), if the actual capital contribution to be paid by a Partner changes after delivery of a drawdown notice (due, for example, to a default by another Partner), the General Partner shall issue a revised drawdown notice to the Partners, provided that the new drawdown date with respect to the amount of any increase shall be at least five (5) days after the date that such revised drawdown notice is given. Such Partners shall pay any additional capital contribution thereby required no later than the drawdown date specified in such revised drawdown notice.

(d) For purposes of this Agreement, the unpaid Subscription, with respect to any Partner, as of any date, shall mean the amount of such Partner's Subscription *decreased* by such Partner's aggregate Contributions on or prior to that date, and *increased* by all amounts returned by the Partnership to such Partner pursuant to 6.2.1 and 6.2.2.

(e) The aggregate amount specified in any drawdown notice pursuant to 6.1.1(b)(1), (b)(2) or (b)(3) shall be increased so that the Partnership has sufficient cash for the purposes set forth in such provisions taking into account any contributions to be made by the General Partner with respect to such drawdown.

(f) To the extent the Partnership borrows any amount and utilizes such borrowing for any of the purposes described in 6.1.1(b)(1) through 6.1.1(b)(4), any drawdown notice issued by the General Partner or the applicable lender to repay any principal, interest or fees relating to such borrowing shall be treated as if issued for the same purpose and at the same time such borrowing was utilized by the Partnership for purposes of any limitations on drawdowns (including, without limitation, 6.1.4). Each Partner shall be obligated to fund any remaining portion of its Subscription duly called down by the General Partner or by the lender under such credit facility without defense, counterclaim or offset, including any defense arising under Section 365(c) of the U.S. Bankruptcy Code, if applicable. Such agreement to fund shall not act as a waiver by such Partner of its right to assert independently any claim that the Partner may have against any other Partner or the Partnership.

6.1.2 **Initial Capital Contributions.**

Each Partner's initial capital contribution shall be due upon not less than ten (10) Business Days' prior written notice from the General Partner, such date being referred to herein as the "**Initial Drawdown Date**"; provided, however, that, subject to 5.4, the General Partner may, in its sole and absolute discretion, permit or require ERISA Partners to defer making their initial capital contributions until the day on which the Partnership will make its first investment that will enable it to qualify as a "venture capital operating company" as defined in the Plan Assets Regulation.

6.1.3 **Additional Contributions.**

The General Partner is authorized to draw down additional capital contributions from time to time for any purposes contemplated under this Agreement (subject to 6.1.4 with respect to certain Portfolio Investments) upon not less than ten (10) Business Days' prior written notice.

6.1.4 **Investment Period.**

6.1.4.1 Termination of the Investment Period.

The period commencing upon the Initial Closing Date and ending on the earlier to occur of (a) the third anniversary of the Final Closing Date (subject to extension in accordance with 6.1.4.2(c) and 9.3(c)) and (b) the date set forth in 6.1.4.2(c) shall be referred to herein as the "**Investment Period**." After the permanent expiration of the Investment Period (and during any temporary expiration of the Investment Period as provided in 6.1.4.2(a) and 9.3(c)), the General Partner shall not be authorized to call for, and the Partners shall not be obligated to make, any capital contributions *other than*:

(a) To finance Portfolio Investments as to which, prior to the expiration of the Investment Period, the Partnership and the prospective Portfolio Investment in which such investment is to be made (or its Affiliates) have entered into a letter of intent or a term sheet setting forth the material terms and conditions of such investment;

(b) To finance follow-on investments in existing Portfolio Investments or their successors or Affiliates (including to fund Portfolio Investments made or agreed to be made by the Partnership prior to the end of the Investment Period pursuant to a legally binding agreement), including the Partnership's right to exercise warrants or other similar rights relating to the issuance of Equity Kickers;

(c) To finance any other Portfolio Investment not described in (a) and (b) above, if the Advisory Committee approves such capital contribution; and

(d) To pay Partnership liabilities and expenses (including Management Fees).

6.1.4.2 Key Persons.

(a) If any two (2) of Ruthi Furman, Ido Vigdor and Alex Ginzburg fail to devote such business time as set forth in 3.5.1 for a period exceeding ninety (90) consecutive days or one hundred and twenty (120) non-consecutive days in the same twelve (12) month period, prior to the date the General Partner, the Principals and the Management Company may begin investing on behalf of a Successor Fund (any such event, a "**Key Person Event**"), a temporary expiration of the Investment Period shall occur and the General Partner shall promptly notify the Advisory Committee and the Limited Partners.

(b) The General Partner shall have twelve (12) months from the date of providing notice of a Key Person Event to prepare and present a plan regarding the future management of the Partnership and obtain the approval of a majority-in-interest of the Limited Partners to such plan.

(c) If the General Partner obtains the approval set forth in (b) above, the temporary expiration of the Investment Period shall cease and the Investment Period shall continue and be extended by a length of time equal to the length of time of such temporary expiration. If the General Partner is unable to obtain such approval, the temporary expiration of the Investment Period shall become permanent as of the date which is twelve (12) months from the date of providing notice of such Key Person Event.

6.1.5 **Procedure for Notice of Capital Calls; Rescission or Postponement.**

The General Partner shall send written notice of a call for capital contributions, or a rescission or postponement of such a call, to each Limited Partner by any method permitted under 14.5. A notice calling for capital contributions may be rescinded or postponed by the General Partner by prompt written notice.

6.1.6 **Offsets Against Distributions; No Interest or Withdrawals.**

In connection with any call for capital contributions under this Agreement, the General Partner is authorized to apply cash that would otherwise be distributed to a Partner in satisfaction of such Partner's obligation to make a capital contribution pursuant to such call, to the extent thereof. The amount applied shall be deemed distributed to the Partner by the Partnership and then contributed by the Partner to the Partnership in satisfaction of such Partner's obligation to contribute capital hereunder and such Partner's Contribution shall be adjusted accordingly. No interest shall accrue on any Partner's Contribution. No Partner shall have the right to withdraw or to be repaid its Contribution except as specifically provided in this Agreement.

6.1.7 **General Partner's Authority to Reduce Subscriptions.**

The General Partner in its sole discretion may reduce the Subscriptions of all Partners on a pro rata basis. The General Partner shall give each Partner written notice of the reduction, which notice shall include the amount of such Partner's reduced Subscription.

6.1.8 **Contributions of the General Partner.**

The General Partner shall contribute capital to the Partnership in satisfaction of its Subscription at the time capital calls are made pursuant to this Agreement. The aggregate amount committed to be contributed by the General Partner, the Principals and Persons associated with the General Partner and the Principals to the Partnership and the other Viola Credit III Funds shall equal at least one percent (1.0%) of the aggregate subscriptions to the Viola Credit III Funds. The Principals and certain of the Persons associated with the General Partner and the Principals, including certain strategic advisors to the Partnership (the Principals and such Persons specifically designated as such in a separate written agreement with the General Partner, the "**Designated Persons**"), may not be charged a Management Fee and the General Partner may waive its right to receive Carried Interest Distributions with respect to a Designated Persons' interest in the Partnership.

6.1.9 **Benefit of Contributions.**

The provisions of this Agreement, including this Article 6 and 12.4, are intended to benefit the Partners and, to the fullest extent permitted by law, shall not be construed as conferring any benefit upon any creditor of the Partnership (and no such creditor of the Partnership shall be a third party beneficiary of this Agreement) and neither the Limited Partners nor the General Partner shall have

any duty or obligation to any creditor of the Partnership to make any contribution to the Partnership or to issue any call for capital pursuant to this Agreement, except as specifically provided in this Agreement.

6.2 RETURN OF CERTAIN AMOUNTS SUBJECT TO SUBSEQUENT DRAWDOWN.

6.2.1 Unused Contributions.

The General Partner in its sole discretion may cause the Partnership to return to the Partners all or any portion of the cash capital contributions that have not been invested in one or more Portfolio Investments or applied to the payment or reimbursement of expenses or other purposes together with any interest or other income or gains (such interest, income or gains, the "**Partner Interest**") earned by the Partnership with such capital contributions prior to their return. Such contributions shall be distributed to the Partners pro rata in proportion to the respective amounts of cash contributions made by them with respect to the drawdown that gave rise to the contribution that is being returned. For the avoidance of doubt, the General Partner in its sole discretion may cause the Partnership to use cash capital contributions which are not returned to the Partners for any purpose for which the General Partner would otherwise be authorized to draw down capital contributions under this Agreement.

6.2.2 Return of Contributions upon Admission of Additional Partner.

Amounts contributed by an Additional Limited Partner pursuant to 3.3.1 shall be treated in the following manner:

(a) The sum of the amounts contributed by such Additional Limited Partner pursuant to 3.3.1(a) (other than amounts so contributed that are attributable to the Management Fee) shall be distributed to the previously admitted Partners in proportion to their Contributions (other than Contributions used to pay Management Fees). In connection with any return of capital contributions pursuant to the preceding sentence, the General Partner may call an amount of capital from the previously admitted Partners pursuant to 6.1.1, in an aggregate amount up to the amount so distributed to such Partners pursuant to the preceding sentence. The General Partner may, in its discretion, offset the amounts to be distributed and contributed such that the actual amount of cash distributed by the Partnership or required to be contributed, as the case may be, shall be a net amount determined by the General Partner; provided that for the purposes of this Agreement it shall be treated as if the gross amount was distributed and the gross amount was contributed pursuant to the appropriate clause(s) of 6.1.1(b).

(b) The amounts contributed by such Additional Limited Partner pursuant to 3.3.1(a) (that are attributable to the Management Fee) shall be paid as a Management Fee to the General Partner or its designated Affiliate, as applicable.

6.2.3 Effect of Return of Contributions.

The General Partner shall make all appropriate adjustments, including to the amount of the Partners' respective Contributions, unpaid Subscriptions, Capital Accounts, Sharing Percentages and any other items that are adjusted for capital drawdowns, so that the amounts of all such items

are, to the maximum extent possible, the same as they would have been had the capital drawdown that gave rise to any contribution that is returned pursuant to 6.2.1 or 6.2.2 never occurred. No such adjustments shall be made, however, to reflect any amounts paid or distributed to a Partner that are attributable to Partner Interest. A return of a Partner's capital contributions pursuant to 6.2.1 or 6.2.2 (other than amounts attributable to Partner Interest and contributions pursuant to 3.3.1(b)) shall reduce such Partner's Capital Account but shall not otherwise be treated as a distribution for purposes of this Agreement, unless the context so requires.

6.2.4 **Return of Cash Distributions.**

6.2.4.1 Redeployment of Capital.

In order to permit the General Partner, in its sole discretion, to cause the Partnership to fund Portfolio Investments or pay for Partnership Expenses (including the Management Fee) for which the General Partner is authorized to call capital contributions from the Partners pursuant to 4.1, the General Partner may cause an amount in cash equal to all, or a portion of, distributions made to the Partners in cash or property attributable to (a) Disposition Proceeds and (b) Current Income in an amount not to exceed the aggregate amount of Dispositions attributable to (i) Portfolio Investments becoming "worthless" as provided in Section 165(g) of the Code, (ii) Portfolio Investments having a fair market value of zero, and (iii) the portion of such Portfolio Investments that have been permanently written down in value as determined by the General Partner, to be re-called by the Partnership from each Partner based on the ratio of the aggregate distributions made to such Partner by the Partnership pursuant to 7.2.1 to the aggregate of all distributions made to all Partners by the Partnership pursuant to 7.2.1, excluding Carried Interest Distributions for purposes of determining this ratio. Any amounts eligible to be re-called by the General Partner pursuant to this 6.2.4 shall be treated in the same manner and be subject to the same provisions as other capital contributions required to be made by this Article 6 but shall not be considered part of the Subscription of any Partner.

6.2.4.2 Returnable Distributions.

(a) To facilitate the distribution of cash or property to the Partners received upon the Disposition of Portfolio Investments in circumstances in which the Partnership may have a continuing obligation to return some portion of such cash or property as a result of an indemnification or similar obligation on the part of the Partnership arising out of such sale or exchange transaction, whether in connection with a breach of representations or warranties or otherwise, the General Partner may cause the Partnership to distribute cash or property to the Partners subject to the requirement that an amount of cash equal to all or a portion of such cash or property be returned to the Partnership to satisfy such indemnification or similar obligation. The total amount to be returned to the Partnership pursuant to this 6.2.4.2(a) shall be allocated among the Partners based on the difference between the original amount distributed to each Partner pursuant to 7.2.1 with respect to such Portfolio Investment, and the cumulative amount that would have been distributed to each Partner pursuant to 7.2.1 with respect to such Portfolio Investment, if the amount originally distributed was reduced by the amount returned pursuant to this 6.2.4.2(a), and the General Partner shall make any adjustments necessary to properly reflect the economic provisions of Article 7 and Article 10. The General Partner shall provide notice to the Limited Partners at the time

of a distribution that an amount equal to all or a portion of such distribution may be subject to this 6.2.4.2(a) and no Partner shall be required to return a distribution pursuant to this 6.2.4.2(a) after the fifth anniversary of the date of such distribution except to fund an indemnification or similar obligation (1) that stems from a claim or claims that have been filed or threatened as of such fifth anniversary date and (2) with respect to which the General Partner has delivered to the Partners on or before thirty (30) days after such fifth anniversary date written notice of such indemnification or similar obligation.

(b) Any amounts required to be returned pursuant to this 6.2.4.2 shall be treated in the same manner and be subject to the same provisions as other capital contributions required to be made by this Article 6, but shall not be considered part of the Subscription of any Partner. A Partner's obligation to make contributions to the Partnership under this 6.2.4.2 shall survive the completion of the winding up of the Partnership and dissolution (in which case the obligation shall be owed to the General Partner).

6.3 FAILURE TO MAKE REQUIRED PAYMENT.

6.3.1 **Interest.**

Except as otherwise provided in this Agreement, upon any failure by a Limited Partner to pay a capital contribution in full when due, interest will accrue at the Default Rate on the outstanding unpaid balance of such capital contribution, from and including the date such capital contribution was due until the earlier of the date of payment of such capital contribution by such Partner (or a transferee) or the date on which the General Partner imposes a Default Charge pursuant to 6.3.3(a). The General Partner, it is sole discretion, may waive the requirement to pay interest, in whole or in part.

6.3.2 **Default.**

Except as otherwise provided in this Agreement, if any Limited Partner fails to make a capital contribution when due, and such failure continues for fifteen (15) days after receipt by such Partner of written notice of such failure, then such Partner (a "**Defaulting Partner**") shall be in default. Such notice shall be given by certified or registered mail or by reputable courier service. Upon the occurrence of a default, the General Partner may, in its sole discretion, pursue one or more of the following alternatives:

(a) Impose a Default Charge upon the Defaulting Partner pursuant to 6.3.3;

(b) Offer the Defaulting Partner's entire interest in the Partnership to the other Partners for purchase, in proportion to the other Partners' Subscriptions (with Partners accepting offers being permitted to take up offers declined by other Partners in proportion to their Subscriptions), at a price for that interest equal to the lesser of the then fair market value of the interest or the pre-default balance in the Defaulting Partner's Capital Account, subject to such other terms as the General Partner in its sole discretion shall determine, provided that the purchasing Partners agree to assume the Subscription of the Defaulting Partner, including any portion then due and unpaid;

(c) Sell all or a portion of the interest of the Defaulting Partner in the Partnership to a purchaser determined in the sole discretion of the General Partner on such terms as are determined by the General Partner and the proposed purchaser;

(d) Accept a late contribution from the Defaulting Partner, with interest (if any), in satisfaction of its then outstanding obligation to contribute hereunder;

(e) Cause the entire unpaid Subscription of the Defaulting Partner to become immediately due and payable;

(f) Cause any distributions which would otherwise be made to the Defaulting Partner to be applied against any amounts due and payable from the Defaulting Partner;

(g) Institute an action for specific performance of the Defaulting Partner's obligation to contribute to the Partnership;

(h) Accept from a Defaulting Partner, for U.S. federal (and applicable state and local) income tax purposes, an abandonment of such Defaulting Partner's interest in the Partnership, including without limitation, such Partner's Contribution, Capital Account and Subscription; or

(i) Pursue and enforce all of the Partnership's other rights and remedies against the Defaulting Partner under this Agreement, the relevant Subscription Agreement and applicable law, including but not limited to the commencement of a lawsuit to collect the unpaid capital contribution, interest and costs, and reimbursement (with interest at the Default Rate) of any other damages suffered by the Partnership.

If a Defaulting Partner's interest in the Partnership is sold pursuant to (b) or (c) above or if the General Partner exercises its discretion to accept a late contribution pursuant to (d) above, the General Partner shall not impose a Default Charge pursuant to (a) above. Otherwise, the remedies set forth above shall be cumulative, and the use by the General Partner of one or more of them against a Defaulting Partner shall not preclude the use of any other such remedy.

6.3.3 **Default Charge.**

(a) The Partners agree that the damages suffered by the Partnership as the result of a default by a Defaulting Partner will be substantial and that such damages cannot be estimated with reasonable accuracy. As a penalty for such default (which each Partner hereby agrees is reasonable), and subject to 6.3.2, the General Partner may:

(1) (i) reduce the Defaulting Partner's Sharing Percentage, for all Portfolio Investments with respect to which the Defaulting Partner has a Sharing Percentage, by seventy-five percent (75%) and (ii) reduce the amount of all future distributions payable to the Defaulting Partner pursuant to this Agreement by seventy-five percent (75%) (clauses (i) and (ii), the "**Default Charge**") and

withhold the remaining twenty-five percent (25%) of all future distributions that would otherwise be payable to the Defaulting Partner until the Partnership is wound up and dissolved; and

(2) require the Defaulting Partner to remain fully liable for payment of up to its pro rata share of Partnership Expenses (including Organizational Expenses and the Management Fee) if the default had not occurred.

(b) The General Partner shall apply amounts withheld by the General Partner under 6.3.3(a)(1) above to offset Partnership Expenses (including Organizational Expenses and the Management Fee) owed to the Partnership by the Defaulting Partner from time to time during the term of the Partnership.

(c) Upon application of a Default Charge to a Defaulting Partner no additional capital contribution shall be accepted from the Defaulting Partner as of the date of such default and the Defaulting Partner's unpaid Subscription shall be reduced to zero.

(d) If the General Partner has withheld distributions from a Defaulting Partner pursuant to this 6.3.3 and subsequently determines to pay the withheld distributions to such Defaulting Partner, it may elect to (1) pay cash to such Defaulting Partner in lieu of any distributions which were made to non-Defaulting Partners in kind and withheld from such Defaulting Partner, but the Partnership shall not, in such event, be liable to such Defaulting Partner for any subsequent increase in the value of any securities which would have been distributed to such Defaulting Partner had such Defaulting Partner not defaulted, or (2) deliver to such Defaulting Partner the securities or other assets (or substantially identical securities or assets) such Defaulting Partner would have received had the distribution to such Defaulting Partner not been withheld, but the Partnership shall not, in such event, be liable for any diminution in the value of such securities or other assets subsequent to the date such securities would have been distributed. Any losses incurred by the Partnership upon the disposition of the securities or other assets that would otherwise have been distributed to the Defaulting Partner in kind shall be for the account of the Defaulting Partner.

6.3.4 **Effect of Default.**

If the unpaid Subscription of a Defaulting Partner is reduced to zero pursuant to 6.3.3, then for purposes of 3.5.1 and 3.6.1, the Defaulting Partner's Subscription shall be deemed equal to its Contribution to the Partnership at the time of default (taking into account any prior adjustments). For purposes of 4.1, 4.2.2 and 4.3, the Defaulting Partner shall be deemed to have a Subscription equal to its Subscription prior to the default. For purposes of 6.1.1(b)(1), the Defaulting Partner shall be deemed to have a Subscription equal to zero. For purposes of any other provision of this Agreement for which the Defaulting Partner's Subscription is relevant, the General Partner shall determine the amount of such Subscription, in its sole discretion, so as to carry out the purposes of such provision; provided, however, that for purposes of determining the Management Fee payable by the Partnership, no adjustment shall be made to the Defaulting Partner's original Subscription.

If the Sharing Percentage of a Defaulting Partner with respect to a Portfolio Investment is reduced pursuant to 6.3.3(a)(1)(i), the amount of the Sharing Percentage so forfeited shall be reallocated to all Partners (other than Defaulting Partners) in the ratio of such Partners' existing Sharing Percentages with respect to such Portfolio Investment. Amounts forfeited by a Defaulting Partner under 6.3.3(a)(1)(ii) shall be distributed to all Partners (other than Defaulting Partners) as provided by 7.3.5(c).

6.3.5 **Additional Adjustments in Connection with Default Charge.**

After the imposition of a Default Charge, the General Partner shall make such other adjustments to subsequent distributions and subsequent allocations of Net Gain, Net Loss and any items in the nature of income, gain, loss or expense otherwise provided for in this Agreement to the extent necessary to give effect to the imposition of the Default Charge.

6.4 **DEFAULT DUE TO CHANGE IN LAW.**

6.4.1 **General.**

If, at any time before a capital contribution is due, a Limited Partner shall obtain and deliver to the Partnership an opinion of counsel reasonably acceptable (as to form, substance and choice of counsel) to the General Partner to the effect that, as a result of a change in any laws or a change in any governmental rules or regulations applicable to such Limited Partner that occurs after the date of such Limited Partner's admission to the Partnership, all future payments by such Limited Partner of its unpaid Subscription (including, but not limited to, any part of the capital contribution that is then due) will be unlawful or that there is a material and substantial likelihood that all such payments will be unlawful, then such Limited Partner shall have no further right or obligation to pay any part of its unpaid Subscription.

6.4.2 **Effect of Permitted Nonpayment.**

If any Limited Partner is excused, pursuant to 6.4.1, from its obligation to make additional payments to the Partnership:

(a) Such Limited Partner shall not, by reason of its failure to pay such portion, be deemed to be a Defaulting Partner for purposes of 6.3;

(b) Such Limited Partner's unpaid Subscription shall be reduced to zero;

(c) The General Partner, in its sole discretion, may adjust subsequent Partnership allocations and distributions as necessary to ensure that, to the extent possible and subject to applicable law, the aggregate amounts allocated and distributed by the Partnership to such Partner over the term of the Partnership are equal to the aggregate amounts that would have been so allocated and distributed if such Partner's initial Subscription had at all times been equal to its Contribution after giving effect to this 6.4.2; and

(d) In lieu of clauses (b) and (c), the General Partner may offer such Limited Partner's entire interest in the Partnership to other Persons (including other Partners) for purchase at a price for that interest equal to the lesser of the then fair market value of the interest or the balance in such Limited Partner's Capital Account, subject to such other terms as the General

Partner in its sole discretion shall determine, provided that the purchasers agree to assume the Subscription of such Limited Partner, including any portion then due and unpaid.

ARTICLE 7 - DISTRIBUTIONS

7.1 AMOUNT, TIMING AND FORM.

7.1.1 General.

Except as otherwise provided in this Agreement, the General Partner shall determine the amount, timing and form (whether in cash or in kind) of all distributions made by the Partnership.

7.1.2 Distribution of Proceeds of Investments.

The Partnership shall distribute, in the manner described in this Article 7 or Article 10, as the case may be, all cash proceeds of its investments as follows: (a) Current Income shall be distributed as soon as practicable after the end of the fiscal quarter in which such interest was received, net the aggregate amount of (i) Management Fees, (ii) Organizational Expenses, (iii) other operational expenses, and (iv) amounts that would otherwise be available to be recalled pursuant to 6.2.4.1(b), and (b) Disposition Proceeds may be distributed to the Partners and subsequently recalled for additional investments to the extent permitted by 6.2.4.1(a). Notwithstanding the preceding sentence, the General Partner in its discretion may cause the Partnership to retain proceeds of investments for any purpose for which the General Partner would otherwise be authorized to draw down capital contributions under this Agreement.

7.1.3 Form of Distributions; Apportionment of Distributions.

Except as authorized by the General Partner and approved in advance by the Advisory Committee, all distributions made before the commencement of the winding up of the Partnership pursuant to Article 10 shall consist of cash or Freely Tradable Securities. Each lot of securities to be distributed in kind shall be distributed to the Partners in proportion to their respective shares of the proposed distribution as provided in Article 7 or Article 10, as the case may be, except to the extent that a disproportionate distribution of securities is necessary in order to avoid distributing fractional shares. For purposes of the preceding sentence, each lot of stock or other securities having a separately identifiable tax basis or holding period shall be treated as a separate lot of securities.

7.1.4 Distributions to the General Partner.

Notwithstanding anything to the contrary in this Article 7, the General Partner may elect not to receive part or all of any distribution to which it would otherwise be entitled under this Agreement and instead cause such amount to be distributed to the Limited Partners in the amounts and proportions set forth in 7.2.1; provided, however, that the General Partner, in its discretion, may subsequently distribute to itself, out of funds available therefor, additional amounts up to the amount that would result in the General Partner receiving aggregate cumulative distributions equal to what it would have received had the General Partner not elected to forgo all or a portion of any distribution in accordance with this 7.1.4.

7.2 DISCRETIONARY DISTRIBUTIONS.

7.2.1 General.

Except as otherwise provided in 7.3.1 and 7.3.5 and subject to the other provisions of this Article 7, distributions attributable to each Portfolio Investment shall initially be apportioned among the Partners in proportion to their Sharing Percentages with respect to such Portfolio Investment.

Except as otherwise provided in this Agreement, the amounts apportioned to the General Partner and the Designated Persons shall be distributed to the General Partner and such Designated Persons, and the amount apportioned to each other Limited Partner shall be distributed as follows:

(a) *First*, one hundred percent (100%) to such Limited Partner until the cumulative amount distributed to such Limited Partner pursuant to this 7.2.1(a) is equal to such Limited Partner's Contributions;

(b) *Second*, one hundred percent (100%) to such Limited Partner until the cumulative amount distributed to such Limited Partner pursuant to this 7.2.1(b), 7.2.1(d), 7.3.5(b) and 7.3.5(c) is sufficient to provide such Limited Partner with a seven percent (7%) per annum internal rate of return, compounded annually, on such Limited Partner's Unreturned Contribution Amounts (computed from the due date of the applicable Contribution until the dates distributions are made pursuant to 7.2.1(a), 7.2.1(d), 7.3.5(b) and 7.3.5(c));

(c) *Third*, one hundred percent (100%) to the General Partner until the General Partner has received distributions with respect to such Limited Partner pursuant to this 7.2.1(c) equal to fifteen percent (15%) of the sum of the amount distributed to such Limited Partner pursuant to 7.2.1(b) and the distributions to the General Partner with respect to such Limited Partner pursuant to this 7.2.1(c); and

(d) *Thereafter*, eighty-five percent (85%) to such Limited Partner and fifteen percent (15%) to the General Partner.

7.2.2 **Operational Rules.**

For purposes of 7.2.1 and this 7.2.2:

(a) If distributions to which a Defaulting Partner otherwise would have been entitled have been withheld pursuant to 6.3.3, the amounts so withheld shall be treated as having been distributed to such Partner and any subsequent distributions of such amounts to the Defaulting Partner shall be disregarded;

(b) Tax Distributions made to a Partner and amounts distributed to a Partner pursuant to 7.3.5(c) shall be taken into account as if such distributions had been made to such Partner pursuant to the applicable provisions of 7.2.1;

(c) Amounts treated as distributed to a Partner pursuant to 6.1.6, 7.4 or 11.2.8 shall be taken into account as if such amounts had been distributed to such Partner pursuant to the applicable provisions of 7.2.1;

(d) Distributions made to any Partner's predecessors in interest shall be treated as having been made to such Partner;

(e) The amount of any distribution of securities in kind shall be equal to the fair market value of such securities determined in accordance with 14.4; and

(f) If there are Defaulting Partners, distributions shall be modified to the extent required by Article 6; and references in this Article 7 to "all Partners" and to "each Partner" shall be modified accordingly.

7.2.3 **Treatment of Recalled Distributions.**

Any amounts required to be returned pursuant to 6.2.4.2 or 12.4 shall no longer be treated as having been distributed for all purposes under this Agreement, and therefore can be recalled only once under 6.2.4.2 or 12.4.

7.3 **TAX DISTRIBUTIONS; OTHER SPECIAL DISTRIBUTIONS.**

7.3.1 **Tax Distributions — General.**

Except as provided in 7.3.2 and subject to 7.3.3 and 7.3.4, the Partnership shall distribute to each Partner (including any Tax-Exempt Partners) in cash, with respect to each fiscal year, either during such year or within ninety (90) days thereafter, an amount (a "**Tax Distribution**") equal to the aggregate federal, national, provincial, state and local income tax liability such Partner would have incurred as a result of such Partner's ownership of an interest in the Partnership, determined as follows:

(a) For each fiscal year of the Partnership, the General Partner shall identify a jurisdiction (the "**Designated Jurisdiction**") (i) in which the General Partner or any direct or indirect beneficial owner of any equity interest in the General Partner is subject to income tax on such Person's direct or indirect allocable share of income of the Partnership for the fiscal year with respect to which the Tax Distribution is made, and (ii) that the General Partner determines in its reasonable discretion would impose, for the fiscal year with respect to which the Tax Distribution is made, the highest effective combined federal, national, provincial, state and local rate of taxation on the income of the Partnership if the Partnership were a natural person resident in such jurisdiction and all taxes were imposed at the highest effective marginal rate; and

(b) The Tax Distribution of any Partner for a fiscal year shall be the amount of the combined federal, national, provincial, state and local income tax that would be payable by such Partner for such fiscal year (i) assuming such Partner was a natural person resident in the Designated Jurisdiction for such year, (ii) assuming that all taxes were imposed at the highest effective marginal rate of taxation applicable in the Designated Jurisdiction, (iii) assuming the Partner's only income for the fiscal year was such Partner's allocable share of the income of the Partnership, (iv) taking into account the character of income to the particular Partner (*e.g.*, as ordinary income, short term capital gain or long term capital gain (including, for avoidance of doubt, pursuant to Section 1061 of the Code, as applicable) or long-term), (v) taking into account any allowable federal or national income tax deduction or

credit for provincial, state and local taxes (subject to any limitations the General Partner believes in good faith are likely to apply, including any limitations under Section 164(b)(6)(B)), (vi) without taking into account the carryover of any items of loss, deduction or expense previously allocated by the Partnership to such Partner, (vii) disregarding any deduction or credit if the General Partner believes in good faith such deduction or credit likely would not be of benefit to a taxpayer that is a natural person, and (viii) using such other reasonable assumptions as the General Partner may in good faith determine.

7.3.2 **Tax Distributions — Reduction.**

The aggregate amount of Tax Distributions with respect to any fiscal year may be reduced, on a pro rata basis, or not made if and to the extent determined by the General Partner in its sole discretion.

7.3.3 **Advances to Pay Estimated Taxes.**

The Partnership may make distributions to all Partners (including any Tax-Exempt Partners) during any Partnership fiscal year to enable the Partners to satisfy their liability to make estimated tax payments with respect to such fiscal year or the preceding fiscal year based on calculations of the Partners' estimated tax liability made in accordance with 7.3.1. Any such distributions shall be deemed to be Tax Distributions except to the extent they are required to be returned to the Partnership pursuant to the next succeeding sentence. If the aggregate amount of distributions made to the General Partner for estimated taxes with respect to any fiscal year exceeds the tax liability of the General Partner with respect to such fiscal year (calculated as of the end of such fiscal year pursuant to 7.3.1), the General Partner shall treat such excess as an advance and shall promptly return such excess to the Partnership without interest by December 31st of the fiscal year following the fiscal year in which it was received. Upon the return of such excess amount by the General Partner, such amount shall no longer be considered a Tax Distribution under any other provision of this Agreement. The Capital Account of the General Partner shall properly account for any such distribution and return, but the Contribution of the General Partner shall not be increased by any such return.

7.3.4 **Coordination of Tax Distributions and Other Distributions.**

Distributions made to any Partner in cash pursuant to 7.2 or 7.3.5 during any fiscal year (other than any amounts treated as a Tax Distribution with respect to a prior fiscal year) shall reduce dollar-for-dollar the amount of Tax Distributions to which such Partner otherwise would be entitled with respect to such fiscal year to the extent such Tax Distributions would have been made to such Partner pursuant to the applicable provisions of 7.2.1.

7.3.5 **Other Special Distributions.**

Notwithstanding any other provision of this Article 7, the following special distributions shall be made at such time or times as the General Partner in its discretion shall determine:

(a) Distributions of available cash corresponding to amounts of Delayed Payment Interest, if any, received by the Partnership shall be distributed to all Partners other than the Partner liable to pay such amounts in proportion to their respective Contributions.

(b) Distributions of available cash equal to the amount of Temporary Investment Income, if any, received by the Partnership for a period shall be distributed to the Partners in proportion to their Sharing Percentages in the investment giving rise to such Temporary Investment Income or if the General Partner so determines to be appropriate, in proportion to their respective Contributions.

(c) Any other amounts available for distribution, as determined by the General Partner in its sole discretion, and not otherwise specifically distributable under this Agreement, shall be distributed among the Partners in such proportions and at such times as the General Partner determines to reflect the Partners' economic interests in the Partnership.

No distribution made to a Partner pursuant to 6.2.1 or 7.3.5(a) shall be taken into account in determining the amount previously distributed to (or to be distributed to) such Partner pursuant to the other provisions of this Article 7, other than 7.3.4.

7.4 PAYMENT OF TAXES.

7.4.1 General.

If the Partnership (or any entity in which the Partnership holds (or has held) a direct or indirect interest) incurs an obligation to pay (directly or indirectly) any amount in respect of taxes, fees or governmental charges with respect to amounts allocable or distributable to one or more Partners, or otherwise arising as a result of or with respect to a Partner's interest in the Partnership, including but not limited to withholding taxes (including pursuant to 14.7.2) imposed on any Partner's or former Partner's share of the Partnership's (or such entity's) gross or net income and gains (or items thereof), taxes imposed on any Partner or the Partnership (or such entity) as a result of a Transfer of any interest in the Partnership, income taxes, and any interest, penalties or additions to tax, and any costs and expenses relating thereto, or if the amount of a payment or distribution of cash or other property to the Partnership (or such entity) is reduced as a result of withholding by other parties (in each case, a "**Tax Liability**"):

(a) All payments by the Partnership (or such entity) in satisfaction of such Tax Liability and all reductions in the amount of a payment or distribution that the Partnership (or such entity) otherwise would have received shall be treated, pursuant to this 7.4, as distributed to those Partners or former Partners to which the related Tax Liability is attributable.

(b) Notwithstanding any other provision of this Agreement, subsequent distributions to the Partners shall be adjusted by the General Partner in an equitable manner so that, to the extent feasible, the burden of taxes withheld at the source or paid by the Partnership (or such entity) is borne by those Partners to which such Tax Liability is attributable.

(c) The General Partner in its sole discretion may cause any amount that would otherwise be treated pursuant to 7.4.1(a) as distributed to any Partner or former Partner at any time that exceeds the amount, if any, of distributions to which such Person is then entitled under this Agreement to be treated as a loan to such Person, and the General Partner shall give prompt written notice to such Person of the amount of such loan.

(d) If the Partnership incurs an Imputed Underpayment Amount, the General Partner shall determine in its discretion the portion of such Imputed Underpayment Amount attributable to each Partner or former Partner and such attributable amount shall be treated as a Tax Liability pursuant to this Agreement. The portion of any Imputed Underpayment Amount attributed to a former Partner shall be treated as a Tax Liability pursuant to this Agreement with respect to both such former Partner and such former Partner's transferee(s), as applicable. Each former Partner shall continue to be obligated to reimburse the Partnership or General Partner under this 7.4.1. For purposes of this Agreement, "**Imputed Underpayment Amount**" shall mean (i) any "imputed underpayment" within the meaning of Section 6225 of the Code (or any corresponding or similar provision of federal, state, local or foreign tax law) paid (or payable) by the Partnership as a result of an adjustment with respect to any Partnership item (including, without limitation, any "partnership-related item" within the meaning of Section 6241(2) of the Code (or any corresponding or similar provision of federal state, local or foreign tax law)), including any interest, penalties or additions to tax, or related costs and expenses, with respect to any such adjustment, (ii) any amount not described in clause (i) (including any interest, penalties or additions to tax with respect to such amounts) paid (or payable) by the Partnership as a result of the application of Sections 6221 through 6241 of the Code (or any corresponding or similar provision of federal, state, local or foreign tax law), and/or (iii) any amount paid (or payable) by any entity treated as a partnership for U.S. federal income tax purposes in which the Partnership holds (or has held) a direct or indirect interest other than through entities treated as corporations for U.S. federal income tax purposes to the extent that the Partnership bears the economic burden of such amounts, whether by law or agreement, as a result of the application of the provisions of Sections 6221 through 6241 of the Code (or any corresponding or similar provision of federal, state, local or foreign tax law), including any interest, penalties or additions to tax with respect to such amounts, and any costs or expenses of the Partnership attributable thereto.

(e) Each Partner agrees to indemnify and hold harmless the Partnership (or such entity) and the General Partner and any Affiliate thereof from and against any and all liability with respect to any Tax Liability with respect to such Partner. A Partner's obligation to so indemnify shall survive the Transfer of such Partner's interest in the Partnership, and the winding up, liquidation, and dissolution of the Partnership or the Partner's interest therein, and the Partnership may pursue and enforce all rights and remedies it may have against each such Partner under this 7.4.

7.4.2 **Tax Liability.**

The General Partner, after consulting with the Partnership's accountants or other advisers, shall determine the amount, if any, of any Tax Liability attributable to any Partner (for avoidance of doubt, taking into account any reduction in any Imputed Underpayment Amount under Section 6225(c) of the Code that the General Partner reasonably determines is properly attributable to a Partner). For this purpose, the General Partner shall be entitled to treat any Partner as ineligible for an exemption from or reduction in the rate of such Tax Liability under a tax treaty or otherwise,

except to the extent that such Partner provides the General Partner with such written evidence as the General Partner or the relevant tax authorities may require to establish such Partner's entitlement to such exemption or reduction.

7.4.3 **Repayment of Any Amounts Treated as Loans.**

Each Partner covenants, for itself, its successors, assigns, heirs and personal representatives, that such Person shall repay any loan described in 7.4.1(c) not later than thirty (30) days after the General Partner delivers a written demand for such repayment (whether before or after the withdrawal of such Partner from the Partnership, but in no event later than the dissolution of the Partnership). Such Person shall pay interest to the Partnership at the Prime Rate plus two percent (2%) per annum for the entire period commencing on the date on which the Partnership paid such amount and ending on the date on which such Person repays such amount to the Partnership together with all accrued but previously unpaid interest. The Partnership may collect such unpaid amounts (including interest) from any distributions that otherwise would be made by the Partnership to such Person and shall treat the amount so collected as having been distributed to such Person.

7.4.4 **Partnership Obligation.**

For purposes of this 7.4, any obligation to pay any amount in respect of any Tax Liability incurred by the General Partner or any direct or indirect partner, member or stockholder of the General Partner with respect to income of or distributions made to any other Partner or former Partner shall constitute a Partnership obligation, and, as such, shall be fully indemnified by the Partnership.

7.5 **CERTAIN DISTRIBUTIONS PROHIBITED.**

Anything in this Article 7 to the contrary notwithstanding, no distribution shall be made to any Partner if, and to the extent that, such distribution would not be permitted under any applicable provision of the ELP Act.

ARTICLE 8 - CAPITAL ACCOUNTS; ALLOCATIONS

8.1 **CAPITAL ACCOUNTS.**

8.1.1 **Creation and Maintenance.**

There shall be established on the books of the Partnership a capital account for each Partner (such Partner's "**Capital Account**") that shall be:

(a) *Increased* by (1) any capital contributions made to the Partnership by such Partner pursuant to this Agreement and (2) any amounts in the nature of income or gain allocated to such Partner pursuant to this Article 8 or Appendix II (other than allocations pursuant to paragraph 4 of Appendix II that are solely for tax purposes);

(b) *Decreased* by (1) any distributions made to such Partner and (2) any amounts in the nature of loss or expense allocated to such Partner pursuant to this Article 8 or Appendix II (other than allocations pursuant to paragraph 4 of Appendix II that are solely for tax purposes); and

(c) Otherwise adjusted in accordance with the provisions of this Agreement including, but not limited to, 6.3.3 (relating to the imposition of a Default Charge) and 8.1.3 (regarding compliance with Section 704(b) of the Code).

8.1.2 **Timing of Allocations.**

Allocations of Net Gain, Net Loss, and any other items of income, gain, loss and deduction pursuant to this Article 8 and Appendix II shall be made for each fiscal year of the Partnership as of the end of such fiscal year; provided, however, that if the Carrying Value of the assets of the Partnership are adjusted in accordance with clause (ii) of the definition of "Carrying Value," the date of such adjustment shall be considered to be the end of a fiscal year for purposes of computing and allocating such Net Gain, Net Loss, and other items of income, gain, loss and deduction.

8.1.3 **Compliance with Treasury Regulations.**

The provisions of this Article 8 and Appendix II, including the provisions relating to the maintenance of Capital Accounts, are intended to comply with Section 704(b) of the Code and the Treasury Regulations promulgated thereunder, and shall be interpreted and applied in a manner consistent with such regulations.

8.2 **ALLOCATIONS OF INCOME AND LOSS.**

Subject to the provisions of Appendix II, all allocations of income, gain, loss, deduction and items thereof shall be made in accordance with the provisions of this 8.2 in the order set forth below.

8.2.1 **Net Gain or Loss.**

(a) Following the application of 8.2.2, any remaining Net Gain or Net Loss of the Partnership for any fiscal period shall be allocated among the Partners in such proportions and in such amounts as may be necessary so that following such allocations, the Adjusted Capital Account balance of each Partner equals such Partner's then Target Balance.

(b) If the amount of Net Gain or Net Losses allocable to the Partners pursuant to 8.2.1(a) for a period is insufficient to allow the Adjusted Capital Account balance of each Partner to equal such Partner's Target Balance, such Net Gain or Net Losses shall be allocated among the Partners in such a manner as to decrease the differences between the Partners' respective Adjusted Capital Account balances and their respective Target Balances in proportion to such differences.

(c) The General Partner shall, to the greatest extent possible, allocate specific items of income, gain, loss or expense to the Partner or Partners intended to receive the benefit or bear the burden of such items under this Agreement, as determined by the General Partner.

8.2.2 **Special Allocations.**

Notwithstanding the general allocation provisions set forth in this Article 8, to the extent permitted under Section 704(b) of the Code and the Treasury Regulations thereunder, items of Partnership

Expense attributable to (a) the Management Fee shall be allocated to all Limited Partners in proportion to their pro rata amounts of Management Fee calculated as provided in 5.2.2.1 and (b) value added taxes paid by the Partnership on account of the Management Fee or Carried Interest Distributions shall be allocated solely to those Limited Partners on account of whom such value added taxes are payable in proportion to such Limited Partners' pro rata amounts of Management Fee calculated as provided in 5.2.2.1 or Carried Interest Distributions made pursuant to 7.2.1, as applicable, and such value added taxes shall be treated as a Tax Liability of such Limited Partners.

8.2.3 **Capital Interest.**

The Partners acknowledge that the General Partner's (or any affiliate's) interest in the Partnership may be an "applicable partnership interest" within the meaning of Section 1061 of the Code and further agree that the provisions contained in this Article 8 that provide for allocations with respect to the General Partner's (or any affiliate's) capital contributions under this Agreement are intended to satisfy the requirements of the capital interest exception under Treasury Regulation Section 1.1061-3(c)(3)(ii)(B) and shall be interpreted consistently therewith to the extent permitted under applicable law.

8.3 **ADMISSION OF ADDITIONAL PARTNERS.**

If any Person is admitted to the Partnership (or the Subscription of any existing Partner is increased) after the Initial Closing Date but on or before the Final Closing Date the General Partner shall adjust subsequent allocations of Partnership income, gain, loss and expense otherwise provided for in this Article 8 and Appendix II as necessary so that, after such adjustments have been made each Partner (other than a Defaulting Partner) shall have a Capital Account balance equal to the balance (and shall reflect, to the greatest extent possible, the specific items of income, gain, loss and expense (or, if specific items are not available, the nature and character of the items)) such Partner would have had if (a) it had been admitted to the Partnership on the Initial Closing Date with a Subscription equal to its Subscription immediately following such admission or increase, and (b) it had made all capital contributions in respect of such Subscription when originally due; provided, however, that the allocations otherwise required by this 8.3 shall be limited to those permitted by Section 706 of the Code. Notwithstanding the foregoing, the General Partner shall not make any adjustments to any Partner's Capital Account in respect of (i) Current Income distributed to Limited Partners prior to the first day of the fiscal quarter following the date of such Additional Limited Partner's admission to the Partnership as the General Partner determines in its reasonable discretion, and (ii) any Partnership Expenses (excluding Organizational Expenses) incurred prior to the first day of the fiscal quarter following the date of such Additional Limited Partner's that are not attributable to a specific Portfolio Investment as the General Partner determines in its reasonable discretion.

ARTICLE 9 - DURATION OF THE PARTNERSHIP

9.1 **TERM OF PARTNERSHIP.**

The Partnership shall continue until the fourth anniversary of the permanent expiration of the Investment Period, unless its term is extended as provided in this 9.1, or unless it is wound up and dissolved as provided in 9.2 or 9.3 or by operation of law. The term of the Partnership may be extended for two (2) additional one-year periods by the General Partner in its sole discretion, and for up to one (1) additional one-year period thereafter with the approval of the Advisory Committee. The General Partner shall notify the Limited Partners promptly of any extension.

9.2 **WINDING UP UPON WITHDRAWAL OF GENERAL PARTNER.**

(a) The Partnership shall be wound up and dissolved if there shall occur with respect to the General Partner any of the events of withdrawal described in Section 36(7) of the ELP Act, subject to the terms Section 36 of the ELP Act. The majority for the purposes of Section 36(12) of the ELP Act shall be seventy-five percent (75%) in interest of the Viola Credit III Investors.

(b) The Partnership shall not be wound up and dissolved in the event of the dissolution, death, bankruptcy, insolvency, incompetence, disability or admission of any Limited Partner, or any other similar event involving the existence, status or organization of a Limited Partner.

9.3 **WINDING UP BY PARTNERS.**

(a) The General Partner may commence the winding up and dissolution of the Partnership, any Parallel Fund or any Alternative Investment Vehicle at any time on not less than sixty (60) days' prior written notice with the consent of a majority-in-interest of the Viola Credit III Investors.

(b) Upon sixty (60) days' prior written notice from at least seventy-five percent (75%) in interest of the Viola Credit III Investors and a majority in number of the Viola Credit III Investors, the General Partner shall cause the Partnership, any Parallel Fund and any Alternative Investment Vehicles to be wound up and dissolved.

(c) If a Cause Event occurs, a temporary expiration of the Investment Period shall occur (if the Investment Period has not already expired) and the General Partner shall promptly notify the Viola Credit III Investors. Within sixty (60) days after such notice, Viola Credit III Investors representing at least sixty percent (60%) in interest of the Viola Credit III Investors may cause the Partnership, any Parallel Fund and any Alternative Investment Vehicles to be wound up and dissolved by providing a written notice to the General Partner. If such notice to wind up and dissolve is not provided within sixty (60) days, the temporary expiration of the Investment Period shall cease and the Investment Period shall continue and be extended by a length of time equal to the length of time of such temporary expiration. A "**Cause Event**" shall mean a final, non-appealable adjudication that the General Partner or a Principal, with respect to actions taken on behalf of the Partnership, committed embezzlement or any felony involving misappropriation of funds or actual fraud, or willfully and materially breached this Agreement; provided that an action by a Principal shall no longer constitute a Cause Event if such Principal is excluded from engaging in any further activities for the Viola Credit III Funds within thirty (30) days after the date of such adjudication.

(d) For the avoidance of doubt, Section 36(1)(b) of the ELP Act shall not apply to this Partnership.

ARTICLE 10 - LIQUIDATION OF ASSETS

10.1 **GENERAL.**

Upon commencement of its winding up, the Partnership's assets shall be liquidated in an orderly manner. The General Partner shall be the liquidator to wind up the affairs of the Partnership pursuant to this Agreement; provided, however, that pursuant to the ELP Act, the courts may, upon application of a creditor of the Partnership, and no other Person, appoint another liquidator; provided, further, that if the winding up of the Partnership is commenced pursuant to 9.2(a), the Advisory Committee may appoint another liquidator at any time within thirty (30) days after the commencement of the Partnership's winding up.

10.2 **LIQUIDATING DISTRIBUTIONS.**

The liquidator shall pay or provide for the satisfaction of the Partnership's liabilities and obligations to creditors. In performing its duties, the liquidator is authorized to sell, exchange or otherwise dispose of the assets of the Partnership in such reasonable manner as the liquidator shall determine. All items of income, gain, loss and expense shall be allocated among the Partners in accordance with Article 8 and Appendix II, and the remaining assets of the Partnership shall then be distributed to the Partners in cash (to the extent feasible) or in kind as provided in 7.2.1. During the winding up of the Partnership, the liquidator shall furnish to the Partners the financial statements and other information specified in 14.3, subject to 14.8.7.

10.3 **EXPENSES OF LIQUIDATOR.**

The expenses incurred by the liquidator in connection with winding up the Partnership, all other losses or liabilities of the Partnership incurred in accordance with the terms of this Agreement, and reasonable compensation for the services of the liquidator shall be borne by the Partnership. If the General Partner serves as the liquidator, it shall not be entitled to additional compensation for providing services in such capacity as long as it continues to be entitled to payments of the Management Fee.

10.4 **DURATION OF LIQUIDATION.**

A reasonable time shall be allowed for the winding up of the affairs of the Partnership in order to minimize any losses that might otherwise result and obtain fair market value upon a sale of any Portfolio Investments. The liquidator shall use commercially reasonable efforts to carry out the liquidation in conformity with the timing requirements of Treasury Regulations Section 1.704-1(b)(2)(ii)(*g*), but will not be bound to do so or liable to any Partner for failure to do so.

10.5 **LIABILITY FOR RETURNS.**

10.5.1 **General.**

The liquidator, the General Partner and their respective direct and indirect partners, members, stockholders, officers, directors, managers, employees, agents and Affiliates shall not be personally liable for the return of the capital contributions of any Partner.

10.5.2 **Limited Partner Obligations.**

No Limited Partner shall be obligated to restore to the Partnership any amount with respect to a negative Capital Account; provided, however, that this provision shall not affect the obligations of Partners to make their agreed-upon capital contributions and any other payments to the Partnership that are required under this Agreement or applicable law.

10.5.3 **General Partner Return Obligation.**

After the Partnership has made its final distribution of assets pursuant to 10.2, if with respect to any Limited Partner other than a Defaulting Partner, (a) the amount of Carried Interest Distributions received by the General Partner with respect to such Limited Partner exceeds fifteen percent (15%) of the excess of (i) the distributable amounts apportioned to such Limited Partner pursuant to 7.2.1 (including amounts distributed to the General Partner pursuant to 7.2.1(c) and 7.2.1(d)) over (ii) the Contributions of such Limited Partner (provided, however, that for such purpose any distributions made by the Partnership in kind shall be valued as of their respective dates of distribution) or (b) such Limited Partner has not received aggregate distributions pursuant to 7.2.1, 7.3.5(b) and 7.3.5(c) sufficient to provide such Limited Partner with a seven percent (7%) per annum internal rate of return, compounded annually, on such Limited Partner's Unreturned Contribution Amounts (calculated in the manner set forth in 7.2.1(b)) (the greater of clause (a) and (b), the "**Shortfall Amount**"), then the General Partner will return to the Partnership for distribution to such Limited Partner an amount equal to the lesser of (x) the Shortfall Amount and (y) the amount of the aggregate Carried Interest Distributions received by the General Partner attributable to such Limited Partner minus all Tax Distributions (solely to the extent attributable to items of income or gain allocated to the General Partner that correspond to the General Partner's right to receive Carried Interest Distributions) for each fiscal period since the Partnership's inception to which the General Partner would have been entitled if all such Tax Distributions had been made in full in accordance with 7.3.1, without reduction for distributions made pursuant to other provisions. For purposes of the preceding sentence, the Tax Distributions to which the General Partner would have been entitled shall include the additional tax liability the General Partner would have incurred if all property distributed in kind by the Partnership to the General Partner since the inception of the Partnership had been sold for its fair market value immediately following its receipt by the General Partner. Any amount the General Partner is required to return to the Partnership pursuant to this 10.5.3, shall be returned in cash or in assets distributed in kind by the Partnership or in any combination thereof, on or before the 90th day after the final distribution of assets by the Partnership pursuant to 10.2. To the extent that assets distributed in kind by the Partnership are returned to the Partnership pursuant to the terms of this 10.5.3, such assets shall be valued as of the date of such return at the fair market value thereof determined pursuant to 14.4. "**Carried Interest Distributions**" with respect to a Limited Partner means distributions in an amount equal to the aggregate distributions to the General Partner pursuant to 7.2.1(c) and 7.2.1(d) with respect to such Limited Partner since inception. For purposes of this 10.5.3, distributions pursuant to 10.2 shall be treated as distributions pursuant to 7.2.1 as if such amounts were distributed pursuant to 7.2.1, rather than 10.2.

10.5.4 **Distribution of Returned Amounts.**

Amounts returned by the General Partner to the Partnership pursuant to 10.5.3 shall be paid to creditors of the Partnership or distributed to the Partners as set forth in 10.5.3. In no event shall 10.5.3 be enforceable for the benefit of any Person other than the Limited Partners, their successors and their assigns.

10.5.5 **Liability for Return.**

10.5.5.1Principal's Liability for Return.

Each of the Principals agrees to be severally liable for the General Partner's obligation to return distributions pursuant to 10.5.3 to the extent of their respective proportionate shares of the amount of such return obligation, provided that no Principal shall be liable for an amount in excess of the distributions received by such Principal from the General Partner that are attributable to the General Partner's Carried Interest Distributions. Each Principal's proportionate share of such return

obligations shall be determined based upon the ratio of distributions actually received by such Principal from the General Partner that are attributable to the General Partner's Carried Interest Distributions over all distributions of the General Partner's Carried Interest Distributions made to all partners of the General Partner.

10.5.5.2Other Partners' Liability for Return.

The General Partner shall cause the limited partnership agreement of the General Partner to require each partner of the General Partner to agree to be severally liable for the General Partner's obligation to return distributions pursuant to 10.5.3 but solely to the extent of their respective proportionate shares of the amount of such return obligation determined based upon the ratio of distributions actually received by such partner from the General Partner that are attributable to the General Partner's Carried Interest Distributions over all distributions of the General Partner's Carried Interest Distributions made to all partners of the General Partner, provided that no such partner shall be liable for an amount in excess of the distributions received by such partner from the General Partner that are attributable to the General Partner's Carried Interest Distributions. Each of the General Partner and the Principals hereby agree not to amend such provision of the limited partnership agreement of the General Partner without the consent of majority-in-interest of the Viola Credit III Investors in a manner that would diminish the benefits accorded to the Limited Partners under this 10.5.5.2.

10.6 POST-WINDING UP INVESTMENTS.

Notwithstanding anything to the contrary set forth in this Article 10, but subject to the other limitations on investments set forth in this Agreement, the liquidator may, at any time after the Partnership commences winding up, cause the Partnership to make additional investments in entities which were Originating Platforms on the date it commenced winding up (including any successor to, or Affiliate of, a Originating Platform), if the liquidator believes that such additional investments are necessary or advisable to preserve value or are made in anticipation or furtherance of a contemplated disposition of the applicable Originating Platform.

10.7 DISSOLUTION.

Upon completion of the Partnership's winding up, the General Partner (or other liquidator) shall file a notice of dissolution in accordance with the ELP Act, and the Partnership will then dissolve.

ARTICLE 11 - LIMITATIONS ON TRANSFERS AND WITHDRAWALS OF PARTNERSHIP INTERESTS

11.1 GENERAL PARTNER'S INTEREST.

11.1.1 **Transfers of General Partner's Interest.**

The General Partner shall not assign, pledge, mortgage, hypothecate, give, sell or otherwise dispose of or encumber (each such act, a "**Transfer**") all or any part of its general partner interest in the Viola Credit III Funds, except (a) in connection with the change or technical reconstitution of the form of legal entity of the General Partner, (b) with the consent of a majority-in-interest of the Viola Credit III Investors or (c) to an Affiliate of the General Partner or the Management Company. Any attempted Transfer of the General Partner's interest except in compliance with the preceding sentence shall be void. If a General Partner transfers its interest pursuant to this 11.1, the transferee shall be admitted to the Partnership only upon the written consent of the transferring General Partner. In connection with any borrowing or guarantee by the

Partnership, the General Partner may collaterally assign the right of the Partnership to make and receive drawdowns of capital contributions and related rights, otherwise permitted by this Agreement, to a lender to secure a guarantee by, or a loan to, the Partnership or to an Affiliate, and no such collateral assignment shall be treated as a Transfer for purposes of this Agreement or otherwise require the consent of the Limited Partners or the Viola Credit III Investors.

11.1.2 **Transfers of Principals' Interest in Carried Interest Distributions.**

Without the consent of the Advisory Committee, the initial Principals shall not Transfer, on a combined basis, more than fifty percent (50%) of their interests in the Carried Interest Distributions made to the General Partner (other than Transfers of such interests to members of their family (including former spouses), to trusts, partnerships or other estate planning vehicles for the benefit of such Principals and/or their family members, to Persons who are employees or associates of, or advisors or consultants to, the Partnership, the General Partner, the Management Company or any Affiliate thereof, or pursuant to any pledge as security for any borrowing).

11.2 **TRANSFERS OF LIMITED PARTNERSHIP INTERESTS.**

11.2.1 **General.**

No Transfer of a Limited Partner's interest in the Partnership, in whole or in part, shall be made other than pursuant to this 11.2. Any attempted Transfer of all or any part of a Limited Partner's interest in the Partnership without compliance with this Agreement shall be void. Each Transfer shall be subject to all of the terms, conditions, restrictions and obligations set forth in this Agreement, be evidenced by a written agreement executed by the transferor, the transferee(s) and the General Partner, in form and substance satisfactory to the General Partner, and be effective as of the first day or last day of a fiscal quarter (unless otherwise agreed to by the General Partner).

11.2.2 **Consent of General Partner.**

The prior written consent of the General Partner, which may be granted or withheld in its sole discretion, shall be required for any Transfer of all or part of any Limited Partner's interest in the Partnership, including a Transfer of solely an economic interest in the Partnership. As a condition to its consent to a Transfer, the General Partner shall be authorized to impose such terms as it deems appropriate, in its sole discretion.

11.2.3 **No Public Trading in Partnership Interests.**

The General Partner shall not cause or permit any offering of interests in the Partnership to be registered under the Securities Act or to become "traded on an established securities market," and shall withhold its consent to any Transfer that, to the General Partner's knowledge after reasonable inquiry, otherwise would be accomplished by a trade on a "secondary market or the substantial equivalent thereof," in each case within the meaning of Sections 7704 or 469(k) of the Code and the applicable Treasury Regulations.

11.2.4 **No Recognition of Certain Transfers.**

No Transfer of any "partnership interest" (as defined in Treasury Regulations Section 1.7704-1(a)(2)) in the Partnership or portion thereof or derivative interest therein shall be permitted or "recognized" (within the meaning of Treasury Regulations Section 1.7704-1(d)) by the Partnership or the General Partner unless either (a) the General Partner determines that such Transfer will not

cause the Partnership to fail to qualify for any otherwise applicable safe harbor set forth in the Treasury Regulations under Section 7704 of the Code or (b) the General Partner otherwise determines, after consulting with the Partnership's tax advisors, that such Transfer will not cause the Partnership to be treated as a publicly traded partnership under Section 7704(b) of the Code.

11.2.5 **Required Representations by Parties.**

(a) The transferor and each transferee shall provide to the General Partner, in connection with any proposed Transfer, written representations to the effect that:

(1) The proposed Transfer will not be effected on or through (A) a national, regional, local or other securities exchange or (B) an interdealer quotation system that regularly disseminates firm buy or sell quotations by identified brokers or dealers; and

(2) Such Person is not, and its proposed Transfer or acquisition (as the case may be) will not be made by, through or on behalf of (A) a Person, such as a broker or a dealer, making a market in interests in the Partnership, or (B) a Person who regularly makes available to the public bid or offer quotes with respect to interests in the Partnership.

(b) The transferor and transferee(s) shall provide such additional written representations as the General Partner reasonably may request, including representations required by 14.7.4.

(c) The General Partner and counsel to the Partnership shall be permitted to rely upon any representations made by the transferor and transferee(s), whether pursuant to 11.2.5(a) or 11.2.5(b) or otherwise, and on written representations from other Partners made prior to or contemporaneously with such proposed Transfer. The General Partner, in its sole discretion, may waive its right to obtain any representations otherwise required by 11.2.5(a) or 11.2.5(b).

11.2.6 **Other Prohibited Legal Consequences.**

No Transfer shall be permitted, and the General Partner shall withhold its consent with respect thereto, if it determines in good faith that such Transfer would:

(a) Result in the Partnership's assets becoming "plan assets" of any ERISA Partner within the meaning of the Plan Assets Regulation;

(b) Result in a non-exempt "prohibited transaction" under Section 406 of ERISA, Section 4975 of the Code, or any similar law;

(c) Result in a violation of the registration requirements of the Securities Act;

(d) Require any Viola Credit III Fund to register as an investment company under the Investment Company Act;

(e) Require the General Partner or any of its Affiliates to register as an investment adviser under the Advisers Act;

(f) Result in the Partnership being classified for United States federal income tax purposes as an association taxable as a corporation;

(g) Result in the Partnership being considered to be a "publicly traded partnership" under Section 7704 of the Code or failing to satisfy any otherwise applicable safe harbor from treatment as such.

11.2.7 **Opinion of Counsel.**

Any Transfer otherwise permitted hereunder will be made only upon receipt by the Partnership of a written opinion of counsel for the Partnership, or of other counsel reasonably satisfactory to the General Partner, in form and substance satisfactory to the General Partner, as to compliance with 11.2.6 and such other legal matters as the General Partner reasonably may request. The General Partner may waive, in whole or in part, the requirement of an opinion pursuant to this 11.2.7.

11.2.8 **Reimbursement of Transfer Expenses.**

The transferor of any interest in the Partnership hereby agrees to reimburse the Partnership, at the request of the General Partner, for any expenses reasonably incurred by the Partnership in connection with such Transfer, including the costs of seeking and obtaining the legal opinion required by 11.2.7 or 11.3.1, costs resulting from an election pursuant to Section 754 of the Code and adjusting the basis of Partnership assets under such election, and any other legal, accounting and miscellaneous expenses ("**Transfer Expenses**"), whether or not such Transfer is consummated. At its election, and in any event if the transferor has not reimbursed the Partnership for any Transfer Expenses incurred by the Partnership in preparing for or consummating a proposed or completed Transfer within ten (10) days after the General Partner has delivered to such Partner written demand for payment, the General Partner may seek reimbursement from the transferee of such interest. If the transferee does not reimburse the Partnership for such Transfer Expenses within a reasonable time, the General Partner may offset the amount of such Transfer Expenses against any distribution payable under Article 7 with respect to the interest transferred or proposed to be transferred (it being understood that the amount so offset shall be deemed to have been distributed).

11.2.9 **Withholding Tax Forms.**

Notwithstanding anything in this Agreement to the contrary, except as otherwise agreed by the General Partner in its sole discretion, as a condition to any proposed Transfer:

(a) If the Partner who proposes to transfer its interest in the Partnership (or if such Partner is a disregarded entity for U.S. federal income tax purposes, the first direct or indirect beneficial owner of such Partner that is not a disregarded entity (the "**Partner's Owner**")) is a "United States person" as defined in Section 7701(a)(30) of the Code, then such Partner (or the Partner's Owner, if applicable) shall complete and provide to both of the transferee and the Partnership, a duly executed IRS Form W-9; or

(b) If the Partner who proposes to transfer its interest in the Partnership (or if such Partner is a disregarded entity for U.S. federal income tax purposes, the Partner's Owner) is not a "United States person" as defined in Section

7701(a)(30) of the Code, then such transferor and transferee shall jointly provide to the Partnership written proof reasonably satisfactory to the General Partner that any applicable withholding tax that may be imposed on such transfer (including pursuant to Sections 864 and 1446 of the Code) and any related tax returns or forms that are required to be filed, have been, or will be, timely paid and filed, as applicable.

11.3 ADMISSION OF SUBSTITUTED LIMITED PARTNERS.

11.3.1 General.

Any transferee of a Partnership interest transferred in accordance with the provisions of this Article 11 shall be admitted as a Limited Partner only with the General Partner's written consent (which consent may be withheld for any reason or for no reason), and upon its execution of a Subscription Agreement pursuant to which it agrees to adhere to the terms of this Agreement. Without the written consent of the General Partner to such substitution and the written opinion of counsel required by 11.2.7 (or waiver thereof by the General Partner), no transferee of a Partnership interest shall be admitted as a Limited Partner.

11.3.2 Effect of Admission.

The transferee of an interest in the Partnership transferred pursuant to this Article 11 that is admitted to the Partnership as a Limited Partner shall succeed to the rights and liabilities of the transferor Limited Partner with respect to such interest and, after the effective date of such admission, the Subscription, Contribution, Sharing Percentages and Capital Account of the transferor shall become the Subscription, Contribution, Sharing Percentages and Capital Account of the transferee, to the extent of the interest transferred. If a transferee is not admitted to the Partnership as a Limited Partner, (a) such transferee shall have no right to participate with the Limited Partners in any votes taken or consents granted or withheld by the Limited Partners hereunder, and (b) the transferor (including, if applicable, the estate, legal representative, or other successor of the original owner) shall remain liable to the Partnership for all contributions and other amounts payable with respect to the transferred interest to the same extent as if no Transfer had occurred.

11.4 NON-COMPLIANT TRANSFER.

If a Transfer has been proposed or attempted but has not satisfied the requirements of this Article 11 (including, as determined in good faith by the General Partner, any transaction which does not otherwise constitute a Transfer but a purpose of which is to achieve indirectly a result similar to that which would be achieved directly if such transaction were structured as a Transfer), the General Partner shall not admit the purported transferee as a Limited Partner but, to the contrary, shall use its reasonable best efforts to ensure that the Partnership (a) continues to treat the transferor as the sole owner of the interest in the Partnership purportedly transferred, (b) makes no distributions to the purported transferee, and (c) does not furnish to the purported transferee any tax or financial information regarding the Partnership. The General Partner shall also use its reasonable best efforts to ensure that the Partnership does not otherwise treat the purported transferee as an owner of any interest in the Partnership (either legal or equitable), unless required by law to do so. The Partnership shall be entitled to seek injunctive relief, at the expense of the purported transferor, to prevent any such purported Transfer.

11.5 MULTIPLE OWNERSHIP.

If any Transfer results in multiple ownership of any Limited Partner's interest in the Partnership, the General Partner may require one or more trustees or nominees to be designated as representing a portion of or the entire interest transferred for purposes of (a) receiving all notices which may be given, and all payments which may be made, under this Agreement and (b) exercising all rights which the transferor as a Limited Partner has pursuant to the provisions of this Agreement.

11.6 NO WITHDRAWAL RIGHTS.

Except as otherwise provided in this Agreement, no Partner shall have the right to withdraw from the Partnership, to withdraw its capital and profits from the Partnership, or to demand and receive any Partnership property in exchange for its interest in the Partnership.

ARTICLE 12 - EXCULPATION AND INDEMNIFICATION

12.1 EXCULPATION.

12.1.1 General.

No Covered Person, whether or not such Person remains a Covered Person, shall be liable to the Partnership or any Partner for any loss suffered by the Partnership or any Partner which arises out of any investment or any other action or omission of such Covered Person if (a) such Covered Person acted in good faith, and (b) such conduct did not constitute gross negligence (except that such exclusion for gross negligence shall not apply to liability arising out of or relating to a Covered Person's service as a director or an officer (or equivalent role) of any former or current Originating Platform (or other Person which is or was a Portfolio Investment), actual fraud, intentional misconduct or a willful, material breach of this Agreement. For purposes of this Article 12, "**Covered Person**" shall mean the General Partner (including without limitation the General Partner acting as liquidator), the Partnership Representative, any "designated individual," the partners of the General Partner, each Principal, the Management Company, any Affiliate of any of the foregoing and each direct and indirect partner, member, stockholder, director, officer, manager, employee, consultant or agent of any of the foregoing).

12.1.2 Further Limitations.

No action, suit or proceeding may be brought by any Limited Partner against a Covered Person with respect to any investment or any other act or omission by such Covered Person which relates to either the Partnership, the Viola Credit III Investors taken as a whole, or any class or group of Viola Credit III Investors, unless such action, suit or proceeding is brought by (i) one or more Viola Credit III Investors representing at least twenty percent (20%) in interest of the Viola Credit III Investors with respect to the Partnership or the Limited Partners taken as a whole, or (ii) one or more Viola Credit III Investors representing at least twenty percent (20%) in interest of the Viola Credit III Investors within such class or group if with respect to any class or group of Viola Credit III Investors.

12.1.3 Activities of Others.

No Covered Person shall be liable for the negligence, whether by action or omission, dishonesty or bad faith of any employee, broker or other agent of the Partnership selected by any Covered Person with reasonable care.

12.1.4 Advisory Committee Members.

No member of the Advisory Committee and no Limited Partner who may have designated such member shall be liable to the Viola Credit III Funds or any Partner for any loss suffered by the Viola Credit III Funds or any Partner which arises out of any action or omission of such member, provided that such member acted in good faith.

12.1.5 **Liquidator.**

No Person other than the General Partner that serves as liquidator pursuant to Article 10 shall be liable to the Partnership or any Partner for any loss suffered by the Partnership or any Partner which arises out of any action or omission of such Person, provided that such Person acted in good faith.

12.1.6 **Advice of Experts.**

No Covered Person, no member of the Advisory Committee and no Person serving as liquidator shall be liable to the Partnership or any Partner with respect to any action or omission taken or suffered by any of them in good faith if such action or omission is taken or suffered in reliance upon and in accordance with the opinion or advice of legal counsel (as to matters of law), or of accountants (as to matters of accounting), or of investment bankers, accounting firms, or other appraisers (as to matters of valuation), provided that any such professional or firm is selected by any such Person with reasonable care.

12.2 **INDEMNIFICATION.**

12.2.1 **General.**

The Covered Persons, each liquidator, each member of the Advisory Committee, each Limited Partner that designated a member of the Advisory Committee, each Equity Holder that designated a member of the Advisory Committee, and each partner, member, stockholder, director, officer, manager, trustee, employee, consultant, agent and Affiliate of any of the foregoing (each, an "**Indemnitee**") shall be indemnified (whether or not the Indemnitee continues to serve in such capacity at the time such action, suit or proceeding is brought or threatened), subject to the other provisions of this Agreement, by the Partnership (only out of Partnership assets, including the proceeds of liability insurance) to the maximum extent permitted by law against any claim, demand, controversy, dispute, cost, loss, damage, expense (including attorneys' fees), judgment and/or liability incurred by or imposed upon the Indemnitee in connection with any action, suit or proceeding (including any proceeding before any administrative or legislative body or agency), to which the Indemnitee may be made a party or otherwise involved or with which the Indemnitee shall be threatened, by reason of the Indemnitee's being at the time the cause of action arose or thereafter, a Covered Person, a liquidator, a member of the Advisory Committee, a Limited Partner that designated a member of the Advisory Committee, an Equity Holder that designated a member of the Advisory Committee, a partner, member, stockholder, director, officer, manager, trustee, employee, agent or Affiliate of any of the foregoing, or a partner, member, stockholder, director, officer, manager, trustee, employee, consultant or agent of any other organization in which the Partnership owns or has owned an interest or of which the Partnership is or was a creditor, which other organization the Indemnitee serves or has served as a partner, member, stockholder, director, officer, manager, trustee, employee, consultant or agent at the request of the Partnership, or by reason of actions or omissions taken or suffered in any such capacity.

12.2.2 **Limitation on Indemnification.**

An Indemnitee shall not be indemnified with respect to matters as to which the Indemnitee shall have been finally adjudicated in any such action, suit or proceeding (a) with respect to an Indemnitee which is a member of the Advisory Committee, a Limited Partner that designated a member of the Advisory Committee or an Equity Holder that designated a member of the Advisory Committee not to have acted in good faith, and (b) with respect to all other Indemnitees, not to have acted in good faith, to have committed actual fraud, to have acted with gross negligence (except that such exclusion for gross negligence shall not apply to liability arising out of or relating to an Indemnitee's services as a director or an officer (or equivalent role) of any former or current Originating Platform (or other Person which is or was a Portfolio Investment)) or intentional misconduct, or to have willfully and materially breached this Agreement.

12.2.3 **Advance Payment of Expenses.**

The Partnership shall pay the expenses incurred by an Indemnitee in connection with any such action, suit or proceeding, or in connection with claims arising in connection with any potential or threatened action, suit or proceeding, in advance of the final adjudication of such action, suit or proceeding, upon (a) the assignment by such Indemnitee of any and all rights that the Indemnitee may have to seek indemnification from a Third-Party Indemnifier with respect to such action, suit or proceeding, (b) the execution of a written agreement between the Partnership and the Indemnitee reflecting that, as a result of the advancement of such expenses, the Partnership is subrogated to the Indemnitee's rights to pursue a claim for indemnification from a Third-Party Indemnifier with respect to such action, suit or proceeding, and (c) the receipt of an enforceable undertaking by such Indemnitee to repay such payment if the Indemnitee shall be determined to be not entitled to indemnification for such expenses pursuant to this 12.2 (whether by virtue of such Person's conduct, the receipt of a corresponding indemnification payment from a Third-Party Indemnifier with respect to such matter, or otherwise); provided, however, that in such instance the Indemnitee is not defending an actual or threatened claim, action, suit or proceeding against the Indemnitee by the Partnership, the General Partner and/or the Management Company (or by the Indemnitee against the Partnership, the General Partner and/or the Management Company) or against the Indemnitee by at least two-thirds in interest of the Viola Credit III Investors.

12.2.4 **Insurance.**

At its election, the General Partner may cause the Partnership to purchase and maintain insurance, at the expense of the Partnership and to the extent available, for the protection of any Indemnitee or potential Indemnitee against any liability incurred in any capacity which results in such Person being an Indemnitee (provided that such Person is serving or has served in such capacity at the request of the Partnership or the General Partner), whether or not the Partnership has the power to indemnify such Person against such liability. The General Partner may purchase and maintain insurance on behalf of and at the expense of the Partnership for the protection of the Partnership, the General Partner, the Management Company, and any of their respective direct or indirect partners, members, stockholders, officers, directors, managers, employees, agents or affiliates of any other organization in which the Partnership owns an interest or of which the Partnership is a creditor against similar liabilities, whether or not the Partnership has the power to indemnify any Person against such liabilities.

12.2.5 **Successors.**

The foregoing right of indemnification shall inure to the benefit of the executors, administrators, personal representatives, successors or assigns of each such Indemnitee.

12.2.6 **Rights to Indemnification from Other Sources.**

12.2.6.1 Indemnification from Other Sources

The rights to indemnification and advancement of expenses conferred in this 12.2 shall not be exclusive and shall be in addition to any rights to which any Indemnitee may otherwise be entitled or hereafter acquire under any law, statute, rule, regulation, charter document, by-law, contract or agreement. If and to the extent indemnification is available to an Indemnitee from any Third-Party Indemnifier, the Indemnitee will use commercially reasonable efforts to obtain indemnification from such Third-Party Indemnifier before seeking indemnification from the Partnership; provided, that, the foregoing shall not limit the advance payments of expenses provided for in 12.2.3 or otherwise prejudice the Indemnitee in any way.

12.2.6.2 Priority of Indemnity Obligations

The Partners hereby expressly intend that the provisions of this 12.2 shall be interpreted to reflect an ordering of liability for potentially overlapping or duplicative indemnification payments to an Indemnitee, with any applicable Third-Party Indemnifiers having primary liability and the Partnership having only secondary liability. In the event the Partnership makes any indemnification payments to an Indemnitee with respect to any action, suit or proceeding, the Partnership shall be, automatically and without the need for any further action on the part of any Person, subrogated to the Indemnitee's rights to pursue a claim for indemnification from a Third-Party Indemnifier with respect to such action, suit or proceeding.

12.2.7 **Discretionary Limitation by General Partner.**

Notwithstanding 12.2.1 and 12.2.3, the General Partner in its sole discretion may limit or eliminate indemnification payments that otherwise would be made by the Partnership to any Indemnitee other than a member of the Advisory Committee or a Limited Partner or Equity Holder that designated such member.

12.2.8 **Enforcement of Rights.**

No Person who is not a party to this Agreement shall be entitled to enforce any term of this Agreement, save that each Covered Person and Indemnitee may, directly in its own right, enforce this Article 12 pursuant to and in accordance with The Contracts (Rights of Third Parties) Act (As Revised) of the Cayman Islands, provided that the consent of any third party (including a Covered Person or Indemnitee) who is not a party to this Agreement shall not be required for any amendment to, or variation, rescission or termination of, this Agreement (including, without limitation, this Article 12).

12.2.9 **Determination of Gross Negligence.**

For purposes of this Agreement, the term "gross negligence" shall be given the meaning such term is given under the laws of the State of Delaware in the United States.

12.3 **LIMITATION BY LAW.**

If any Covered Person or Indemnitee or the Partnership itself is subject to any law, rule or regulation which restricts the extent to which any Person may be exculpated or indemnified by the Partnership, the exculpation provisions set forth in 12.1 and the indemnification provisions set forth in 12.2

shall be deemed to be amended, automatically and without further action by the Partners, to the minimum extent necessary to conform to such restrictions.

12.4 **RETURN OF CERTAIN DISTRIBUTIONS.**

If (a) the Partnership incurs a liability or obligation under this Article 12, (b) the Partnership does not have sufficient available funds to satisfy such liability or obligation, and (c) each Partner (other than a Defaulting Partner) has already made aggregate contributions equal to such Partner's Subscription, then the General Partner may require that each Partner make additional contributions to the capital of the Partnership, as follows:

(a) If the liability or obligation arises out of a Portfolio Investment:

(1) first, up to the amount of the distributions made in connection with such Portfolio Investment, in such amounts as shall result (to the maximum extent practicable) in each Partner retaining cumulative distributions from the Partnership (net of any returns of distributions under this 12.4 or 10.5.3) equal to the cumulative amount that would have been distributed to and retained by such Partner had the amount of such distributions been, at the time of such distribution, reduced by the amount of such obligation or liability, as equitably determined by the General Partner; and

(2) thereafter, by the Partners in proportion to their Sharing Percentages with respect to such Portfolio Investment, or

(b) If the liability or obligation does not arise out of a Portfolio Investment, such Partner's *pro rata* share, based on the relative Contributions of the Partners, of the amount necessary to satisfy such liability or obligation;

provided, that (*x*) no Partner shall be required to contribute an aggregate amount pursuant to this 12.4 greater than the aggregate amount of distributions made to such Partner (and such Partner's predecessors in interest) pursuant to Articles 7 and 10, (*y*) no Limited Partner shall be required to contribute an aggregate amount pursuant to this 12.4 greater than an amount equal to thirty-five percent (35%) of such Limited Partner's Subscription, and (*z*) no Partner shall be required to contribute any amounts pursuant to this 12.4 after the third anniversary of the date upon which the winding up of the Partnership is complete, except to fund such liability or obligation (A) that stems from a claim or claims that have been filed or threatened as of such third anniversary date and (B) with respect to which the General Partner has delivered written notice to the Partners on or before thirty (30) days after such third anniversary date. Any amounts required to be returned pursuant to this 12.4 shall be treated in the same manner and be subject to the same provisions as other capital contributions required to be made by Article 6, but shall not be considered part of the Subscription of any Partner. A Partner's obligation to make contributions to the Partnership under this 12.4 shall survive the dissolution of the Partnership (in which case the obligation shall be owed to the General Partner).

ARTICLE 13 - AMENDMENTS, VOTING AND CONSENTS

13.1 **AMENDMENTS.**

13.1.1 **Consent of Partners.**

Except as otherwise provided in this Agreement, the terms and provisions of this Agreement may be waived, modified, terminated or amended, during or after the term of the Partnership, with the prior written consent of the General Partner and a majority-in-interest of the Limited Partners; provided, however, that any provision of this Agreement requiring the written vote or consent of a greater percentage in interest of the Limited Partners may be waived, modified, terminated or amended only with the vote or written consent of the General Partner and such greater percentage in interest of the Limited Partners as is required by such provision. If any other Viola Credit III Fund is formed, then (a) the required consent for waiver, modification, termination or amendment of this Agreement or other vote or consent provided for in this Agreement shall be the General Partner and a majority-in-interest (or higher percentage if applicable) of the Viola Credit III Investors, regardless of whether a majority-in-interest (or higher percentage if applicable) of the Limited Partners, taken separately, consent thereto, and (b) the General Partner shall use its reasonable efforts to cause substantially identical amendments to be made to the organizational documents of the other Viola Credit III Funds, subject to any special tax, legal, regulatory, or other consideration applicable to the other Viola Credit III Fund or its respective investors. Any provision(s) of this Agreement or the limited partnership agreement or other organizational document of a Viola Credit III Fund that relates to any special tax, legal, regulatory, or other consideration that appears only in this Agreement or such other agreement or document may be amended with the consent of the General Partner and a majority-in-interest (or higher percentage if applicable) of the Viola Credit III Investors participating in the Partnership or other Viola Credit III Fund, as applicable.

13.1.2 **Amendments Affecting Partners' Economic Rights.**

No amendment shall increase the Subscription of any Limited Partner or dilute the interest of any Limited Partner relative to the interests of the other Limited Partners in the profits or capital of the Partnership or in allocations or distributions attributable to the ownership of such interest without the prior written consent of such Limited Partner, except such dilution as may result from additional Subscriptions from the Partners or the admission of additional Limited Partners pursuant to this Agreement, and pursuant to an exercise of remedies by the Partnership under 3.3.3 and 6.3. This 13.1.2 shall not be amended without the unanimous consent of all Partners adversely affected thereby.

13.1.3 **Consent to Amend Special Provisions.**

Without the prior written consent of the Partners indicated, the text of the following provisions shall not be amended:

(a) The penultimate sentence of 3.6.4(a), 4.6, 5.4, the proviso in 6.1.2, this 13.1.3(a) and the definitions of ERISA, ERISA Partner and Plan Assets Regulation without the prior written consent of a majority-in-interest of all Viola Credit III Investors that are ERISA Partners, if any;

(b) 4.4 and this 13.1.3(b) without the prior written consent of a majority-in-interest of all Viola Credit III Investors that are Tax-Exempt Partners, if any; or

(c) 4.5 and this 13.1.3(c) without the prior written consent of a majority-in-interest of all Viola Credit III Investors that are Non-U.S. Partners, if any.

13.1.4 **Notice of Amendments.**

The General Partner shall furnish copies of any amendments to this Agreement to all Partners, other than changes in the List of Partners to reflect the admission or withdrawal of Partners, changes in the addresses of Partners or otherwise in accordance with 3.1, and changes in the Subscriptions of Partners (in each case occurring pursuant to this Agreement), which shall not require the consent of or notice to any Limited Partner.

13.1.5 **Corrective Amendments.**

Notwithstanding the other provisions of this Article 13, the General Partner, without the consent of any other Partner, may amend any provisions of this Agreement:

(a) to add to the duties or obligations of the General Partner or surrender any right granted to the General Partner herein;

(b) to cure any ambiguity or correct or supplement any provision herein which may be inconsistent with any other provision herein or to correct any printing, stenographic or clerical errors or omissions in order that this Agreement shall accurately reflect the agreement among the Partners;

(c) amend this Agreement to satisfy any requirements, conditions, guidelines or opinions contained in any opinion, directive, order, ruling or regulation of the SEC, the Internal Revenue Service or any other U.S. federal or state or non-U.S. governmental agency, or in any U.S. federal or state or non-U.S. statute, compliance with which the General Partner deems to be in the best interest of the Partnership;

(d) amend this Agreement as may be necessary or advisable to comply with any anti-money laundering or anti-terrorist laws, rules, regulations, directives or special measures; and

(e) amend this Agreement as may be necessary to make any amendments to this Agreement, including in connection with negotiations with Additional Limited Partners in connection with their admission to the Partnership as Limited Partners;

provided, however, that no amendment shall be made pursuant to this 13.1.5 unless the General Partner reasonably shall have determined that such amendment will not (1) subject any Limited Partner to any material adverse economic consequences or (2) alter or waive in any material respect the duties and obligations of the General Partner to the Partnership or the Limited Partners.

13.1.6 **Tax-Related Amendments.**

Notwithstanding anything in this Agreement to the contrary, if, after the Initial Closing Date, any statute, rule or regulation is enacted or promulgated (or if the General Partner determines that such enactment or promulgation is imminent), or the U.S. Internal Revenue Service or the Israeli Tax Authority issues any notice, announcement or other guidance, including an Israeli Tax Ruling, that affects the U.S. federal or Israeli income tax treatment of any allocations or distributions to the General Partner (including a change in applicable tax rate), then this Agreement may be amended by the General Partner without the consent of any Limited Partner in such manner as is determined by the General Partner in good faith to provide for (A) a change in the terms applicable to the

allocations of Partnership profits and losses, or distributions, to the General Partner to preserve the treatment as of the Initial Closing Date of such allocations or distributions or otherwise to reduce the adverse impact of such change in law on the General Partner and its direct and indirect owners, and (B) any other amendments reasonably related thereto or reasonably required in connection therewith; *provided* that any amendment made by the General Partner pursuant to this sentence shall not reduce the aggregate amount of distributions to which the Limited Partners are otherwise entitled under this Agreement or, by its terms, adversely affect the Limited Partners as a group.

13.1.7 **Amendments Related to Domestication or Reregistration**

Notwithstanding any other provision of this Agreement or any Subscription Agreement to the contrary and notwithstanding any voting, approval or consent right under applicable law (except to the extent such voting, approval or consent right is mandatory under applicable law), the General Partner may, in its sole discretion and without any consent or approval of any Limited Partner, (i) at any time that the Partnership is organized as a Cayman Islands exempted limited partnership, domesticate the Partnership as a limited partnership in the State of Delaware pursuant to Section 17- 215 of the Delaware Revised Uniform Limited Partnership Act, as amended (the "**Delaware Act**") and de-register the Partnership in the Cayman Islands (each such transaction described in the foregoing clause (i) is referred to herein as a "**Domestication**") or (ii) at any time that the Partnership is organized as a Delaware limited partnership (including following a Domestication), transfer the Partnership out of Delaware pursuant to Section 17-216 of the Delaware Act and register the Partnership in the Cayman Islands as a Cayman Islands exempted limited partnership pursuant to the ELP Act (each such transaction described in the foregoing clause (ii) is referred to herein as a "**Reregistration**"). The General Partner will notify and consult with the Advisory Committee at least fifteen (15) days prior to the consummation of any Domestication or Reregistration. Following the consummation of a Domestication or a Reregistration of the Partnership, the General Partner shall notify the Partners of such Domestication or Reregistration, as applicable, of the Partnership and the effective date thereof. Further, notwithstanding any other provision of this Agreement or any Subscription Agreement to the contrary and notwithstanding any voting, approval or consent right under applicable law (except to the extent such voting, approval or consent right is mandatory under applicable law), the General Partner shall have the authority, in its sole discretion and without any consent or approval of any Limited Partner, to (x) approve any amendment, amendment and restatement or modification to this Agreement and the Subscription Agreements in order to accord with the laws of the State of Delaware in place of the laws of the Cayman Islands and (y) adopt any certificates, deeds, agreements, statements or other documents that, in each case, the General Partner determines to be necessary or appropriate in connection with or to consummate a Domestication or a Reregistration, as applicable.

13.2 **VOTING AND CONSENTS.**

Subject to 13.1.1 with respect to any other Viola Credit III Funds, whenever action is required by this Agreement to be taken by a specified percentage in interest of the Limited Partners, such action shall be deemed to be valid if taken upon the written vote or written consent of those Limited Partners whose Contributions represent the specified percentage of the aggregate Contributions of all Limited Partners at the time. Similarly, whenever action is required by this Agreement to be taken by a specified percentage in interest of a specified class or group of Limited Partners such action shall be deemed to be valid if taken upon the written vote or written consent of those Limited Partners of such class or group whose Contributions represent the specified percentage of the aggregate Contributions of all Limited Partners of such class or group at the time. For these purposes, (a) a majority-in-interest shall mean a percentage in interest in excess of fifty percent (50%), (b) two-thirds in interest shall mean a percentage in interest equal to or in excess of sixty- six and two-thirds percent (66 2/3%), and (c) Non-Voting Interests, if any, shall not

be taken into account. Any limited partner interest in the Partnership held by the General Partner, any Principal, any Affiliate of the General Partner or a Principal, or any Defaulting Partner shall be deemed a Non-Voting Interest.

13.3 BHCA PARTNER VOTING.

If and to the extent that any corporation, partnership or other entity that is subject to the BHCA Act, and Regulation Y of the Board of Governors of the Federal Reserve System promulgated thereunder ("**Regulation Y**") shall at any time be a Limited Partner and has so informed the General Partner in writing of its status as such a BHCA Partner, then so much of the limited partnership interest held by such BHCA Partner (together with all limited partner interests held by or for the account of Limited Partners that are identified by such BHCA Partner in writing to the General Partner) as its affiliates (as defined in 12 U.S.C. §1841(k)) as from time to time exceeds 4.99% of the then total outstanding limited partnership interests or the number or voting power of any other class of voting interests (within the meaning of Regulation Y and exclusive of Non-Voting Interests and BHCA Non-Voting Interests) (the "**BHCA Threshold**") shall constitute a separate class of limited partnership interests irrevocably denominated "**BHCA Non-Voting Interests**" (whether or not subsequently Transferred in whole or in part to any other Person except as provided in the following sentence). Upon the admission of any Additional Limited Partners to the Partnership, or the default, excuse, nonparticipation or withdrawal of any Partner or any other event resulting in an adjustment in the relative interests of the Limited Partners, a recalculation of the interests in the Partnership held by all BHCA Partners and their respective affiliates shall be made, and only that portion of the total limited partner interest held by each BHCA Partner and such affiliates that is determined as of the date of such admission (or as of the date of such other event causing a recalculation of interests), to be in excess of the BHCA Threshold as of such date shall be a BHCA Non-Voting Interest; provided that in all cases BHCA Non-Voting Interests that have been transferred by a BHCA Partner to another Person shall remain BHCA Non-Voting Interests; and further provided that no BHCA Non-Voting Interests held by a BHCA Partner shall convert back into voting interests as the result of the BHCA Partner transferring a portion of its interest to another Person. The rights, privileges, benefits and liabilities pertaining to the BHCA Non-Voting Interests shall be identical in all respects to the rights, privileges, benefits and liabilities pertaining to all other limited partnership interests, except that holders of BHCA Non-Voting Interests shall not be entitled to vote upon, or give consents in respect of, any vote or consent of the Limited Partners under this Agreement other than with respect to class voting and consent rights over matters that would significantly and adversely affect the rights or preferences of the class of voting interests, or that would otherwise be permitted for "nonvoting securities" within the meaning of Regulation Y (12 C.F.R. 225.2(q)(2)), or any successor regulation thereto.

ARTICLE 14 - ADMINISTRATIVE PROVISIONS

14.1 KEEPING OF ACCOUNTS AND RECORDS.

At all times the General Partner shall cause to be kept proper and complete books of account, in which shall be entered fully and accurately the transactions of the Partnership. Such books of account shall be kept on the accrual method of accounting. The General Partner shall also maintain:

(a) an executed copy of this Agreement (and any amendments hereto) as may be in effect from time to time; (b) the Registration Statement (and any amendments thereto); (c) executed copies of any powers of attorney pursuant to which any document described in clause (a) has been executed by the Partnership; (d) the List of Partners; (e) copies of all tax returns filed by the Partnership for each of the prior five years; (f) all financial statements of the Partnership for each of the prior five years; and (g) the

Statutory Registers. Such books and records shall at all times be maintained at the principal office of the Partnership, and shall be retained for a minimum of six years from the date on which they are prepared.

14.2 INSPECTION RIGHTS.

At any time before the Partnership's complete liquidation, each Limited Partner at its own expense may (a) fully examine and audit the Partnership's books, records, accounts and assets, including bank account balances, and (b) examine, or request that the General Partner furnish, such additional information as is reasonably necessary to enable the requesting Partner to review the state of the investment activities of the Partnership, provided that the General Partner can obtain such additional information without unreasonable effort or expense. Any such examination or audit shall be made (1) only upon fifteen (15) days' prior written notice to the General Partner, (2) during normal business hours, and (3) without undue disruption. A Limited Partner's right to receive information about the state of the business and financial position of the Partnership shall be limited to the rights expressly provided for under this Agreement. Notwithstanding the foregoing, the General Partner shall have the benefit of the confidential information provisions of 14.8.7.

14.3 FINANCIAL REPORTS.

14.3.1 Annual Financial Statements.

The General Partner shall use commercially reasonable efforts to transmit to each Partner, within one hundred and twenty (120) days after the close of each fiscal year (commencing with the fiscal year in which the Initial Drawdown Date occurs), the financial statements of the Partnership for such fiscal year. Such financial statements shall be prepared in accordance with the Applicable Accounting Standards or another comprehensive basis of accounting, in each case consistently applied in accordance with the terms of this Agreement (provided that if such financial statements are prepared in accordance with a comprehensive basis of accounting other than the Applicable Accounting Standards, then the General Partner shall provide, in addition to such financial statements, an unaudited statement of the Capital Accounts of the Partners for such fiscal year prepared in accordance with the Applicable Accounting Standards consistently applied in accordance with the terms of this Agreement except that (x) Partnership assets shall be valued in accordance with 14.4 and (y) the Partnership shall not be required to consolidate (or otherwise combine, including without limitation via the equity method of accounting) its financial results with those of its Originating Platforms, regardless of whether the Applicable Accounting Standards would permit such method of valuation or would require such consolidation (or other form of combination)) and audited by a nationally recognized firm of independent public accountants.

14.3.2 Annual Tax Information.

The General Partner shall use commercially reasonable efforts to transmit to each Partner, within one hundred and eighty (180) days after the close of each fiscal year, such Partner's Schedule K-1 (Internal Revenue Service Form 1065) or an equivalent report indicating such Partner's share of all items of income or gain, expense, loss or other deduction and tax credit of the Partnership for such year, as well as the status of such Partner's Capital Account as of the end of such year, and such additional information as such Partner reasonably may request to enable it to complete its tax returns or to fulfill any other reporting requirements, provided that the General Partner can obtain such additional information without unreasonable effort or expense.

14.3.3 **Quarterly Financial Statements.**

The General Partner shall use commercially reasonable efforts to furnish to each Limited Partner, within sixty (60) days after the end of each of the first three fiscal quarters of each fiscal year of the Partnership unaudited financial statements of the Partnership for the quarter then ended.

14.4 **VALUATION.**

14.4.1 **Valuation by General Partner.**

The General Partner is responsible for the valuation of the Partnership's assets and production of the valuation. Whenever valuation of Partnership assets or net assets is required by this Agreement, the General Partner shall determine the fair market value thereof in good faith in accordance with this 14.4. Such determination by the General Partner shall be binding and conclusive for all purposes under this Agreement.

14.4.2 **Freely Tradable Securities.**

The fair market value of any security owned by the Partnership that is a Freely Tradable Security and which is distributed by the Partnership shall be determined as of the close of trading on the date of distribution and shall be equal to the last reported trade price of such security on such date on the exchange where it is primarily traded or, if such security is not traded on an exchange, such security shall be valued at the last reported sale price on NASDAQ Stock Market ("**NASDAQ**") or, if such security is not traded on an exchange or reported on NASDAQ, such security shall be valued at the reported closing bid price (or average of bid prices) last quoted on such date as reported by an established quotation service for over-the-counter securities. For purposes of the preceding sentence, the "last reported" trade price or sale price or "closing" bid price of a security on any trading day shall be deemed to be: (a) with respect to securities traded primarily on the New York Stock Exchange, the NYSE American or NASDAQ, the last reported trade price or sale price, as the case may be, as of 4:00 p.m., New York time, on that day, and (b) for securities listed, traded or quoted on any other exchange, market, system or service, the market price as of the end of the "regular hours" trading period that is generally accepted as such by such exchange, market, system or service.

14.4.3 **Other Assets.**

The General Partner's determination of the fair market value of all other assets of the Partnership shall be based upon all relevant factors, which may include, without limitation: (a) the current financial position and current and historical operating results of the issuer; (b) sales prices of recent public or private transactions in the same or similar securities, including transactions on any securities exchange on which such securities are listed or in the over-the-counter market; (c) general level of interest rates; (d) recent trading volume of the security; (e) restrictions on transfer, including the Partnership's right, if any, to require registration of its securities by the issuer under the securities laws; (f) significant recent events affecting the Originating Platform or issuer, including any pending private placement, public offering, pending mergers or acquisitions; (g) the price paid by the Partnership to acquire the asset; and (h) the percentage of the issuer's outstanding securities that is owned by the Partnership.

14.4.4 **Goodwill and Intangible Assets.**

In determining the fair market value of the assets of the Partnership, no allowance of any kind shall be made for goodwill or the name of the Partnership or of the General Partner, the Partnership's office records, files and statistical data or any intangible assets of the Partnership in the nature of or similar to goodwill. The Partnership's name is used by the Partnership pursuant to a license from the Management Company, and the Partnership's goodwill shall, as among the Partners, be deemed to have no value, and no Partner shall have any right or claim individually to the use of the Partnership's name or the goodwill thereof. At the time of the Partnership's final liquidating distribution, the Partnership's name and any goodwill associated with it shall be automatically assigned to the Management Company without any further action by any Partner.

14.5 **NOTICES.**

Except where otherwise specifically provided in this Agreement, all notices, requests, consents, approvals and statements shall be in writing and, if properly addressed to the recipient, shall be deemed given if (a) delivered personally to the recipient; (b) mailed by first class mail (or if sent from outside of the United States, by airmail), postage prepaid; (c) sent by electronic mail; (d) posted on a website maintained by the Partnership, the General Partner or the Management Company; or (e) delivered by a reputable overnight courier service. For avoidance of doubt, Sections 8 and 19(3) of the Electronic Transactions Act (As Revised) of the Cayman Islands shall not apply to this Agreement or to any notice or other communication given or made hereunder or otherwise in connection herewith. Notices shall be deemed to be properly addressed, if to the Partnership, at its principal office, and if to any Partner, if addressed to its address or electronic mail address, as applicable, as set forth in the List of Partners, or to such other address or electronic mail address as the addressee previously may have specified by written notice given in the manner specified in this 14.5 to the Partnership, in the case of the Limited Partners, or to the Limited Partners, in the case of the Partnership or the General Partner. Notices shall be deemed received one day after they are given, sent or delivered, except that (a) any notice posted on a website maintained by the Partnership, the General Partner or the Management Company shall be deemed to be received one day after an e-mail notice of such posting is sent and (b) notices sent by first class mail shall be deemed received five (5) days after they are mailed.

14.6 **ACCOUNTING PROVISIONS.**

14.6.1 **Fiscal Year.**

The fiscal year and the taxable year of the Partnership shall be the calendar year or, if the Partnership is required to use a different year as its taxable year for U.S. federal income tax purposes, such other year.

14.6.2 **Independent Accountants.**

The Partnership's independent public accountants shall at all times be an internationally recognized independent public accounting firm selected by the General Partner. The General Partner may change the Partnership's accountants from time to time.

14.7 **TAX PROVISIONS.**

14.7.1 **Classification as Partnership.**

The General Partner (a) will not cause or permit the Partnership to elect (1) to be excluded from the provisions of Subchapter K of Chapter 1 of the Code or (2) to be treated as a corporation for United States federal income tax purposes; (b) will cause the Partnership to make any election

reasonably determined to be necessary or appropriate in order to ensure the treatment of the Partnership as a partnership for United States federal income tax purposes; (c) will cause the Partnership to file any required tax returns in a manner consistent with its treatment as a partnership for United States federal income tax purposes; and (d) shall not take any action that would be inconsistent with the treatment of the Partnership as a partnership for such purposes.

14.7.2 **Partnership Representative; Partner Tax Information**

The "partnership representative" of the Partnership for purposes of Section 6223 of the Code (the "**Partnership Representative**") shall be the General Partner (or its designee), and the General Partner shall have sole authority to appoint on behalf of the Partnership any "designated individual" (or similar person) (a "**Designated Individual**") under Section 6223 of the Code and Treasury Regulations thereunder (or similar provisions of state, local or other tax laws). If the Partnership is required to appoint a Designated Individual pursuant to Section 6223 of the Code and Treasury Regulations promulgated thereunder (or similar provisions of state, local or other tax laws), such Designated Individual shall be subject to this Agreement in the same manner as the Partnership Representative (and references to the Partnership Representative shall include any such Designated Individual unless the context otherwise requires or shall mean solely the Designated Individual as needed to comply with applicable law). Each Partner hereby agrees to (i) take such actions as may be required to effect the General Partner's designation of the Partnership Representative, (ii) cooperate to provide any information and take such actions as may be reasonably requested by the Partnership Representative in order to determine whether any Imputed Underpayment Amount may be modified pursuant to Section 6225(c) of the Code, and (iii) upon the request of the Partnership Representative, (A) file any amended U.S. federal income tax return and pay tax due in connection with such tax return in accordance with Section 6225(c)(2) of the Code (or any similar provision under state, local or non-U.S. law) or (B) comply with procedures for Partners to take adjustments into account in accordance with Code Section 6225(c)(2)(B) (or any similar provision under state, local or non-U.S. law) or comply with any other available modification procedures. A Partner's obligation to comply with this 14.7.2 shall survive the Transfer, assignment or liquidation of such Partner's interest in the Partnership. Each former Partner shall continue to be obligated to comply with this 14.7.2. The General Partner in its sole and absolute discretion shall have exclusive authority to act for or on behalf of the Partnership with regard to U.S. tax matters, including the authority to represent the Partnership in connection with all examinations of the Partnership's affairs by tax authorities, including resulting administrative and judicial proceedings, and to expend Partnership funds for professional services and costs associated therewith, to control and make all decisions with respect to any administrative proceeding relating to tax matters or judicial review thereof and to make (or decline to make) any available tax elections. Without limiting the foregoing, the Partnership Representative in its sole discretion may cause the Partnership to elect the application of Section 6226 of the Code (or any similar provision under state, local or non-U.S. law) with respect to any Imputed Underpayment Amount, but is not required to do so. All expenses incurred by the Partnership Representative and/or the General Partner (including professional fees for such accountants, attorneys and agents as the Partnership Representative and/or the General Partner in its sole discretion determines are necessary to or useful in the performance of its duties in that capacity) shall be borne by the Partnership. Each Partner shall provide to the Partnership upon request such information, forms or representations which the General Partner may reasonably request with respect to the Partnership's compliance with applicable tax laws, including, without limitation, any information, forms or representations requested by the General Partner to assist in obtaining any exemption, reduction or refund of any withholding or other taxes imposed by any taxing authority or other governmental agency upon the Partnership or amounts paid to the Partnership. Each Partner agrees to promptly provide the General Partner with such information, representations, certificates or forms regarding the Partner and/or its beneficial owners

(collectively, "**Tax Reporting Information**") as the General Partner requests so that the Partnership, the Parallel Funds, any Alternative Investment Vehicle or any member of any "expanded affiliate group" (as defined in Section 1471(e)(2) of the Code) (each, a "**Partnership Entity**") may comply with their obligations under (a) Sections 1471 through 1474 of the Code (or any successor thereto) and any Treasury Regulations or other guidance promulgated thereunder and similar legislation ("**FATCA**") or any legal and tax information reporting and exchange obligations applicable to it under the laws of the Cayman Islands or any other applicable jurisdiction (collectively, "**Tax Reporting Obligations**"), including, without limitation, any Tax Reporting Obligations under any Cayman Islands laws, regulations or guidance notes that give effect to: (i) the inter-governmental agreement between the Cayman Islands and the United States to implement FATCA; (ii) the Organisation for Economic Co-operation and Development's multilateral competent authority agreement and the Cayman Islands regulations implementing the "Common Reporting Standard" pursuant thereto; and (iii) any additional inter-governmental agreement or treaty entered into by, or otherwise binding upon the Cayman Islands that provides for the exchange of tax information with another jurisdiction (and any guidance and regulations issued in connection therewith). The General Partner shall have the power to release, report or otherwise disclose to the Tax Information Authority in the Cayman Islands (or any other authority as may be required under the Tax Reporting Obligations) any Tax Reporting Information provided to it by a Limited Partner and any other information it holds in respect of the Limited Partner's investment in the Partnership, in connection with the Tax Reporting Obligations, including, without limitation, in relation to the identity, address, tax identification number, tax status and Partnership interest of the Limited Partner (and any of its direct or indirect owners or affiliates). Notwithstanding anything to the contrary in this Agreement or the Partner's Subscription Agreement, if any, the Partner hereby waives the application of any non U.S. law, to the extent such law would prevent the Partnership or the General Partner from reporting to the U.S. Internal Revenue Service and/or the U.S. Treasury (or any other taxing authority) any information required to be reported with respect to such Partner and its beneficial owners under FATCA. In the event any Limited Partner fails to provide any Tax Reporting Information (or undertake any of the actions) required under this 14.7.2 in a timely manner, the General Partner shall have full authority to take steps (after providing such Limited Partner with written notice) that the General Partner determines in its sole discretion are necessary to comply with its Tax Reporting Obligations and to mitigate the effect on the Partnership of such failure including, but not limited to, withholding on payments made to such Limited Partner and requiring such Limited Partner to Transfer its interest in any Partnership Entity or otherwise withdraw from the Partnership Entity. If requested by the General Partner, such Limited Partner shall execute any and all documents, opinions, instruments and certificates to effectuate the foregoing. If a Limited Partner fails to comply with the terms of this 14.7.2 and, as a result of such failure, any withholding tax is imposed under FATCA or otherwise on distributions to the Partnership Entity, such Limited Partner shall, unless otherwise agreed in writing by the General Partner, to the fullest extent permitted by applicable law, indemnify and hold harmless the Partnership Entity and the General Partner and their Affiliates for all losses, costs, expenses, damages, claims and demands (including any withholding tax, penalties or interest suffered by the Partnership Entity).

14.7.3 **Section 1045 Rollovers.**

Each Limited Partner agrees that (a) with respect to its limited partnership interest, it will not require the Partnership to elect, and the Partnership shall not be required to elect, the application of Section 1045 of the Code (dealing with rollovers of gains realized on the disposition of "qualified small business stock" as defined in Section 1202 of the Code) or any similar provisions of any state income tax law; (b) without the prior written consent of the General Partner, such Partner will not make any election referred to in the preceding clause (a) if such election would impose on the

Partnership or the General Partner any obligation (including, but not limited to, any obligation to furnish information, maintain records or file returns or other documents); and (c) the Partnership shall not be required to comply with any tax reporting or accounting requirements (including, but not limited to, those relating to the adjustment of the tax basis of any asset of the Partnership or the interest in the Partnership of any Partner) that may be imposed under Section 1045 of the Code, and shall not be required to provide any information necessary to enable such Partner to comply with or elect the application of Section 1045 of the Code, in each case with respect to rollovers of qualified small business stock by the Partnership or by or on behalf of any Partner.

14.7.4 **Electing Investment Partnership.**

Each Limited Partner hereby agrees and covenants that it shall not make an election under Section 732(d) of the Code without the prior written consent of the General Partner. The General Partner may, but shall not be obligated to, cause the Partnership to make an election under Section 754 of the Code or an election to be treated as an "electing investment partnership" within the meaning of Section 743(e) of the Code. If the Partnership elects to be treated as an electing investment partnership, each Limited Partner shall (i) cooperate with the Partnership to maintain such status, (ii) not take any action that would be inconsistent with such election, (iii) provide the General Partner with any information necessary to allow the Partnership to comply with its tax reporting and other obligations as an electing investment partnership, and (iv) provide the General Partner and such Limited Partner's transferee, promptly following the transfer of such Limited Partner's interest, with the information required under the Code, the Internal Revenue Service Notice 2005-32 (or any successor guidance) or otherwise to be furnished to the Partnership or such transferee, including such information as is necessary to enable the Partnership and such transferee to compute the amount of losses disallowed under Section 743(e) of the Code. Whether or not the Partnership makes an election to be treated as an electing investment partnership, each Limited Partner or former Limited Partner shall, promptly upon request, provide the General Partner with any information related to such Partner necessary to allow the Partnership to comply with (a) its obligations to make tax basis adjustments under Sections 734 or 743 of the Code and (b) any other Tax Reporting Obligations.

14.7.5 **Tax Reporting Consistency.**

For United States federal, state and local income tax purposes, each Limited Partner shall report the tax items attributable to its participation in the Partnership on its income tax returns in a manner consistent with the tax treatment of such items as reported to it by the Partnership.

14.7.6 **Israeli Tax Ruling.**

(a) Except as otherwise explicitly provided herein, the General Partner, in its sole discretion, shall have the power, on behalf and in the name of the Partnership, to cause the Partnership to implement and/or comply with one or more tax ruling letters and amendments thereto, if issued, issued with respect to the taxation of the Partnership in Israel (collectively, an "**Israeli Tax Ruling**") by the Tax Authority of the State of Israel (the "**Tax Authority**") and to sign all documents on behalf of the Partnership and/or each of the Partners with respect to the activities of the Partnership related to an Israeli Tax Ruling.

(b) The General Partner is authorized to act for the Partners and the Partnership in order to obtain and comply with the Israeli Tax Ruling. The

General Partner is authorized to approach (or to authorize another Person to approach) the Tax Authority and apply for, and negotiate the terms of, an Israeli Tax Ruling. In addition, the General Partner shall be authorized to require any Partner to make such certifications in writing or otherwise, and to require any Partner to fully disclose the identity of such Partner's equity interest holders (if any), the amount of their respective direct and indirect investments in the Partnership, their tax status and such other information as may be required under, or in order to apply for, obtain, or to comply with, the Israeli Tax Ruling, and each Partner shall be obligated to use commercially reasonable efforts to timely comply in full with all such requirements.

(c) By signing or acceding to this Agreement, each of the Partners hereby gives its prior consent to the terms of any Israeli Tax Ruling as those terms apply to such Partner. For the avoidance of doubt, it is hereby clarified that the General Partner need not consult with, nor obtain the approval of, any Partner with respect to any of the terms of any Israeli Tax Ruling, if obtained. The Partnership may commence its operations without the Israeli Tax Ruling.

(d) For the avoidance of doubt, each Partner acknowledges and understands that the issuance of the Israeli Tax Ruling and its terms are in the sole discretion of the Tax Authority.

14.8 **GENERAL PROVISIONS.**

14.8.1 **Power of Attorney.**

Each Limited Partner hereby constitutes and appoints the General Partner, with full power of substitution, as its true and lawful representative and attorney-in-fact, in its name, place and stead, to make, execute, sign, acknowledge and deliver or file (a) the Registration Statement and any other instruments, documents and certificates which may from time to time be required by any law to effectuate, implement and continue the valid and subsisting existence of the Partnership or any Alternative Investment Vehicle, (b) all instruments, documents and certificates that may be required to effectuate the winding up, dissolution and termination of the Partnership or any Alternative Investment Vehicle in accordance with the provisions hereof and the ELP Act (and, in the case of an Alternative Investment Vehicle, in accordance with the laws of the jurisdiction in which such Alternative Investment Vehicle was formed), (c) all other amendments of this Agreement (and/or restatements of this Agreement to incorporate such amendments) or the Registration Statement contemplated by this Agreement including, without limitation, amendments reflecting the addition or substitution of any Partner, or any action of the Partners or the Viola Credit III Investors duly taken pursuant to this Agreement whether or not such Partner voted in favor of or otherwise approved such action, (d) one or more Subscription Agreements, on behalf of such Limited Partner, between the General Partner and/or the Partnership and any Person being admitted to the Partnership as a Partner, in such form and such other terms and conditions as the General Partner considers, in its sole and absolute discretion, necessary or appropriate, including reference to this Agreement and its novation and agreeing and covenanting with such Person on behalf of such Limited Partner that such Limited Partner will from the effective date of such Subscription Agreement or Agreements comply with and observe the terms of this Agreement as if such Person had originally been a party to it, (e) any other instrument, certificate or document required from time to time to admit a Partner, to effect its substitution as a Partner, to effect the

substitution of the Partner's assignee as a Partner, or to reflect any action of the Partners or the Viola Credit III Investors provided for in this Agreement (including, without limitation, the admission of any Partner to a Parallel Fund or an Alternative Investment Vehicle), (f) any other instrument, certificate or document required from time to time to effect the Transfer of a Defaulting Partner's interest pursuant to 6.3.2 or an excused Limited Partner's interest pursuant to 6.4.2, and (g) any agreement or instrument necessary or advisable to consummate any Portfolio Investment pursuant to 3.6.4, including the execution of the organizational documents with respect to an Alternative Investment Vehicle (and any amendments thereto consistent with 3.6.4); provided, however, that no actions shall be taken by the General Partner under the power of attorney granted pursuant to this 14.8.1 that would have any adverse effect on the limited liability of any Limited Partner. The foregoing grant of authority (1) is given to secure a proprietary interest of the General Partner and/or obligations owed to the General Partner and as such shall be irrevocable and shall survive the death or disability of a Partner that is a natural person or the merger, dissolution or other termination of the existence of a Partner that is a corporation, association, partnership, limited liability company or trust, and (2) shall survive the assignment by the Partner of the whole or any portion of its interest, except that where the assignee of the whole thereof has appointed the General Partner as its true and lawful attorney-in-fact on the terms hereof, this power of attorney shall survive such assignment for the sole purpose of enabling the General Partner to execute, acknowledge and file any instrument necessary to effect any permitted substitution of the assignee for the assignor as a Partner and shall thereafter terminate. This power of attorney may be exercised by such attorney-in-fact and agent for each of the Limited Partners (or any of them) by a single signature of the General Partner acting as attorney-in-fact with or without listing all of the Limited Partners executing an instrument.

14.8.2 **Execution of Additional Documents.**

Each Partner hereby agrees to execute all certificates, counterparts, amendments, instruments or documents that may be required by laws of the various jurisdictions in which the Partnership conducts its activities, to conform with the laws of such jurisdictions governing limited partnerships.

14.8.3 **Binding on Successors.**

This Agreement shall be binding upon and shall inure to the benefit of the respective heirs, successors, permitted assigns and legal representatives of the parties hereto.

14.8.4 **Governing Law.**

The rights, obligations and liabilities of the Partners as such and the interpretation and enforceability of this Agreement shall be governed by the laws of the Cayman Islands without giving effect to any conflicts-of-law or other principle requiring the application of the law of any other jurisdiction.

14.8.5 **Waiver of Partition.**

Each Partner hereby irrevocably waives any and all rights that it may have to maintain an action for partition of any of the Partnership's property.

14.8.6 **Securities Law Matters.**

Each Partner understands that in addition to the restrictions on transfer contained in this Agreement, it must bear the economic risks of its investment for an indefinite period because the Partnership interests have not been registered under the Securities Act or under any applicable securities laws of any state or other jurisdiction and, therefore, may not be sold or otherwise transferred unless they are registered under the Securities Act and any such other applicable securities laws (including Israeli securities laws) or an exemption from such registration is available.

14.8.7 **Confidentiality.**

(a) A Limited Partner's rights to access or receive any information about the Partnership or its business including, without limitation, (i) information to which a Limited Partner is provided access pursuant to 14.2 or provided at any Limited Partner meeting, (ii) financial statements, reports and other information provided pursuant to 14.3, (iii) the offering documents for the Partnership, this Agreement, any Subscription Agreement and any other related agreements, and (iv) any information provided to any Limited Partner pursuant to a letter agreement or side letter entered into in connection with this Agreement pursuant to 14.8.11 (the "**Partnership Information**"), are conditioned on such Limited Partner's willingness and ability to assure that the Partnership Information will be used solely by such Limited Partner for purposes reasonably related to such Limited Partner's interest as a Limited Partner, and that such Partnership Information will not become publicly available as a result of such Limited Partner's rights to access or receive such Partnership Information.

(b) Each Limited Partner acknowledges and agrees that the Partnership Information constitutes a valuable trade secret of the Partnership and agrees to maintain any Partnership Information provided to it in the strictest confidence and not to disclose the Partnership Information to any Person other than to its officers, fiduciaries, trustees, employees, auditors, agents or consultants who have a business need to know such Partnership Information, who have been informed of the confidential nature of such Partnership Information, and who are, either by the nature of their positions or duties or pursuant to written agreement, subject to substantially equivalent restrictions with respect to the use and disclosure of the Partnership Information as are set forth in this Agreement. Notwithstanding the foregoing, the General Partner consents to the disclosure by any Limited Partner that the General Partner determines is a fund-of-funds or similar entity to such Limited Partner's own equity holders of summary information concerning the Partnership's financial performance and status; provided, however, that in each instance such equity holders are, pursuant to a written agreement or other obligation, subject to substantially equivalent restrictions with respect to the use and disclosure of the Partnership Information as are set forth in this Agreement. With respect to any Limited Partner, the obligation to maintain the Partnership Information in confidence shall not apply to any Partnership Information (i) that becomes publicly available (other than by reason of a disclosure by a Limited Partner), (ii) the disclosure of which has been consented to by the General Partner in writing, or (iii) the disclosure of which is required by a court of competent jurisdiction or other governmental authority or otherwise as required by law. Before any

Limited Partner discloses Partnership Information pursuant to clause (iii), such Limited Partner shall promptly, and in any event prior to making any such disclosure, notify the General Partner of the court order, subpoena, interrogatories, government order or other reason that requires disclosure of the Partnership Information so that the General Partner may seek a protective order or other remedy to protect the confidentiality of the Partnership Information or waive compliance with this Agreement. Such Limited Partner shall also consult with the General Partner on the advisability of taking steps to eliminate or narrow the requirement to disclose the Partnership Information and shall otherwise cooperate with the efforts of the General Partner to obtain a protective order or other remedy to protect the Partnership Information. If a protective order or other remedy cannot be obtained, such Limited Partner shall disclose only that Partnership Information that its counsel advises in writing (which writing shall also be addressed and delivered to the Partnership) that it is legally required to disclose.

(c) Each Limited Partner shall promptly notify the General Partner in writing if it becomes aware of any reason, whether under law, regulation, policy or otherwise, that it, its equity holders or any other Person to whom it has disclosed Partnership Information will, or might become compelled to, use the Partnership Information other than as contemplated by 14.8.7(a) or disclose Partnership Information in violation of the confidentiality restrictions in 14.8.7(b).

(d) Notwithstanding any other provision of this Agreement, with the exception of the Schedule K-1 to be provided to each Partner pursuant to 14.3.2, the General Partner shall have the right not to provide any Limited Partner, for such period of time as the General Partner in good faith determines to be advisable, with any Partnership Information that such Limited Partner would otherwise be entitled to receive or to have access to pursuant to this Agreement (including without limitation pursuant to 14.2) or the ELP Act if: (i) the Partnership or the General Partner is required by law or by agreement with a third party to keep such Partnership Information confidential; (ii) the General Partner in good faith believes that the disclosure of such Partnership Information to such Limited Partner is not in the best interest of the Partnership or could damage the Partnership or its business (which may include a determination by the General Partner that such Limited Partner or one or more of its equity holders or any other Person to whom it has disclosed Partnership Information is disclosing or may disclose such Partnership Information and that the potential of such disclosure by such Person is not in the best interest of the Partnership or could damage the Partnership or its business); or (iii) such Limited Partner has notified the General Partner of its election not to have access to, or to receive such Partnership Information.

(e) The Limited Partners acknowledge and agree that: (i) the Partnership or the General Partner and its partners may acquire confidential information related to third parties (*e.g.*, Originating Platforms) that pursuant to fiduciary, contractual, legal or similar obligations cannot be disclosed to the Limited Partners; and (ii) neither the Partnership nor the General

Partner and its partners shall be in breach of any duty under this Agreement or the ELP Act in consequence of acquiring, holding or failing to disclose such information to the Limited Partners so long as such obligations were undertaken in good faith.

(f) In addition to any other remedies available at law, the Partners agree that the Partnership shall be entitled to equitable relief, including, without limitation, the right to an injunction or restraining order, as a remedy for any failure by a Limited Partner to comply with its obligations with respect to the use and disclosure of Partnership Information, as set forth in 14.8.7(a) and 14.8.7(b).

14.8.8 **Contract Construction; Headings; Counterparts.**

Whenever the context of this Agreement permits, the neuter gender shall include the feminine and masculine genders, and reference to singular or plural shall be interchangeable with the other. The invalidity or unenforceability of any one or more provisions of this Agreement shall not affect the other provisions, and this Agreement shall be construed and reformed in all respects as if any such invalid or unenforceable provision(s) were omitted or, at the direction of a court, modified in order to give effect to the intent and purposes of this Agreement. References in this Agreement to particular sections of the Code or the ELP Act or any other statute shall be deemed to refer to such sections or provisions as they may be amended after the date of this Agreement. All references herein to a "security" or "securities" shall not be limited in meaning to "securities" as such term is defined in the Securities Act, but instead shall be deemed to include any Portfolio Investment, including loans and any debt securities or other evidences of indebtedness or debt obligations, whether or not liquidated, disputed or contingent (or participations therein), including receivables, high yield bonds and trade claims, choses in action, and other property or interests commonly regarded as securities and interests in personal property of all kinds, tangible or intangible. Captions in this Agreement are for convenience only and do not define or limit any term of this Agreement. It is the intention of the parties that every covenant, term, and provision of this Agreement shall be construed simply according to its fair meaning and not strictly for or against any party (notwithstanding any rule of law requiring an Agreement to be strictly construed against the drafting party), it being understood that the parties to this Agreement are sophisticated and have had adequate opportunity and means to retain counsel to represent their interests and to otherwise negotiate the provisions of this Agreement. This Agreement or any amendment hereto may be signed in any number of counterparts, each of which when signed by the General Partner shall be an original, but all of which taken together shall constitute one agreement or amendment, as the case may be. The table of contents and the headings of the articles, sections and subsections of this Agreement are inserted for convenience of reference only and shall not be deemed to constitute a part hereof or affect the interpretation hereof. When the words "include," "includes" and "including" are followed by a list of one or more items, such list shall be deemed to be illustrative only and shall not be deemed to be an exclusive listing. The word "will" shall be construed to have the same meaning and effect as the word "shall." Unless the context requires otherwise, (*a*) the words "herein," "hereof" and "hereunder," and words of similar import, shall be construed to refer to this Agreement in its entirety and not to any particular provision hereof, (*b*) all references herein to Articles and Sections shall be construed to refer to Articles and Sections of this Agreement unless otherwise stated herein, and (*c*) the words "discretion" and "sole discretion" shall be construed to have the same meaning and effect.

14.8.9 **No Waiver.**

No failure on the part of any party to exercise, and no delay on its part in exercising, any right or remedy under this Agreement shall operate as a waiver of such right or remedy, nor shall any single or partial exercise of any right or remedy under this Agreement preclude any other or further exercise thereof or the exercise of any other right or remedy. The rights and remedies provided herein are cumulative and not exclusive of any rights or remedies provided by law.

14.8.10 **Arbitration.**

If any dispute arising out of or in connection with this Agreement, any Limited Partner's Subscription Agreement or any letter agreement or side letter entered into pursuant to 14.8.11 is not amicably resolved between the parties, any party may elect to require that the dispute be submitted to Arbitration (as defined herein) as provided below by delivering a written notice to the other party of its demand for Arbitration. In such event the parties shall mutually discuss the identity of the arbitrator who shall be a retired Supreme Court or Regional Court judge with experience in the dispute at hand (the "**Arbitrator**"). To the extent that the parties do not agree with respect to the identity of the Arbitrator, then the Arbitrator will be selected by the Chairman of the Israeli Bar. The Arbitrator shall serve under the Israeli Arbitration Law, 1968 to resolve the dispute (the "**Arbitration**"). The Arbitration shall take place in a mutually acceptable neutral site within the State of Israel. The Arbitration shall be conducted under such procedural rules as determined by the Arbitrator, provided that the Arbitrator shall not be bound by any specific rules of procedure or evidence. After due consideration of all of the evidence submitted by the parties, in accordance with the procedural rules determine by the Arbitrator, the Arbitrator shall issue a written decision and award. The decision and award of the Arbitrator shall (i) be in writing, stating the grounds for the decision in reasonable detail, specifying findings of fact and conclusions of law; and (ii) be final and binding upon the parties. Judgment upon such decision and award may be entered in any competent court or application may be made to any competent court for judicial acceptance of such decision and award and an order of enforcement. Each party shall bear its own attorney's fees, costs and expenses in connection with the Arbitration and the fees and expenses of the Arbitrator shall be shared equally by the parties unless otherwise provided in the Arbitrator's decision and award. This 14.8.10 shall constitute an arbitration agreement under the Israeli Arbitration Law 1968. The Arbitrator shall have the authority to issue preliminary judgments and to grant interim remedies, including injunctions and attachments. Notwithstanding the foregoing, nothing in this 14.8.10 shall preclude the courts of the Cayman Islands in respect of any matter reserved to it pursuant to Cayman Islands law.

14.8.11 **Entire Agreement; Letter Agreements.**

This Agreement and the other agreements referenced to herein constitute the entire agreement among the Partners with respect to the subject matter hereof and supersede any prior agreement or understanding among or between them with respect to such subject matter. The representations and warranties of the Limited Partners in, and the other provisions of the Subscription Agreements shall survive the execution and delivery of this Agreement. Notwithstanding anything in this Agreement to the contrary, the General Partner may, in its sole discretion (without the consent of any other Partner), enter into a letter agreement, side letter or other writings with one or more Limited Partners providing that the terms of this Agreement are amended and/or supplemented with respect to such Limited Partner and, with respect to any such Limited Partner, the terms of such letter agreement or side letter shall be controlling, and the terms of this Agreement shall be deemed amended, modified and/or supplemented to the extent required to effectuate the provisions of such letter agreements or side letters. Other than as amended, modified and/or supplemented by such letter agreement, side letter or other writing, this Agreement shall remain in full force and effect with respect to such Limited Partner, and shall remain in full force and effect without any

modification with respect to a Limited Partner who is not party to such letter agreement or side letter. For the avoidance of doubt, a person's execution and delivery of this Agreement by electronic signature and electronic transmission, including via DocuSign or other similar method, shall constitute the execution and delivery of a counterpart of this Agreement by or on behalf of such person and the parties to this Agreement shall be entitled to rely on any such electronic signature for the purposes of the Electronic Transactions Act (as amended) of the Cayman Islands.

14.8.12 **Counsel.**

Each Limited Partner hereby acknowledges and agrees that Goodwin Procter LLP and any other law firm retained by the General Partner in connection with the organization of the Partnership, the offering of interests in the Partnership, the management and operation of the Partnership, or any dispute between the General Partner and any Limited Partner, is acting as counsel to the General Partner and as such, to the fullest extent permitted by law, does not represent or owe any duty to such Limited Partner or to the Limited Partners as a group in connection with such retention. Each Limited Partner further acknowledges that, in the absence of an explicit written agreement to such effect between Goodwin Procter LLP and the Limited Partner, Goodwin Procter LLP shall, to the fullest extent permitted by law, owe no direct duties to such Limited Partner. In the event that any dispute or controversy arises between any Limited Partner and the Partnership, or between any Limited Partner and the General Partner or any of its Affiliates that Goodwin Procter LLP represents, then each Limited Partner agrees that Goodwin Procter LLP may represent the Partnership or such General Partner or its Affiliates in any such dispute or controversy to the extent permitted by the New York Lawyer's Code of Professional Responsibility or similar rules in any other jurisdiction, and each Limited Partner hereby consents to such representation.

[**Remainder of Page Intentionally Left Blank**]

IN WITNESS WHEREOF, the undersigned have executed this Amended and Restated Exempted Limited Partnership Agreement of Viola Credit ALF III (1), L.P. as a deed on the day, month and year first above written.

EXECUTED AS A DEED

GENERAL PARTNER:

VIOLA CREDIT ALF III GP, L.P.

By: Viola Credit ALF III GP GP Ltd., its general partner

By: _____
Name:
Title:

In the presence of:

_____
Name:
Address:

LIMITED PARTNERS:

VIOLA CREDIT ALF III GP, L.P. *for and on behalf of each Limited Partner set forth in the List of Partners, as attorney-in-fact*

By: Viola Credit ALF III GP GP Ltd., its general partner

By: _____
Name:
Title:

In the presence of:

_____
Name:
Address:

INITIAL LIMITED PARTNER:

R. SIMHA MANAGEMENT LTD

By:_____
solely to reflect its withdrawal from the Partnership

In the presence of:

_____
Name:
Address:

ACCESSION AGREEMENT OF PRINCIPALS

The undersigned Principals hereby severally agree, in their capacity as such, to be bound by the provisions of this Agreement so long as they serve in such capacity to the extent that such provisions are expressly applicable to a Principal. The undersigned also agree to require any individual admitted as a member of the General Partner and named as a Principal pursuant to this Agreement to execute an agreement substantially similar to that set forth in this paragraph as a condition of such admission.

	In the presence of:
_____	_____
Ido Vigdor	Name: Address:
	In the presence of:
_____	_____
Ruthi Furman	Name: Address:
	In the presence of:
_____	_____
Alex Ginzburg	Name: Address:

APPENDIX I

DEFINITIONS

For purposes of this Agreement, the following terms shall have the meanings set forth below (such meanings to be equally applicable to both singular and plural forms of the terms so defined). Additional defined terms are set forth in the provisions of this Agreement to which they relate.

Additional Limited Partner	As set forth in 3.3.1.
Adjusted Capital Account	For each Partner, such Partner's Capital Account balance increased by such Partner's share of any "minimum gain" and of any "partner nonrecourse debt minimum gain" (as determined pursuant to Treasury Regulations Sections 1.704-2(g) and 1.704-2(i)(5), respectively).
Advisers Act.....	The United States Investment Advisers Act of 1940, as amended.
Advisory Committee.....	As set forth in 3.7.1.
Affiliate	With respect to the Person to which it refers, a Person that directly or indirectly through one or more intermediaries, controls or is controlled by, or is under common control with, such subject Person. For this purpose, each Principal shall be deemed to be an Affiliate of the General Partner, but any Existing Fund, any Successor Fund and any Originating Platforms or originating platforms of an Existing Fund or a Successor Fund shall not be deemed to be Affiliates of the General Partner, any Principal, any direct or indirect partner, member or equity holder of the General Partner or the Management Company.
Agreement.....	As set forth in the introductory paragraph to this Agreement.
Alternative Investment Vehicles	As set forth in 3.6.4(a).
Anti-Money Laundering Laws.....	As set forth in 3.3.4(a)(2).
Applicable Accounting Standards.....	U.S. generally accepted accounting principles unless the General Partner elects to adopt IFRS.
Arbitration.....	As set forth in 14.8.10.
Arbitrator.....	As set forth in 14.8.10.
BHCA Non-Voting Interests.....	As set forth in 13.3.
BHCA Partner	As set forth in 13.3.
BHCA Threshold	As set forth in 13.3.

Business Day.....	Each Sunday, Monday, Tuesday, Wednesday and Thursday which is not a day on which banking institutions in the city of Tel Aviv, Israel are required by law to remain closed.
Capital Account	As set forth in 8.1.1.
Carried Interest Distributions.....	As set forth in 10.5.3.
Carrying Value.....	With respect to any asset, the asset's adjusted basis for U.S. federal income tax purposes; provided, however, that (i) the initial Carrying Value of any asset contributed to the Partnership shall be adjusted to equal its gross fair market value at the time of its contribution, and (ii) the Carrying Values of all assets held by the Partnership shall be adjusted to equal their respective gross fair market values (taking Section 7701(g) of the Code into account) upon an election by the Partnership to revalue its property in accordance with Treasury Regulations Section 1.704-1(b)(2)(iv)(*f*) and upon liquidation of the Partnership. The Carrying Value of any asset whose Carrying Value was adjusted pursuant to the preceding sentence thereafter shall be adjusted in accordance with the provisions of Treasury Regulations Section 1.704-1(b)(2)(iv)(*g*).
Cause Event	As set forth in 9.3(c).
Code	The United States Internal Revenue Code of 1986, as amended from time to time, or any successor statute thereto.
Contribution	With respect to any Partner at any time, the aggregate amount of capital contributions made to the Partnership by such Partner, adjusted in accordance with the other provisions of this Agreement, including, without limitation, 6.2 (relating to the return of contributions subject to subsequent drawdown), but excluding the amount of any interest payable pursuant to 6.3.1, 6.3.2 and 7.4.3. For avoidance of doubt, any distributions returned by a Partner to the Partnership shall not be included as part of such Partner's Contribution; provided that amounts recalled pursuant to 6.2.4.1 and amounts retained pursuant to 7.1.2, and subsequently used to make Portfolio Investments or pay Partnership Expenses, shall be included as part of such Partner's Contribution (but not such Partner's Subscription) solely for purposes of the definition of Sharing Percentage in 7.2.1.
Cost	With respect to a Portfolio Investment or other investment, the value of property, cash and notes given by the Partnership (i) to an Originating Platform in exchange for such Portfolio Investment or (ii) for such other investment.

Covered Person	As set forth in 12.1.1.
Current Income	Income from Portfolio Investments other than Disposition Proceeds.
Debt	Secured and unsecured lending and other forms of debt financing provided to an Originating Platform.
Default Charge	As set forth in 6.3.3(a)(1).
Default Rate	With respect to any period shall be the lesser of (a) a rate equal to the Prime Rate in effect on the date such capital contribution is due plus six percent (6%) per annum or (b) the highest interest rate for such period permitted by applicable law.
Defaulting Partner	As set forth in 6.3.2.
Delaware Act	As set forth in 13.1.7.
Delayed Payment Interest	Partnership income attributable to (a) interest paid by any Partner pursuant to 6.3.1; (b) interest on costs of collecting unpaid Subscriptions paid by any Partner pursuant to 6.3.2; and (c) interest paid by any Partner pursuant to 7.4.3 (relating to Tax Liability).
Designated Jurisdiction	As set forth in 7.3.1(a).
Designated Persons	As set forth in 6.1.8.
Disposition	The sale, exchange, redemption, repayment (including repayment of principal amounts on any loan obligation, but not including, for the avoidance of doubt, any interest payments), repurchase or other disposition by the Partnership of all or any portion of a Portfolio Investment (including, if deemed appropriate in good faith judgment by the General Partner, a Portfolio Investment held through a holding company or other similar entity) for cash or for Freely Tradable Securities that can be and are distributed to the Partners pursuant to Article 7 and shall include the receipt by the Partnership of a liquidating dividend, distribution upon a sale of all or substantially all of the assets of an Equity Kicker or other like distribution for cash or for Freely Tradable Securities on such Portfolio Investment or any portion thereof which can be and are distributed to the Partners pursuant to Article 7 and shall also include the distribution in kind to the Partners of all or any portion of such Portfolio Investment as permitted hereby. A Disposition shall be deemed to include a security becoming "worthless" as provided in Section 165(g) of the Code or otherwise having a fair market value of zero. Upon winding-up of the Partnership, Dispositions involving a

distribution in kind may also include restricted securities and other assets of the Partnership which shall be valued in accordance with 14.4.3. The General Partner shall determine, in its good faith judgment, whether and to what extent a Disposition has occurred as a result of (a) any refinancing, recapitalization or restructuring of a Portfolio Investment and

(b) situations where the Partnership has engaged (or potentially intends to engage) in one or more transactions (or a series thereof), such as related purchases, sales and subsequent purchases and sales of securities or instruments, with respect to a specific Portfolio Investment and its Affiliates.

Disposition Proceeds..... All amounts received (or then held in the case of certain in kind distributions of Portfolio Investments) by the Partnership upon the Disposition of a Portfolio Investment.

Domestication ..... As set forth in 13.1.7.

ELP Act..... As set forth in 2.1.

Equity Holder ..... As set forth in 3.6.5(a).

Equity Kicker ..... Limited investment rights to invest in or receive the equity of an Originating Platforms (or their affiliates) granted by an Originating Platform, either through a direct investment in such Originating Platform or in exchange for an asset-backed secured financing.

ERISA ..... The United States Employee Retirement Income Security Act of 1974 and (unless the context otherwise requires) the rules and regulations promulgated thereunder, as amended from time to time, or any successor statute thereto.

ERISA Partner ..... Any Limited Partner which (a) is (i) an "employee benefit plan" within the meaning of Section 3(3) of ERISA and subject to Part 4 of Subtitle B of Title I of ERISA, (ii) a "plan," as defined in Section 4975(e)(1) of the Code, to which the provisions of Section 4975 of the Code are applicable, or

(iii) any other entity or account, any of the assets of which constitute "plan assets," within the meaning of the Plan Assets Regulation, of a plan described in (a)(i) or (a)(ii) above, and

(b) has notified the General Partner in writing of its status as an ERISA Partner.

Existing Funds ..... Each of Viola Credit ALF III (APO), Viola Credit Alternative Lending SPV, L.P., Viola Credit Alternative Lending II (LB) SPV, L.P., Viola Credit ALF II, L.P., Viola Credit GL I, L.P.,

Viola Credit GL II, L.P., 1V Venture Credit Trust, 1V Venture Fund IV, L.P., the successor funds of such funds, and any other investment vehicles organized to invest primarily in the originating platforms of such funds.

FATCA ..... As set forth in 14.7.2.

Feeder Entities ..... As set forth in 3.6.5(a).

Final Closing Date ..... As set forth in 3.3.1.

Freely Tradable Security..... Any security that satisfies the following conditions:

(a) The Partnership's entire holding of such securities can be immediately sold by the Partnership to the general public without the necessity of any federal, state or local government consent, approval or filing (other than any notice filings of the type required pursuant to Rule 144(h) under the Securities Act or Section 13 or 16 of the United States Securities Exchange Act of 1934, as amended); and

(b) Such securities are listed or carried on a Public Securities Market and market or inter-dealer quotations are readily available for such security.

If only a portion of the Partnership's holdings of securities satisfies the requirements of the preceding sentence, that portion of the Partnership's holdings of such securities shall constitute Freely Tradable Securities. In addition to the foregoing, in the case of a distribution or proposed distribution of securities in kind, such securities shall also constitute Freely Tradable Securities if the entire portion of the distribution made to the Limited Partners can be immediately sold by them under the terms provided for in clause (a) of this definition and the condition provided for in clause (b) of this definition is satisfied, assuming for purposes of this sentence that no Limited Partner is or has been an Affiliate of the issuer of such securities and without regard to any restrictions on sale applicable to particular Limited Partners because of the particular nature or status of such Limited Partners.

Notwithstanding the foregoing, the General Partner may subject such Freely Tradable Securities to such conditions and restrictions as the General Partner determines are necessary or appropriate to preserve the value of such Freely Tradable Securities or for legal reasons.

General Partner	The entity named as General Partner in the introductory paragraph of this Agreement, and any successor General Partner.
IFRS	International Financial Reporting Standards, as issued by the International Accounting Standards Board.
Imputed Underpayment Amount	As set forth in 7.4.1(d).
Indemnitee.....	As set forth in 12.2.1.
Initial Agreement	As set forth in the introductory paragraphs of this Agreement.
Initial Closing Date	As set forth in 3.3.1.
Initial Drawdown Date.....	As set forth in 6.1.2.
Initial Limited Partner.....	R. Simha Management Ltd., located at Abba Eban 12 Blvd., Ackerstein Towers, Building D, Floor 12, Herzliya, Israel, 4672530.
Invested Capital	As set forth in 5.2.2.1.
Investment Company Act.....	As set forth in 3.6.2.3.
Investment Period	As set forth in 6.1.4.1.
Investment Subsidiary.....	As set forth in 3.6.4(i).
Israeli Tax Ruling	As set forth in 14.7.6(a).
Key Person Event……	As set forth in 6.1.4.2(a).
Limited Partners.....	Those Persons listed in the List of Partners as limited partners, together with any additional or substituted limited partners admitted to the Partnership after the date hereof.
List of Partners	The list, maintained by the General Partner, setting forth the names, addresses, electronic mail addresses and Subscriptions of the Partners.
Management Company	Viola Credit Partners Management, L.P., an Israeli limited partnership.
Management Fee	As set forth in 5.2.2.1.
NASDAQ.....	As set forth in 14.4.2.
Net Gain or Loss	The profit or loss of the Partnership determined, in accordance with United States federal income tax accounting principles and computed with the following adjustments:

(i) Items of gain, loss, and deduction shall be computed based upon the Carrying Values of the Partnership's assets (in accordance with Treasury Regulations Sections 1.704-1(b)(2)(iv)(*g*) and/or 1.704-3(d)) rather than upon the assets' adjusted bases for United States federal income tax purposes;

(ii) Any tax-exempt income received by the Partnership shall be included as an item of gross income;

(iii) Any expenditure of the Partnership described in Section 705(a)(2)(B) of the Code (including any expenditures treated as being described in Section 705(a)(2)(B) pursuant to Treasury Regulations under Section 704(b) of the Code) shall be treated as a deductible expense;

(iv) The amount of any adjustment to the Carrying Value of any Partnership asset pursuant to Section 734(b) or Section 743(b) of the Code that is required to be reflected in the Capital Accounts of the Partners pursuant to Treasury Regulations Section 1.704-1(b)(2)(iv)(*m*) shall be treated as an item of gain (if the adjustment is positive) or loss (if the adjustment is negative), and only such amount of the adjustment shall thereafter be taken into account in computing items of income and deduction;

(v) The amount of any unrealized gain or unrealized loss attributable to an asset at the time it is distributed in kind to a Partner shall be included in the computation as an item of income or loss, respectively; and

(vi) The amount of any unrealized gain or unrealized loss with respect to the assets of the Partnership that is reflected in an adjustment to the Carrying Values of the Partnership's assets pursuant to clause (ii) of the definition of "Carrying Value" shall be included in the computation as items of income or loss, respectively.

Non-U.S. Partners ..... Any Partner that (a) is not a "United States person" within the meaning of Section 7701(a)(30) of the Code, or is a partnership or other flow-through entity, if any partner, member or other beneficial owner of such partnership or other flow-through entity is not a United States person, and (b) has notified the General Partner in writing of its status as a Non-U.S. Partner.

Non-Voting Interest	A limited partnership interest in the Partnership that does not entitle the holder to vote, consent or withhold consent with respect to any Partnership matter. Contributions attributable to Non-Voting Interests shall be disregarded, for purposes of 13.2, in determining both the aggregate Contributions of all Limited Partners and the aggregate Contributions of those Limited Partners voting in favor of or against a particular proposal. Except as otherwise explicitly provided in this Agreement, any interest held by any Person as a Non-Voting Interest shall be identical to all other limited partnership interests in all respects other than with regard to votes and consents.
Organizational Expenses.....	All expenses that are attributable to the organization and offering of the Viola Credit III Funds, the General Partner and the Management Company and the sale of interests in the Partnership to the Limited Partners and to any limited partners of a Parallel Fund (including without limitation, legal, incorporation, travel, accounting, filing, capital-raising, costs and expenses with respect to the consummation of any borrowing and other similar expenses and any amounts reimbursed to any Person acting on behalf of the General Partner or any of its Affiliates in connection with the organization of the Viola Credit III Funds or the sale of interests in the Partnership, plus any value added taxes thereon).
Originating Platform	Any entity in which the Partnership holds an investment intended to achieve its investment purposes.
Originating Platform Remuneration.....	As set forth in 5.3.1(a).
Parallel Fund	As set forth in 3.6.2.1.
Partner Interest	As set forth in 6.2.1.
Partner's Owner	As set forth in 11.2.9(a).
Partners	As set forth in the introductory paragraph of this Agreement.
Partnership	As set forth in the introductory paragraph of this Agreement.
Partnership Entity.....	As set forth in 14.7.2.
Partnership Expenses	As set forth in 5.2.1.1.
Partnership Information	As set forth in 14.8.7(a).
Partnership Representative.....	As set forth in 14.7.2.

Person.....	Any individual, general partnership, limited partnership, limited liability partnership, limited liability company, corporation, joint venture, trust, business trust, cooperative or association and the heirs, executors, administrators, legal representative, successors and assigns of such Person where the context so permits.
Placement Fees.....	All placement agent fees and expenses that are attributable to the sale of interests in the Partnership to the Limited Partners.
Plan Assets Regulation.....	The regulation concerning the definition of "plan assets" under ERISA adopted by the United States Department of Labor and codified in 29 C.F.R. §2510.3-101, as modified by Section 3(42) of ERISA, or any successor regulation promulgated pursuant to Section 3(42) of ERISA.
Portfolio Investments	An investment by the Partnership, whether directly or indirectly, with the following characteristics: (i) loans and credit facilities provided to an Originating Platform, including senior secured, subordinated/junior secured loans (including securitized transactions, second lien and mezzanine loans) or similar debt investments; (ii) debt financing provided to an Originating Platform in return for principal and interest payments (and other customary fees) and/or Equity Kickers; (iii) equity investments into an Originating Platform or its Affiliate.
Prime Rate.....	As of any date, the prime rate of interest in effect on such date as reported in *The Wall Street Journal*.
Principal	Any individual designated as such by the General Partner (initially Ido Vigdor, Ruthi Furman and Alex Ginzburg), for so long as such Person is actively involved in the management of the Partnership.
Public Securities Market	Any United States national or regional securities exchange, including but not limited to the New York Stock Exchange, the NYSE American, and regional United States exchanges, any internationally recognized non-United States securities exchange and any recognized United States or non-United States automated quotation system, listing service or other form of securities exchange or trading forum, including but not limited to an inter-dealer quotation system within the meaning of Rule 15c2-11 under the Securities Exchange Act of 1934, as amended (including NASDAQ); and the phrase *"traded on a Public Securities Market"* means publicly traded on or through any such exchange, system, listing service or forum.

Registration Statement	As set forth in 2.4.
Regulation Y	As set forth in 13.3.
Regulatory Allocations	As set forth in paragraph 1.7 of Appendix II.
Related Entity.....	As set forth in 3.5.1.
Reregistration.....	As set forth in 13.1.7.
Securities Act	The United States Securities Act of 1933, as amended from time to time, or any successor statute thereto.
Sharing Percentage.....	With respect to any Partner and any Portfolio Investment or other investment, a fraction, expressed as a percentage, (a) the numerator of which is the capital contributions of such Partner used to fund the Cost of such Portfolio Investment or other investment and (b) the denominator of which is the aggregate amount of the capital contributions of all of the Partners used to fund the Cost of such Portfolio Investment or other investment. Any Limited Partner who is an Additional Limited Partner shall have its Sharing Percentage adjusted to zero solely in respect of any distributions of Current Income until the first day of the fiscal quarter following the date of such Additional Limited Partner's admission to the Partnership as the General Partner determines in its reasonable discretion.
Shortfall Amount	As set forth in 10.5.3.
Statutory Registers	The Partnership's register of limited partners, record of capital contributions and returns of capital contributions and register of security interests, each maintained in the form required by the ELP Act.
Subscription	With respect to any Partner, the total amount that such Partner has agreed to contribute to the Partnership pursuant to 6.1.1 as set forth in the List of Partners.
Subscription Agreement.....	As set forth in 3.2.1.
Successor Fund	As set forth in 3.6.1.
Target Balance	For each Partner at any point in time, either (i) a positive amount equal to the net amount, if any, the Partner would be entitled to receive or (ii) a negative amount equal to the net amount the Partner would be required to pay or contribute to the Partnership or to any third party, assuming, in each case, that (A) the Partnership sold all of its assets for an aggregate purchase price equal to their aggregate Carrying Value;

(B) all liabilities of the Partnership were paid in accordance with their terms (limited, in the case of nonrecourse liabilities, to the collateral securing or otherwise available to satisfy such liabilities) from the amounts specified in clause (A) of this sentence; (C) any Partner that was obligated to contribute any amount to the Partnership pursuant to this Agreement or otherwise (including the amount a Partner would be obligated to pay to any third party pursuant to the terms of any liability or pursuant to any guaranty, indemnity or similar ancillary agreement or arrangement entered into in connection with any liability of the Partnership) contributed such amount to the Partnership; (D) all liabilities of the Partnership that were not completely repaid pursuant to clause (B) of this sentence were paid in accordance with their terms (limited, in the case of nonrecourse liabilities, to the collateral securing or otherwise available to satisfy such liabilities) from the amounts specified in clause (C) of this sentence; and (E) the balance, if any, of any amounts held by the Partnership was distributed in accordance with this Agreement.

Target Portfolio Amount ..... As set forth in 4.2.2.

Tax Authority..... As set forth in 14.7.6(a).

Tax Distribution ..... As set forth in 7.3.1.

Tax-Exempt Partner ..... Any Partner that (a) is generally exempt from U.S. federal income taxation under Section 501 of the Code, or is a partnership or other flow through entity for United States tax purposes if any partner, member or other beneficial owner of such partnership or other flow through entity is so exempt, and (b) has notified the General Partner in writing of its status as a Tax-Exempt Partner.

Tax Liability..... As set forth in 7.4.1.

Tax Reporting Information ..... As set forth in 14.7.2.

Tax Reporting Obligations..... As set forth in 14.7.2.

Temporary Investments..... Short-term investments of cash pending distribution or use by the Partnership to pay expenses or make Portfolio Investments.

Temporary Investment Income ..... For any period, the income of the Partnership determined with a cash basis calculation, but determined by only taking into account all items of income or gain attributable to Temporary Investments other than Partner Interest.

Third-Party Indemnifier ..... Any Person (other than a Viola Credit III Fund, the General Partner, the Management Company, an Existing Fund, a

	Successor Fund or any Affiliate thereof) that is legally or contractually obligated to make indemnification payments (or equivalent payments pursuant to an insurance policy or similar arrangement) with respect to an Indemnitee.
Transaction Fees	As set forth in 5.3.1
Transfer	As set forth in 11.1.
Transfer Expenses	As set forth in 11.2.8.
Treasury Regulations	The regulations promulgated by the United States Department of the Treasury under the Code, as amended.
United States; U.S.....	The United States of America.
Unreturned Contribution Amount.....	With respect to each Partner, the difference between such Partner's aggregate Contributions to the Partnership since inception less amounts distributed to such Partner pursuant to 7.2.1(a), 7.2.1(b), 7.2.1(d), 7.3.5(b) and 7.3.5(c).
Viola Credit III Funds	As set forth in 3.6.2.1.
Viola Credit III Investors	As set forth in 3.6.2.1.
Warehoused Investment	As set forth in 4.7.
Withdrawal Date	As set forth in 3.6.2.3.
Withdrawing Limited Partner	As set forth in 3.6.2.3.

* * *

APPENDIX II

REGULATORY AND TAX ALLOCATIONS

The provisions of this Appendix II are included in order to enable the Partnership to comply with the requirements of Section 704(b) of the Code and the Treasury Regulations promulgated thereunder and shall be applied and interpreted accordingly.

1.1 Regulatory Allocations and Allocations Involving Nonrecourse Indebtedness.

The following provisions are included in order to comply with tax rules set forth in the Code and to permit the Partnership to obtain the benefits of a "safe harbor" provided by Treasury Regulations Section 1.704-1(b)(2)(ii)(*d*) and apply notwithstanding anything to the contrary in 8.2.

1.2 Minimum Gain Chargeback.

Items of income or gain (computed with the adjustments contained in the definition of "**Net Gain**" and "**Net Loss**") for any taxable period shall be allocated to the Partners in the manner and to the minimum extent required by the "minimum gain chargeback" provisions of Treasury Regulations Section 1.704-2(f) and Treasury Regulations Section 1.704-2(i)(4).

1.3 Nonrecourse Deductions.

All "nonrecourse deductions" (as defined in Treasury Regulations Section 1.704-2(b)(1)) of the Partnership for any year shall be allocated to the Partners in the same manner in which Net Gain or Net Loss is allocated for such year; provided, however, that nonrecourse deductions attributable to "partner nonrecourse debt" (as defined in Treasury Regulations Section 1.704-2(b)(4)) shall be allocated to the Partners in accordance with the provisions of Treasury Regulations Section 1.704-2(i)(1).

1.4 Limit on Loss and Deduction Allocations.

In no event shall any items of loss or deduction (computed with the adjustments contained in the definition of "**Net Gain**" and "**Net Loss**") be allocated to a Partner if such allocation would cause or increase a negative balance in such Partner's Capital Account (determined for this purpose, by increasing the Partner's Capital Account balance by the amount the Partner is obligated to restore to the Partnership within the meaning of Treasury Regulations Section 1.704-1(b)(2)(ii)(*c*) or is deemed obligated to restore pursuant to Treasury Regulations Sections 1.704-2(g) and 1.704-2(i)(5) and decreasing it by the amounts specified in Treasury Regulations Sections 1.704-1(b)(2)(ii)(*d*)(*4*), (*5*) and (*6*)).

1.5 Qualified Income Offset.

Items of income or gain (computed with the adjustments contained in the definition of "**Net Gain**" and "**Net Loss**") for any taxable period shall be allocated to the Partners in the manner and to the extent required by the "qualified income offset" provisions of Treasury Regulations Section 1.704-1(b)(2)(ii)(*d*).

1.6 Gross Income Allocation.

Items of income or gain (computed with the adjustments contained in the definition of "**Net Gain**" and "**Net Loss**") for any taxable period shall be allocated to the Partners in the amount of (and in proportion to) any negative balance in such Partner's Capital Account (determined for this purpose, by increasing the

Partner's Capital Account balance by the amount the Partner is obligated to restore to the Partnership within the meaning of Treasury Regulations Section 1.704-1(b)(2)(ii)(*c*) or is deemed obligated to restore pursuant to Treasury Regulations Sections 1.704-2(g) and 1.704-2(i)(5) and decreasing it by the amounts specified in Treasury Regulations Sections 1.704-1(b)(2)(ii)(*d*)(*4*), (*5*) and (*6*)).

1.7 Offsetting Allocations.

The allocations set forth in paragraphs 1.4, 1.5 and 1.6 hereof (the "**Regulatory Allocations**") are intended to comply with certain requirements of Treasury Regulations Section 1.704-1(b). Notwithstanding any other provisions of this Agreement (other than the Regulatory Allocations), the Regulatory Allocations shall be taken into account in allocating subsequent Net Gain, Net Loss and other items of income, gain, loss and deduction among the Partners so that, to the extent possible, the net amount of such allocations of subsequent Net Gain, Net Loss and other items and the Regulatory Allocations to each Partner shall be equal to the net amount that would have been allocated to each such Partner pursuant to the provisions of Article 8 of the Agreement if the Regulatory Allocations had not occurred.

2. Adjustments to Reflect Changes in Interests.

With respect to any fiscal period during which any Partner's interest in the Partnership changes, allocations under this Agreement (including 8.3) shall be adjusted appropriately to take into account the varying interests of the Partners during such period in accordance with the requirements of Section 706(d) of the Code and the Treasury Regulations thereunder.

3. Special Allocations to Reflect Economic Interests.

The General Partner is authorized to modify the allocations otherwise provided for under Article 8 and this Appendix II, including by specially allocating items of gross income, gain, loss, or expense among the Partners, if the General Partner reasonably determines that such modifications or such special allocations will cause allocations under this Agreement (both in amount and character) and the Capital Accounts of the Partners to reflect more closely the Partners' relative economic interests in the Partnership as set forth in Article 7 and Article 10.

4. Tax Allocations.

Except as otherwise provided in the Agreement or this Appendix II or as required by Section 704 of the Code, for tax purposes, all items of income, gain, loss, deduction or credit shall be allocated to the Partners in the same manner as are Net Gains and Net Losses; provided, however, that if the Carrying Value of any property of the Partnership differs from its adjusted basis for tax purposes, then items of income, gain, loss, deduction or credit related to such property for tax purposes shall be allocated among the Partners so as to take account of the variation between the adjusted basis of the property for tax purposes and its Carrying Value in the manner provided for under Section 704(c) of the Code.

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APPENDIX III

WAREHOUSED INVESTMENTS